

N40080-24-R-4580 8(a) Regional Grounds Maintenance Services, Synopsis for Solicitation

Action Code: 561730 – Landscaping Services

Date: 09/18/2025

Year: 2025

Contracting Office ZIP Code: 20374-5018

Product or Service Code: S208

Contracting Office Address:

NAVFAC Washington.1314 Harwood Street, Building 212, Washington, D.C., 20374-5018.

Subject: REGIONAL GROUNDS MAINTENANCE SERVICES

Proposed Solicitation Number: N4008025R1007

Closing Response Date: TBD

Contact Point or Contracting Officer:

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Contract Award and Solicitation Number: N4008024R4580/N4008025R1007

Line Item Numbers:

CLIN	Pricing	Description	Timeframe	Performance
0001	Recurring	Base Period	24 August 2026 through 23 August 2027	12 months
0002	Non-Recurring	Base Period	24 August 2026 through 23 August 2027	12 months
0003	Recurring	Option Period 1	24 August 2027 through 23 August 2028	12 months
0004	Non-Recurring	Option Period 1	24 August 2027 through 23 August 2028	12 months
0005	Recurring	Option Period 2	24 August 2028 through 23 August 2029	12 months
0006	Non-Recurring	Option Period 2	24 August 2028 through 23 August 2029	12 months
0007	Recurring	Option Period 3	24 August 2029 through 23 August 2030	12 months
0008	Non-Recurring	Option Period 3	24 August 2029 through 23 August 2030	12 months

0009	Recurring	Option Period 4	24 August 2030 through 23 August 2031	12 months
0010	Non-Recurring	Option Period 4	24 August 2030 through 23 August 2031	12 months
Total (Base and Four Option Periods)				60 months
0011	Recurring	6-Month Option	24 August 2031 through 19 April 2032	6 months
0012	Non-Recurring	6-Month Option	24 August 2026 through 19 April 2032	6 months
Total (Base and All Option Periods)				66 months

Contract Award Date: 07/25/2026

Place of Contract Performance:

Various locations and bases across NAVFAC Washington Area of Responsibility (AOR)

Set-aside Status: Competitive 8(a) Set-aside

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with the format in FAR Subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested, and a written solicitation will not be issued. PAPER COPIES OF THIS SOLICITATION WILL NOT BE ISSUED. This combined synopsis/solicitation SHALL be posted on SAM (www.sam.gov). The solicitation number for this procurement is N4008024R480 / N4008025R1007. The solicitation is being issued as a request for proposal (RFP). This solicitation document incorporates provisions and clauses in effect through Federal Acquisition Circular (FAC) 2025-05 and Defense Acquisition Regulations (DFARS) Revised 15 August 2024. It is the responsibility of the contractor to be familiar with the applicable clauses and provisions. The clauses may be accessed in full text at this address:

FAR: <https://www.acquisition.gov/content/regulations>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

This RFP is being solicited using a one-step competitive procurement under FAR PART 15 Contracting by Negotiation. The solicitation will be competed as a competitive 8(a) set-aside. The solicitation is being issued under the North American Industry Classification System Code (NAICS) 561730. The size standard for NAICS code 561730 is \$9,500,000 in average annual receipts. This solicitation will result in an Indefinite Delivery/Indefinite Quantity (IDIQ), Labor-Hour type contract with work ordered by the issuance of Task Orders. The term of the contract will be for one (1) base year and four (4) twelve (12) month option periods, and a six (6) month option period.

Naval Facilities Engineering Systems Command (NAVFAC) Washington requests responses from qualified sources capable of providing professional services pertaining to regional grounds maintenance services for various facilities

throughout the National Capitol Region (NCR). The Contractor shall furnish all labor, supervision, management, tools, materials, equipment, facilities, transportation, incidental engineering, and other items necessary to provide the services outlined below and described in this Performance Work Statement (PWS) at various locations within a 100-mile radius of the Washington Navy Yard. The PWS includes provisions for recurring and non-recurring work including Pest Control, Grounds Maintenance and Landscaping and Snow Removal. The total duration of the contract shall not exceed sixty-six (66) months. The guaranteed minimum for the entire contract period (including options, if exercised) will be satisfied with the award of a task order. There is no maximum not-to-exceed quantity per year.

MAXIMUM NOT TO EXCEED AMOUNT FOR THE ENTIRE CONTRACT PERIOD (INCLUDING OPTIONS, IF EXERCISED) FOR LABOR, TRAVEL, AND ODC'S IS NOT-TO-EXCEED THE TOTAL OF ALL CLINS IN THE SCHEDULE.

The following FAR, DFARS, provisions and clauses are applicable to this procurement:

52.212-3 Offeror Representations and Certifications – Commercial Products and Commercial Services (May 2024)

The selected offeror must submit a complete copy of the above listed representations and certifications. Please refer to **Section K** in the solicitation document, **pages 49-62**.

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Section A

1. CONTRACT TITLE

8a Regional Grounds Maintenance Services NAVFAC Washington's Area of Responsibility (AOR)

2. TYPE OF CONTRACT

This acquisition will result in the award of a Firm-Fixed Price (FFP), Indefinite Delivery Indefinite Quantity (IDIQ), performance-based type contract, which is comprised of both recurring and non-recurring work items.

3. COMPETITION REQUIREMENTS/SET-ASIDE

This procurement is an 8(a) Small Business set-aside in accordance with FAR 19.805-1.

4. NAICS CODE

The NAICS code assigned to this procurement is 561730 - Landscaping Services, having a small business size standard of \$9.5 Million. Refer to Section K, Representations, Certifications, and Other Statements of Offerors.

5. REQUEST FOR PROPOSAL (RFP) FILES

It is the sole responsibility of the Offeror to obtain the RFP files, along with any amendments, from the Procurement Integrated Enterprise Environment (PIEE) located at <https://piee.eb.mil>. Offerors are advised to check the aforementioned website on a regular basis as RFP documents could update daily.

Section B

1. CONTRACT TERM

The performance of this contract is for a 12-month base period, four (4) 12-month option periods, and a 6-month extension in accordance with FAR 52.217-8, for a not to exceed 66 months from the start date of the initial period of performance. The Government has the option to extend the term of the contract in accordance with Section I, Contract Clauses, FAR clause 52.217-9 Option to Extend the Term of the Contract.

2. CONTRACT PRICE INFORMATION

All pricing associated with this contract will be expressed in U.S. dollars.

3. CONTRACT LINE ITEMS, CONTRACT EXHIBIT LINE ITEMS AND SUBCLINS

A Contract Line Item Number (CLIN) consists of four numeric digits and identifies separately identifiable supplies or services. An Exhibit Line Item Number (ELIN) consists of four alphanumeric characters and is a form of separately identifiable line items for the purposes of ordering and pricing. Offerors shall enter unit prices and amounts for Contract Line Items (CLINs) and Exhibit Line Items (ELINs) as indicated in the schedules and any accompanying exhibits. Please note: Government generated excel formulas are NOT guaranteed to be accurate. It is the Offeror's responsibility to ensure excel formulas used to calculate pricing are correct. All numeric entries are limited to no more than two (2) decimal places (e.g. \$1.05, 9.75%, or 5.50). ELIN pricing for recurring services shall be applied as the cost basis for the increase/decrease of any recurring quantities from a specified ELIN and for non-recurring quantities of the same. In the event there is a difference between the unit price and the extended total amount, the unit price will be upheld as the intended offer and the total of the CLIN and/or ELIN will be recomputed to take into account the change in the contract ELINs. If the Offeror provides a total amount for an ELIN, but fails to enter the unit price, the total amount divided by the ELIN quantity will be held to be the intended unit price.

4. FULLY LOADED PRICING

Prices provided shall be fully loaded and no other allocations, fees, overheads, G&A, insurance, taxes, profits or any other markups shall be applied when an option is exercised or work is ordered for pre-priced work. Costs for technical specifications in Annexes 0100000 and 0200000 shall be considered overhead; therefore, their costs shall be allocated and included throughout the prices quoted for all other technical specifications.

5. MOBILIZATION, PHASE-IN, AND/OR PHASE-OUT

Phase-In and Phase-Out periods are each 30 days. Pricing shall include applicable Mobilization, Phase-In, and/or Phase-Out costs. There are no separately priced CLIN for such costs; offerors may distribute these costs however the Offeror chooses in its proposal.

6. INDEFINITE QUANTITY INDIVIDUAL CONTRACT LINE ITEM QUANTITIES

Quantities listed for non-recurring ELINs are estimates only. Additional quantities may be ordered as long as the total not-to-exceed (NTE) value for all non-recurring services is not exceeded

7. BIDDING UNIT PRICES FOR LABOR

Any work included in the scope of this contract that cannot be identified in advanced in sufficient detail to be included as Recurring Work Items is considered Non-Recurring Work.

The Contractor shall enter, in the unit price bid space, the unit price for performing composite labor. The composite labor price shall include all direct and indirect costs associated with performing an hour of work. The composite labor price should be the Contractor's hourly craft wage adjusted to allow for the Offeror's work force productivity (i.e., the Contractor's estimate of how its' work force will perform in relation to the Means Facilities Cost and data and/or the Engineered Performance Standards). The Composite Labor Rate shall include all costs for preparation of the cost proposal, job preparation, travel, pre-expended bin materials and supplies, ordering and stockpiling job material, additional material handling, items of equipment necessary to perform work (i.e. bucket truck, lifting equipment, staging, etc.), equipment set up time, lift time, craft delay allowance, profit, tools, equipment, field and home office overhead, clerical support, supervision, inspection, fees, taxes, licenses, bonds, permits, insurance, etc.

8. UNIT PRICE ADJUSTMENTS IN OPTION PERIODS

This solicitation incorporates Service Contract Act (SCA) Wage Determination(s). The Wages are incorporated for the Base Period of performance only. If an Option Period is exercised, the most current SCA Wage Determination(s) for that Option Period will be incorporated into the. The contractor warrants, by submission of its proposal that the price does not include any contingency for future wage increases.

9. MAXIMUM NOT TO EXCEED (NTE)

The maximum NTE value of an ordering period is the total of all the CLINs in that ordering period. The maximum or NTE value of the contract is the total value of all CLINs in the Schedule. Orders shall not be made that exceed the maximum NTE value for any ordering period and/or the NTE value of the contract.

Capacity Reporting under Section G requires the Contractor to notify the Government before capacity is reached. Any change to the NTE value of an ordering period and/or contract will be authorized by a modification.

10. MINIMUM GUARANTEE

The Minimum Guarantee for this contract will be satisfied by issuance of the funding task order for recurring requirements in the base period of performance. Task orders for the base period will be issued with available funds, and subsequent modifications to the base period task orders will be issued by the respective ACO for each PWD under the contract based on DFARS 252.232-7007, Limitation of Governments Obligation.

Where a minimum guarantee applies, a task order for the minimum guarantee will be issued concurrently with the award of the basic contract.

11. FEDMALL AND GOVERNMENT COMMERCIAL PURCHASE CARD (GCPC)

Orders for non-recurring services may be placed through FedMall by an authorized Government Commercial Purchase Card (GCPC) user. The Contractor is required to obtain FedMall access and ensure ELIN schedules are

updated to support orders for non-recurring services. When receiving an order through FedMall, the Contractor shall provide the services at the applicable ELIN price without additional markup or handling fee. The FedMall Supplier Portal provides registration information and access to Web Based Training: <https://www.suppliers.fedmall.mil>. See sections F and G for further details on ordering and reporting.

Section C

C.1 PERFORMANCE WORK STATEMENT (PWS)

All technical annexes associated with this contract will be provided as attachments to this solicitation. See Section J for the complete list of attachments. The proposal presented by the Offeror to whom the award is made will be incorporated, in whole or in part, into the contract at time of award.

C.2 EMERGENCY TASK ORDERS

1. Most Task Orders issued will be definitive (a defined price based on predetermined tasks and quantities). However, under emergency conditions, or when otherwise appropriate, the Contracting Officer may issue non-definitive (lacking definitive tasks or quantities) Task Orders which direct the Contractor upon issuance of the order to proceed with the work immediately. These unilateral orders will specify the work as non-definitive and will contain a maximum (not-to-exceed) dollar amount, against which the Contractor can submit invoices, during contract performance. The contractor shall notify the Contracting Officer once it has reached 50% of the not-to-exceed amount so that the Contracting Officer may be prepared to increase this amount without requiring the contractor to stop work. Under no circumstances shall that contractor exceed the not-to-exceed amount without direct authorization from the Contracting Officer. The onsite Government representative has no authority to direct the contractor to do any work that has not been specifically authorized by the Contracting Officer. The final price will be determined through subsequent negotiations.
2. Within two (2) working days from the notice to proceed, the Contracting Officer will conduct a joint scoping meeting with the Contractor to further identify the work and establish Task Order requirements. Following Government acceptance of the detailed scope of work, the Contractor shall prepare and submit a proposal.
3. Following receipt of the Contractor's proposal, the Government will review the proposal. Upon completion of negotiations, the Contracting Officer will issue a Modification to the Task Order to incorporate the detailed scope of work, other Task Order requirements, and the final Task Order price. Failure to reach an agreement on the final price will be settled in accordance with FAR Clause 52.233-1 DISPUTES (May 2014) – ALTERNATE I (DEC 1991).
4. ORAL ORDERS: Only the Contracting Officer may issue oral orders in emergency circumstances. In the case of an emergency (unless otherwise changed by mutual consent), the contractor shall be at the emergency site within two (2) hours of initial direction from the Contracting Officer. An oral order will be confirmed by issuance of a written task order within two (2) working days after the oral order is placed. Orders may be modified orally by the Contracting Officer in emergency circumstances. An oral modification shall be confirmed by issuance of a written modification on Standard Form 30 within two (2) working days from the time of the oral communication modifying the order.

Contained in this Section:

J-0100000 – General Information
J-0200000 – Management and Administration
J-1503050 – Maintenance and Landscaping
J-1503060 – Pavement and Snow Clearance

0100000 – General Information	
Spec Item	Title
1	General Information
1.1	Outline of Services
1.2	Acquisition of Additional Work
1.3	Background Information
1.4	Navy PBSA Approach
1.5	Standard Template
1.6	Related Information
1.7	Verification of Workload and Conditions
1.8	Contractor's Knowledge
1.9	Technical Proposal Certification

0100000 – General Information

Spec Item	Title	Description
1	General Information	
1.1	Outline of Services	Except where otherwise stated, the Contractor shall furnish all labor, supervision, management, tools, materials, equipment, facilities, transportation, incidental engineering, and other items necessary to provide the services outlined below and described in this Performance Work Statement (PWS) at various locations within a 100 mile radius of the Washington Navy Yard, Washington, DC and outlying areas supported by this installation performance-based contract that is comprised of both Recurring Work and Non-Recurring Work Items. Locations to include but are not limited to: • Naval Support Activity Washington Navy Yard, Washington, DC • Naval Research Laboratory (NRL), Washington, DC • Marine Corps Barracks (MBW), 8th and I Streets, Washington, DC • Naval Support Facility Arlington Service Center (ASC), VA • United States Naval Observatory (USNO), Washington, DC • Vice President’s Residence (Quarters A) • Naval Support Facility Carderock, Bethesda, MD • Naval Support Facility Dahlgren and Annexes, Dahlgren, VA • Naval Support Facility Indian Head and Annexes, Indian Head, MD • Naval Air Station Patuxent River and Annexes, Patuxent River, MD (Reserved) • Naval Support Facility Annapolis and Annexes, Annapolis, MD (Reserved) • Marine Corps Base Quantico (MCBQ), Quantico, VA • Naval Support Activity Bethesda, Bethesda, MD Locations marked (Reserved) have no requirements but may be modified after award for services to be performed. The PWS is organized into annexes. Annex 1 is "General Information". Annex 2 contains the on-site project management and administration requirements. Annexes 3 through 18 contain the technical requirements. The annex numbers are identified as 1 through 18 in the description column, but the fully expanded annex numbers include seven digits (e.g.,

0100000 – General Information		
Spec Item	Title	Description
		Annex 1 expanded number is 0100000 as shown in the header row at the top of this page). Annex 1 General Information Annex 2 Management and Administration Annex 3 Command and Staff- N/A Annex 4 Public Safety- N/A Annex 5 Air Operations- N/A Annex 6 Port Operations- N/A Annex 7 Ordnance- N/A Annex 8 Range Operations-N/A Annex 9 Health Care Support- N/A Annex 10 Supply- N/A Annex 11 Personnel Support- N/A Annex 12 Morale, Welfare and Recreation Support- N/A Annex 13 Galley- N/A Annex 14 Housing- N/A Annex 15 Facilities Support Sub-Annex 1503050 Grounds Maintenance Sub-Annex 1503060 Pavement Clearance Annex 16 Utilities- N/A Annex 17 Base Support Vehicles and Equipment- N/A Annex 18 Environmental- N/A
1.2	Acquisition of Additional Work	The Government reserves the right to acquire additional services at additional locations, within the scope of the annexes and areas included in Spec Item 1.1 Outline of Services, in addition to the services and locations identified in the requirements of this contract. Additional services will be incorporated into the contract in accordance with the CHANGES clause, SECTION I or ordered under the non-recurring work provisions of the

0100000 – General Information

Spec Item	Title	Description
		contract. Items of work not covered by this contract but within the general intent are considered in the scope of this contract.
1.3	Background Information	With the nation's capital at its heart, the Naval District Washington Region encompasses over 4,000 square miles, including the District of Columbia, Maryland, and Virginia. Naval District Washington is responsible for efficiently delivering common operating support services to over 120 mission commands located within the Region. Naval District Washington is the regional provider of common operating support to twenty Naval installations within a one hundred miles radius of the Pentagon.
1.4	Navy PBSA Approach	The Navy's approach to performance-based service acquisition (PBSA) includes four component parts, which are 1) performance outcomes, 2) measurable standards, 3) consideration of incentives, and 4) performance assessment plan.
1.5	Standard Template	Key to implementing the PBSA approach is using a standard template that ensures Navy-wide consistency yet affords appropriate tailoring to meet local needs. The standard template contains 18 standard annexes. Annex 1 will always contain General Information that is relevant to the entire scope of the contract. Annex 2 contains Management and Administration requirements that are relevant to the entire scope of the contract. Annexes 3 through 18 and their associated sub-annexes contain the General Information, Management and Administration requirements, Performance Objectives, Related Information, and Performance Standards that are relevant to that technical annex. Except where otherwise stated, Annexes 3 through 18 and their associated sub-annex requirements are not relevant to one another. Within each technical annex and sub-annex, the organization of information and requirements are also standardized. Specification Item 1 will always contain General Information. Specification Item 2 will always contain the Management and Administrative requirements. Specification Item 3 will always contain the Recurring Work requirements. Specification Item 4 will always contain the Non-Recurring Work requirements. Requirements and standards for higher level specification items apply to all subordinate specification items, e.g., Specification Item 3 standards apply to all recurring work specification items. Specification Item 3.1 is applicable to all 3.1 subordinate specification items. Specification Items 3.2 and 3.3 are not considered subordinate to 3.1 nor are they considered subordinate to one another. All costs associated with

0100000 – General Information

Spec Item	Title	Description
		Annexes 1 and 2 and Specification Items 1 and 2 shall be priced, and their price shall be allocated to the Exhibit Line Items.
1.6	Related Information	There are four types of Related Information that can be found in the Description and Related Information columns of the specification as follows: Informational Notes as used throughout this PWS provides additional information to offerors' to be used in developing a thorough understanding of the work to be performed in this contract. Any block of text marked "Informational Notes" throughout Annexes 1 through 18 and their associated sub-annexes are subject to this disclaimer. Offerors' may not rely upon the "Informational Notes" as material representations of the Government. Information provided in "Informational Notes" does not create a contractually binding requirement on either party. Clarifying Information describes client expectations in a more detailed manner than the Performance Objective and Performance standard alone. Constraining Information describes limitations to the work performed to meet the Performance Objective and Performance Standard. Requirement Information further describes client requirements associated with each Performance Objective.
1.7	Verification of Workload and Conditions	Throughout the PWS, the workload data is generally referred to as being located in Sections C and J. Section C provides data such as descriptions, specifications, and the statement of work. Section J provides data such as system descriptions, maps, floor plans, and tables to represent the type and location of services to be provided. All facilities, systems, and assets identified in this contract shall be accepted by the Contractor in "AS-IS" condition. The Contractor is fully

0100000 – General Information

Spec Item	Title	Description
		responsible for all work up to and including the limits of liabilities specified. As prescribed in FAR 52.237-1, offerors' or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.
1.8	Contractor's Knowledge	The Navy expects to receive insightful management from its contractors. This management will include the knowledge, skills, authority and willingness to use contractor resources to find better ways of serving Navy clients' strategic and operational goals and objectives. The Navy's use of performance-based objectives evidences this principle. Although performance work statements will typically contain several levels of performance assessment, the Navy wants its contractors to exercise maximum discretion within bounds of prudent risk management to adjust processes and resources needed to reach specified objectives at the highest performance level.
1.9	Technical Proposal Certification	The Contractor warrants that its proposal incorporated herein by reference will meet or exceed the performance objectives set forth in this contract.

0200000 – Management and Administration	
Spec Item	Title
2	Management and Administration
2.1	Definitions and Acronyms
2.2	General Information
2.2.1	Government Regular Working Hours
2.2.1.1	Observed Federal Holidays
2.2.1.2	Restriction to Contractor Working Hours
2.2.2	Wage Determinations
2.2.3	Requirements Hierarchy
2.3	General Administrative Requirements
2.3.1	Required Conferences and Meetings
2.3.2	Training for Maintenance and Operation of New and Replacement Systems and Equipment
2.3.3	Partnering
2.3.3.1	Informal Partnering
2.3.3.2	Contract Partnering Administration
2.3.3.3	Contract Partnering Session Attendees
2.3.4	Permits and Licenses
2.3.5	Insurance
2.3.5.1	Certificate of Insurance
2.3.5.2	Minimum Insurance Amounts
2.3.6	Protection of Government Property
2.3.7	Directives, Instructions, and References
2.3.8	Invoicing Procedures
2.3.9	Forms
2.4	Government-Furnished Items
2.4.1	Government-Furnished Property (GFP)
2.4.2	Government-Furnished Facilities

0200000 – Management and Administration	
Spec Item	Title
2.4.3	Government-Furnished Vehicles and Equipment
2.4.4	Government-Furnished Utilities
2.5	Contractor-Furnished Items
2.6	Management
2.6.1	Safeguarding Information
2.6.2	Dissemination of Information
2.6.3	Work Reception
2.6.4	Work Control
2.6.5	Work Schedule
2.6.6	Deliverables
2.6.7	Service Interruptions
2.6.8	NAVFAC Maximo- Not Used
2.6.8.1	NAVFAC Maximo Data- Not Used
2.6.8.2	NAVFAC Maximo Method of Data Entry- Not Used
2.6.8.3	NAVFAC Maximo Access- Not Used
2.6.8.4	NAVFAC Maximo Training- Not Used
2.6.9	Quality Management System (QMS)
2.6.9.1	Quality Management (QM) Plan
2.6.9.2	Quality Inspection and Surveillance
2.6.9.3	Quality Inspection and Surveillance Report
2.6.10	Property Management Plan
2.6.11	System and Equipment Replacement
2.7	Personnel Requirements
2.7.1	Key Personnel
2.7.1.1	Project Manager (PM)
2.7.1.2	Quality Manager

0200000 – Management and Administration	
Spec Item	Title
2.7.1.2.1	Quality Control Personnel
2.7.1.3	Site Safety and Health Officer (SSHO)
2.7.1.4	Environmental/Energy Manager
2.7.2	Employee Requirements
2.7.2.1	Employee Certification and Training
2.7.2.2	Employee Appearance
2.7.2.3	Employee Conduct
2.7.2.4	Identification as Contractor Employee
2.7.2.5	Removal of Employees
2.7.2.6	Proof of Legal Residency
2.7.3	Service Contract Reporting (SCR)
2.8	Security Requirements
2.8.1	Employee Listing
2.8.2	Vehicles
2.8.3	Passes and Badges
2.8.4	Access to Installation
2.8.4.1	DBIDS Program
2.8.4.2	DBIDS Credentials
2.8.5	Access to Buildings
2.8.6	Access Arrangements
2.8.6.1	Escort Arrangement for Secured Areas
2.8.7	Security Clearances
2.8.8	Access to Controlled Unclassified Information
2.8.9	Access to Government Information Technology (IT), Operating Technology (OT), and Facility Related Control Systems (FRCS)
2.8.10	Access to Navy Marine Corps Intranet (NMCI)

0200000 – Management and Administration	
Spec Item	Title
2.8.11	Employee Status
2.9	Contractor Safety Program
2.9.1	Contractor Safety Requirements
2.9.1.1	Experience Modification Rate (EMR)
2.9.1.2	OSHA Days Away From Work, Restricted Duty, or Job Transfer (DART) Rate
2.9.2	Accident Prevention Plan (APP)
2.9.3	Activity Hazard Analysis (AHA)
2.9.4	Safety and Occupational Health (SOH) Risks and Compliance Plans
2.9.4.1	Alcohol and Drug Abuse Prevention Plan
2.9.4.2	Chemical Hazard Communication Program
2.9.4.3	Confined Space Program
2.9.4.4	Critical Lift Plan
2.9.4.5	Fall Prevention and Protection Plan
2.9.4.6	Pathogen Exposure
2.9.4.7	Control of Hazardous Energy (lockout/tag out)
2.9.5	Crane Operations
2.9.5.1	Crane Inspections
2.9.5.2	Rigging Gear
2.9.5.3	Crane Operators
2.9.6	Accident and Damage Reporting
2.9.6.1	Accident Reporting and Notification Criteria
2.9.7	Fire Protection
2.9.8	Monthly On-Site Labor Report
2.9.9	OSHA Citations and Violations
2.9.10	Safety Inspections and Monitoring
2.9.11	Safety Certification

0200000 – Management and Administration	
Spec Item	Title
2.9.12	Safety Apparel on Jobsites
2.9.13	Emergency Medical Treatment
2.9.14	Excavations
2.10	Environmental Management and Sustainability
2.10.1	Energy Management Program
2.10.1.1	Water Conservation Plan
2.10.1.2	Energy Efficient Products
2.10.2	Environmental Protection
2.10.2.1	Sampling, Testing and Laboratory Services
2.10.2.2	ODS Requirements for Refrigerant Recycling- Not Applicable
2.10.2.3	Solid Waste Management and Recycling
2.10.2.4	Non-Regulated Waste Disposal
2.10.2.5	Regulated Waste Disposal
2.10.2.6	Universal Waste
2.10.2.7	Spill Prevention, Containment, and Clean-up
2.10.2.8	Hazardous Material Management
2.10.2.9	Protection of Endangered and Threatened Species (Flora and Fauna)
2.10.2.10	Noise Control
2.10.2.11	Salvage
2.10.2.12	Asbestos Containing Material (ACM)
2.10.2.13	Clean Air Act (CAA)
2.10.3	Sustainable Procurement and Practices
2.10.3.1	Environmentally Preferable Products
2.10.3.2	Use of Recovered Materials
2.10.3.3	Use of Bio-based Products
2.11	Disaster Preparedness

0200000 – Management and Administration	
Spec Item	Title
2.12	Technical Library
2.13	Warranty Management
2.14	Recurring Work Procedures
2.14.1	Recurring Work Preparation of Proposals
2.14.2	Notification to the Government for Work Above the Recurring Work Limitations
2.14.3	Recurring Work Exhibit Line Item Numbers (ELINs)
2.15	Non-Recurring Work
2.15.1	Unit Priced Task (UPT) Work (Non-Negotiated)
2.15.1.1	Acceptance and Performance
2.15.1.2	Invoicing and Receiving Payment
2.15.2	Unit Priced Labor (UPL) Work (Negotiated)
2.15.2.1	Non-recurring Work Preparation of Proposals
2.15.2.1.1	Labor Requirements
2.15.2.1.2	Direct Material and Construction Equipment Requirements
2.15.2.2	Issuance of Final Task Order
2.15.3	Non-Recurring Work ELINS

0200000 - Management and Administration		
Spec Item	Title	Description
2	Management and Administration	
2.1	Definitions and Acronyms	Definitions and Acronyms are listed in J-0200000-01.
2.2	General Information	
2.2.1	Government Regular Working Hours	The Government's regular working hours are from 0700-1600, five days per week, Monday through Friday, except observed Federal holidays. Exceptions to the regular hours of operation are detailed in subsequent sections of this PWS. Work in certain annexes or sub-annexes require Contractor continuous operations, 24 hours a day, every day of the year including holidays. The performance of other work requirements shall be accomplished within the Government's regular working hours unless the specific work requirement specified herein necessitates otherwise. Any other work outside Government regular working hours must be authorized by the KO prior to commencement of work.
2.2.1.1	Observed Federal Holidays	The Government observes the following holidays: New Year's Day, Martin Luther King Jr.'s Birthday, President's Day, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day.
2.2.1.2	Restriction to Contractor Working Hours	If the Contractor wishes to work outside of the Government's regular working hours for the Contractor's convenience, the Contractor shall submit a written Request to Work Outside Government's Regular Working Hours per Section F. Excludes work to be performed during specified hours.
2.2.2	Wage Determinations	Wage Determinations are included in J-0200000-02.
2.2.3	Requirements Hierarchy	Requirements or definitions specified in each spec item of this contract apply to subordinate paragraphs. For example, requirements shown in spec item 3.1 would apply to spec items 3.1.1, 3.1.2, 3.1.2.1 and so on. Likewise, Performance Standards specified at a lower digit level (i.e. spec item 3.1.1, 3.1.2, 3.1.2.1) apply when performance is assessed at a higher tier (i.e., spec item 3.1) based on the composite work requirements.
2.3	General Administrative Requirements	

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Spec Item	Title	Description
2.3.1	Required Conferences and Meetings	The Contractor shall attend administrative and coordination meetings. The Contractor shall provide sign-in sheets and prepare minutes of all meetings and submit per Section F for review and comments. Comments received within two working days shall be incorporated into the minutes and a copy of the final revision shall be submitted per Section F for concurrence. Historically, there has been approximately one meeting per month.
2.3.2	Training for Maintenance and Operation of New and Replacement Systems and Equipment	When construction, renovation, or repair work is performed by means other than this contract, the Contractor shall attend Government provided training, as applicable, for maintenance and operation of new and replacement systems and equipment at no additional cost to the Government.
2.3.3	Partnering	The Government requires cohesive partnerships with its Contractors and subcontractors. Key stakeholders, including the supported commands who may receive services, principal individuals from NAVFAC, the performance assessment team, and representative(s) of the installation(s) will be invited to participate in the partnering process. Key members of the prime and sub-contractor teams, including senior management personnel must participate. The partnership will draw on the strength of each organization in an effort to achieve quality contract services done right the first time, within the contract price, as scheduled, and without any safety mishaps. The goal of Partnering is to develop a cohesive team with common purpose, commitment and established communication processes.
2.3.3.1	Informal Partnering	The Contracting Officer shall organize the initial Partnering Meeting with key personnel of the project team, including Contractor's personnel and Government personnel. The initial session will be scheduled concurrent with the Pre-Performance Conference and held no later than 30 days after award and will be held at a Government provided facility as designated by the KO. The Initial Informal Partnering Session will be conducted and facilitated using electronic media (a video and accompanying forms) provided by Contracting Officer. The senior Government stakeholder present will lead the meeting, however, the Contractor's PM or senior representative is encouraged to participate as co-lead. The Partners will determine the frequency of the follow-on sessions.

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Spec Item	Title	Description
2.3.3.2	Contract Partnering Administration	Upon award, the ACO will contact the Contractor, supported command(s), Region, and Installation(s) stakeholders, and the performance assessment team to discuss implementation of partnering. A partnership agreement, The Charter, should be in place as early as possible so issues arising, even before work begins, can be resolved using the issues resolution process. Replacement of Core Management Team members (stakeholders who attended the initial session and manage the contract work day-to-day) is discouraged since it will disrupt the synergy that has been developed. If replacement of a team member proves to be unavoidable, a follow-on partnering session must be held to officially turn the responsibilities of the position over to the new member. The Core Management Team consisting of the attendees below must be present during the initial and all follow-on partnering sessions. These are the core mandatory attendees. Other stakeholders may attend if they desire or as recommended by the partners.
2.3.3.3	Contract Partnering Session Attendees	The Contractor shall bring the necessary personnel to successfully partner on this contract. Asterisk indicates mandatory personnel. President/Vice President * Project Manager * Quality Manager Site Safety and Health Officer
2.3.4	Permits and Licenses	The Contractor shall obtain all required permits, licenses, and authorizations to perform work under this contract and comply with all the applicable Federal, state and local laws and regulations. The Contractor shall submit copies of Permits and Licenses per Section F.
2.3.5	Insurance	The Contractor shall submit a Certificate of Insurance per Section F as evidence of the existence of the following insurance coverage in amounts not less than the amounts specified below in accordance with the FAR Clause 52.228-5, INSURANCE – WORK ON A GOVERNMENT INSTALLATION. This insurance must be maintained during the performance period.
2.3.5.1	Certificate of Insurance	The Certificate of Insurance shall provide for at least 30 calendar days written notice to the KO by the insurance company prior to cancellation or material change in policy coverage. Other requirements and information are contained in the aforementioned insurance clause.

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Spec Item	Title	Description
2.3.5.2	Minimum Insurance Amounts	The Contractor shall procure and maintain, during the entire period of performance under this contract, the following minimum insurance coverage: Comprehensive General Liability: \$500,000 per occurrence Automobile Liability: \$200,000 per person, \$500,000 per occurrence, \$20,000 per occurrence for property damage Workmen's Compensation: As required by Federal and state worker's compensation and occupational disease statutes Employer's Liability coverage: \$100,000, except in states where worker's compensation may not be written by private carriers Other as required by state law
2.3.6	Protection of Government Property	During execution of the work, the Contractor shall protect Government property. The Contractor shall return areas damaged as a result of Contractor negligence under this contract to their original condition at no cost to the Government.
2.3.7	Directives, Instructions, and References	Department of Defense (DoD), Secretary of the Navy (SECNAV), Chief of Naval Operations (OPNAV), and other applicable Directives, Instructions, and References are listed in J-0200000-03. The Contractor shall comply with the most current version of directives, instructions, and references including versions published during the term of the contract.
2.3.8	Invoicing Procedures	Refer to Section G for invoicing instructions. Refer to Invoice Form in J-0200000-04 for sample. Invoices shall be submitted in a format compatible with the most recent Government installed Microsoft Office Version (currently 2016). Invoice data shall be capable of being sorted by CLIN, annex/sub-annex, spec item, spec item title, and ELIN/Sub-ELIN.

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Spec Item	Title	Description
2.3.9	Forms	Forms referenced in this Annex, e.g. accident reporting, and damage reporting are included among the Forms in J-0200000-05.
2.4	Government-Furnished Items	Except for items identified below as Government-Furnished, the Contractor shall furnish all labor, supervision, management, tools, materials, equipment, facilities, transportation, incidental engineering, and other items necessary to provide the services described in this Performance Work Statement (PWS).
2.4.1	Government-Furnished Property (GFP)	Government- Furnished Property is not provided.
2.4.2	Government-Furnished Facilities	Government- Furnished Facilities are not provided.
2.4.3	Government-Furnished Vehicles and Equipment	Government- Furnished Vehicles and Equipment are not provided.
2.4.4	Government-Furnished Utilities	The Government will furnish water and electricity at existing outlets required for the work to be performed under the contract. The Contractor shall provide and maintain, at its expense, the necessary service lines from the existing Government outlets to the work site. Provide and maintain backflow prevention devices on connections to domestic water lines and electrical transformer provisions on connections to electric lines. Meet all Federal, State, local, and installation codes and regulations for backflow prevention devices and electrical transformer provisions. Services required by the Contractor, for which there are no available Government outlets, shall be provided by the Contractor at no cost to the Government.
2.5	Contractor-Furnished Items	Except for items identified as Government Furnished, the Contractor shall provide all equipment, materials, parts, supplies, components, and facilities to perform the requirements of this contract. The KO may inspect Contractor-furnished items for adequacy and compliance with contract requirements. Inadequate or unsafe items shall be removed and replaced by the Contractor at no cost to the Government. Materials containing asbestos, lead, and polychlorinated biphenyls (PCBs) shall not be brought onsite. Energy efficient tools and equipment shall be used when available. The KO may at any time require Samples, Safety Data Sheets (SDS) or Manufacturer's Data Cut Sheets of Materials used in this contract.
2.6	Management	The Contractor shall manage the total work effort associated with the services required herein to meet the performance objectives and standards. Such management includes but is not limited to planning, scheduling, cost

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Spec Item	Title	Description
		accounting, report preparation, establishing and maintaining records, and quality assurance. The Contractor shall provide a staff with the necessary management expertise to ensure performance objectives and standards are met.
2.6.1	Safeguarding Information	The Contractor shall safeguard controlled unclassified information and information associated with Government property in accordance with the latest revision of CNSSI 1253, DoDI 8582.01, NIST SP 800-53, NIST SP 800-171, SECNAV Defense Industrial Base (DIB) Memo, and applicable contract clauses. At a minimum, this information shall be protected at the moderate confidentiality level as defined in NIST SP 800-171. Contractor information and data systems that contain information associated with Government property shall comply with DoD Risk Management Framework (RMF). The Contractor shall develop Plans of Action and Milestones (POA&Ms) per NIST SP 800-171, track accomplishment, and submit to the Government per Section F. If a cybersecurity incident is encountered or suspected related to any (Contractor or Government) Information Technology (IT) or Operating Technology (OT) systems, including Monitoring and Control Systems, the Contractor shall notify the Government per Section F.
2.6.2	Dissemination of Information	DoD policy limits the dissemination of certain information. Instructions, Directives, and References not releasable to the public, e.g., Floor Plans, Maps, Post Orders, and Standard Operating Procedures, will be made available after contract award to the successful offeror with appropriate credentials and a need to know.
2.6.3	Work Reception	The Contractor shall provide the capability to receive, prioritize, correspond, and respond to trouble/service calls and task orders during Government regular working hours and provide a point of contact at a local or toll free number who can perform the above function during other than Government regular working hours.
2.6.4	Work Control	The Contractor shall implement all necessary work control procedures to ensure timely accomplishment of work requirements, as well as to permit tracking and reporting of work in progress. The Contractor shall plan and schedule work to assure material, labor, and equipment are available to

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Spec Item	Title	Description
		complete work requirements within the specified time limits and in conformance with the quality standards established herein. Verbal scheduling and work status updates shall be provided when requested by the Government. A status update of any item of work must be provided within two hours of the inquiry during regular working hours, and by 0800 the following work day for inquiries after regular working hours. The Contractor shall provide work schedules for both Recurring and Non-Recurring Work per Section F. At a minimum, work schedules shall include: • Description of service(s) to be accomplished • Location • Date service(s) are scheduled to be accomplished
2.6.5	Work Schedule	The Contractor's work shall not interfere with normal Government business. In those cases where some interference is unavoidable, the Contractor shall minimize the impact and effects of the interference. The Contractor shall provide advance access of all of its work schedules to the Government. The Contractor shall provide written notification of any difficulty in scheduling work due to Government controls, per Section F. At a minimum, the notification shall include the following: • The date and time the work was initially coordinated. • The name and phone number of the Government person with whom the work was initially coordinated. • The name and phone number of the Government person who prevented the work from being performed as previously coordinated. • The alternative date and time, the Government person requested the work be accomplished.
2.6.6	Deliverables	Except where otherwise stated, deliverable requirements are specified in Sections C, F, H, I, J, and within the Directives, Instructions, and References. The Contractor shall submit accurate and complete documents within the specified timeframes. The Contractor shall revise/modify deliverables, as directed by the KO, at no additional cost to the Government. Except where otherwise specified, all deliverables shall be submitted electronically in a Microsoft Office Version 2010 compatible format. Deliverables shall include the company name, contract number, contract title, date, and shall be unprotected and capable of being sorted by CLIN, work order number, asset number, section, annex/sub-annex, spec item and ELIN/Sub-ELIN or clause. All formulas shall be traceable.

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Spec Item	Title	Description
		Government acceptance of deliverables shall not relieve the Contractor of the responsibility for any error or omission which may exist in the deliverable, as the Contractor is responsible for all requirements of this contract. The Contractor shall establish and maintain a secure website for posting an electronic copy of all deliverables listed in Section F. The Contractor shall allow only authorized Government and Contractor personnel to access the website. Government personnel access shall be limited to viewing and downloading of deliverables, but restricted from posting to the website. The Contractor shall notify the Government by email whenever there are new or updated deliverables posted to the website. Each deliverable posting on the website and each email notification shall include the title of the deliverable, the spec item requiring the deliverable, and the date and time the deliverable was posted. All deliverables shall be available to authorized Government personnel 24 hours/day and 365 days/year for the duration of the contract.
2.6.7	Service Interruptions	If any utilities or other services must be discontinued (even temporarily) due to scheduled contract work, the Contractor shall notify the KO, COR, affected tenants, and customers in accordance with Section F local procedures. If the discontinued service is due to an emergency breakdown the Contractor shall notify the KO, COR, affected tenants, and customers as soon as practicable and provide the status of repairs, as directed by the KO, until normal operation is restored. Scheduled utility outages and interruptions to equipment, system(s) operation, or other services shall be scheduled after hours of operation. The Contractor shall shutdown, restart, and perform operational checks on all equipment affected by both scheduled and unscheduled utility outages and service interruptions, at no additional cost to the Government.
2.6.8	NAVFAC Maximo-Not Used	NAVFAC Maximo is the Computerized Maintenance Management System (CMMS) used by the Government for work order history, asset management, and condition assessment. The Contractor shall provide all required data for NAVFAC MAXIMO as identified below:

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Spec Item	Title	Description
		Informational Note: Not all supported commands' assets are included in NAVFAC Maximo. Not all of the modules available within the Maximo application are utilized by NAVFAC and the modules utilized may not be fully implemented. NAVFAC Maximo does not include a detailed inventory of all assets, components, and equipment that the Contractor is required to service under this contract and may include inaccuracies, omissions, and redundancies.
2.6.8.1	NAVFAC Maximo Data- Not Used	
2.6.8.2	NAVFAC Maximo Method of Data Entry- Not Used	
2.6.8.3	NAVFAC Maximo Access- Not Used	
2.6.8.4	NAVFAC Maximo Training- Not Used	
2.6.9	Quality Management System (QMS)	The Contractor shall establish and maintain a complete QMS program in accordance with the provisions specified herein. The Contractor's QMS program shall provide an effective and efficient means of identifying and correcting problems throughout the entire scope of operations. The Contractor's QMS program shall address: • Accurate documentation of work processes, procedures, and output measures. • A systematic procedure for assessing compliance with performance objectives and standards. • Accurate documentation of quality inspections and surveillance conducted throughout the execution of work. • Assessment-driven corrective actions and process adjustments as appropriate in a timely manner.
2.6.9.1	Quality Management (QM) Plan	The Contractor shall develop and submit a QM Plan per Section F. The QM Plan shall describe the QMS methodology and approaches used under this contract. If any changes are made during the period of performance, the Contractor shall submit the revised QM Plan for acceptance, per Section F.

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Spec Item	Title	Description
		The Contractor's QM Plan shall include, at a minimum, the following: • Policy and objectives of Quality Management System (QMS) • Quality organization ○ List of personnel ○ Responsibilities & lines of authority ○ Training and qualifications • Approach to assuring quality of services provided and conformance with performance objectives and standards • Methods and procedures for effective planning, operation and control of processes and performance of work • Procedures for inspection and surveillance of services to include all contractual requirements. ○ Scheduling and performance of inspection and surveillance ○ Measurement, data collection and analysis ○ Corrective action, preventive action, and continuous improvement ○ Oversight of subcontracted work • Documentation and records management • Communication with government (customers)
2.6.9.2	Quality Inspection and Surveillance	The Contractor shall establish and maintain an inspection and surveillance system in accordance with the FAR Clause 52.246-4, INSPECTION OF SERVICES – FIXED PRICE, to ensure that the work performed conforms to the contract requirements. The Contractor shall document and maintain a file of all scheduled and performed inspections and surveillances, inspection and surveillance results, and dates and details of corrective and preventive actions. The quality inspection and surveillance file shall be the property of the Government and made available during the Government's regular working hours. The file shall be submitted to the COR after completion/termination of the contract per Section F.
2.6.9.3	Quality Inspection and Surveillance Report	The Contractor shall submit a copy of the Contractor Quality Inspection and Surveillance Report per Section F. The Contractor Quality Inspection and Surveillance Report shall include a narrative of events, a tabulated summary and results of the quality inspection and surveillance events performed, inspection-driven corrective actions taken and the results attained, and management process adjustments during the previous month. The Government may adjust the frequency of the submittal based on the Contractor's quality of performance.
2.6.10	Property Management Plan- Not Used	
2.6.11	System and Equipment	

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Spec Item	Title	Description
	Replacement-Not Used	
2.7	Personnel Requirements	The Contractor shall comply with the personnel requirements stated below:
2.7.1	Key Personnel	The Contractor shall submit a List of Key Personnel and Qualifications per Section F. The Contractor shall provide any additional information requested by the KO or COR necessary to validate their qualifications. The Contractor shall submit an Organizational Chart per Section F showing lines of authority of the key personnel and on-site supervisor(s) for this contract. The chart shall include names of personnel and their position title in this contract. As a minimum, include the PM, Quality Manager, SSHO, and on-site supervisor(s) and who they will report directly to for this contract. The key personnel shall be revised as applicable for the contract. The Contractor shall provide complete resumes for proposed substitutes and any additional information requested by the KO. Proposed substitutes shall have comparable qualifications to those of the persons being replaced. The KO will notify the Contractor within 15 calendar days after receipt of all required information of the consent on substitutions. No change in fixed unit prices may occur as a result of key personnel substitutions.
2.7.1.1	Project Manager (PM)	The Contractor shall provide a PM and designated alternate, as applicable, who shall have full authority to act for the Contractor on all contract matters relating to this contract. The PM or alternate shall be on-site during the Government's regular working hours and shall be available on-site within one hour after the Government's regular working hours. The PM shall have at least five years of experience in managing a workforce providing services on contracts of similar size, scope and complexity.
2.7.1.2	Quality Manager	The Contractor shall provide a Quality Manager or designated alternate who shall be on-site at all times when the Contractor is performing work during the Government's regular working hours and shall be available on-site within two hours after the Government's regular working hours. The Quality Manager or designated alternate shall report directly to a senior corporate official and shall not report directly to the Project Manager.

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Spec Item	Title	Description
		The Quality Manager or designated alternate shall have fulfilled the following pre-requisite training and experiences before being hired as the Quality Manager under this contract: The Quality Manager or designated alternate shall have at least five years of experience in preparing and enforcing QMS programs on contracts of similar size, scope and complexity. The Quality Manager or designated alternate shall not be the same person as the SSHO.
2.7.1.2.1	Quality Control Personnel	The Contractor shall provide Quality Control personnel whose primary duty and responsibility is to enforce the Contractor's Quality Management System on this contract. The Quality Control personnel shall be on-site at all times when the Contractor is performing work during the Government's regular working hours. The Quality Control personnel shall report directly to the Quality Manager and shall not report directly to the Project Manager. Quality Control personnel shall have fulfilled the following pre-requisite training and experiences before being hired as Quality Control under this contract: Quality Control personnel shall meet or exceed the qualifications, technical knowledge and experience requirements specified for the personnel performing the work, which they will be inspecting, and have at least three years of experience in enforcing QMS programs on contracts of similar size, scope and complexity.
2.7.1.3	Site Safety and Health Officer (SSHO)	The SSHO must meet the requirements of EM 385-1-1 Section 1 and ensure that the requirements of 29 CFR 1926.16 are met for the project. Provide a Safety oversight team that includes a minimum of one Competent Person at each project site to function as the Site Safety and Health Officer (SSHO). The SSHO or an equally-qualified Designated Representative/alternate shall be on-site at all times when work is being performed to implement and administer the Contractor's safety program and government-accepted Accident Prevention Plan. The SSHO's training, experience, and qualifications shall be as required by EM 385-1-1 paragraph 01.A.17, entitled SITE SAFETY AND HEALTH OFFICER (SSHO), and all associated sub-paragraphs.

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Spec Item	Title	Description
		A Competent Person shall be provided for all of the hazards identified in the Contractor's Safety and Health Program in accordance with the accepted Accident Prevention Plan, and shall be on-site at all times when the work that presents the hazards associated with their professional expertise is being performed. Provide the credentials of the Competent Persons(s) to the Contracting Officer for acceptance in consultation with the Safety Office. The Contractor shall provide a SSHO whose primary duty and responsibility is to prepare and enforce the Contractor's safety program on this contract. The SSHO shall have fulfilled the following pre-requisite training and experiences before being hired as the SSHO under this contract: The SSHO shall have completed five years of satisfactory experience in preparing and enforcing safety programs on contracts of similar size and complexity in the past or three years' experience if he possesses a Certified Safety Professional (CSP) or safety and health degree. The SSHO shall have completed the OSHA 30-hour construction safety class or equivalent and maintain competency through 24 hours of formal safety and health related coursework every four years. The SSHO shall not be the same person as the project manager.
2.7.1.4	Environmental/ Energy Manager	The Contractor shall provide an Environmental/Energy Manager whose primary duty and responsibility is to ensure Contractor operations adhere to the goals and policies of the Environmental Management System, the Installation Energy Plan, and other specified Sustainability requirements affecting this contract. The Environmental/Energy Manager shall develop, implement and monitor environmental strategies, policies and programs that promote sustainable development and examine the contract activities to establish where improvements can be made and ensure compliance with environmental legislation and energy policy. The Environmental/Energy Manager shall have a minimum two years' experience with environmental procedures similar to those of this contract; familiarity with Environmental Management Systems (EMSs); and knowledge of environmental regulations and federal energy laws and policy (including energy and water reduction requirements and renewable energy

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Spec Item	Title	Description
		requirements) that are applicable to operations similar to those of this contract.
2.7.2	Employee Requirements	The Contractor shall provide experienced, qualified, and capable personnel to perform the work in this contract. Personnel shall be fully knowledgeable of all safety, environmental, and energy requirements associated with the work they perform. Personnel shall speak, read, and comprehend English to the extent that they can perform the contract requirements and comply with installation emergency procedures.
2.7.2.1	Employee Certification and Training	The Contractor shall maintain personnel certification, training, and licensing records for employee requirements specified herein and within all technical annexes/sub-annexes. Certification, training, and licensing records shall be kept current and on file for the duration of the contract including all option periods. Records shall be made available for Government review within 4 hours of request. The Contractor shall ensure that all Contractor personnel have received proper safety training, appropriate to their respective jobs. At a minimum, all Contractor personnel shall have attended the OSHA 10-hour safety course, or equivalent. The Contractor shall implement an ongoing training program that refreshes the safety skills, qualifications and awareness of the Contractor workforce on a regular, periodic basis. The details of the Contractor's safety training program shall be included as part of the Contractor's Accident Prevention Plan, as required in Spec Item 2.9.2 below.
2.7.2.2	Employee Appearance	The Contractor shall ensure that all employees present a professional appearance that is appropriate for their position. The KO reserves the right to determine the acceptability of any clothing worn. All Contractor/subcontractor employees working under this contract shall be identified by a distinctive nameplate, emblem, or patch attached in a prominent place on an outer garment. Employee identification shall not be substituted for station required passes or badges.
2.7.2.3	Employee Conduct	Contractor employees shall conduct themselves in a proper, efficient, courteous and businesslike manner.
2.7.2.4	Identification as Contractor Employee	Contractor employees shall identify themselves as Contractor personnel by introducing themselves or being introduced as Contractor personnel and displaying distinguishing badges or other visible identification for meetings with Government personnel. All Contractor employees shall appropriately identify themselves as contractor employees in both verbal communication and electronic or written correspondence.

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Spec Item	Title	Description
2.7.2.5	Removal of Employees	The Contractor shall remove from the site any individual whose continued employment is deemed by the KO to be contrary to the public interest or inconsistent with the best interests of National Security.
2.7.2.6	Proof of Legal Residency	No employee or representative of the Contractor will be admitted to the site of work unless satisfactory Proof of Legal Residency is submitted per Section F.
2.7.3	Service Contract Reporting (SCR)	The Contractor shall report total dollar amount invoiced and all contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract via a secure data collection site. The contractor is required to completely fill in all required data fields using the following web address: https://www.sam.gov. Per Section F, reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk, linked at https://www.sam.gov.
2.8	Security Requirements	The Contractor shall comply with all Federal, state, and local security statutes, regulations, and requirements. The Contractor shall become acquainted with and comply with all Government regulations as posted, or as requested by the KO when required to enter a Government site. The Contractor shall ensure that all security/entrance clearances are obtained. The Contractor shall ensure that Contractor personnel do not present a risk to security. By entering the installation, Contractor personnel are subject to installation, state, local and federal regulations and laws, including but not limited to debarment and criminal prosecution.
2.8.1	Employee Listing	The Contractor shall maintain a current Employee List and submit per Section F. The list shall include employee's name, supervisor, company, and level of security clearance.
2.8.2	Vehicles	The company name shall be displayed on each of the Contractor's vehicles in a manner and size that is clearly visible. All vehicles shall display a valid state license plate that complies with State Vehicle Code. Vehicles shall meet all other requirement of the State Vehicle Code, such as safety standards, and shall carry proof of insurance and state registration, if applicable.

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Spec Item	Title	Description
2.8.3	Passes and Badges	All Contractor employees shall obtain the required employee and vehicle passes. The Contractor employees must be able to obtain Common Access Cards (CAC) in accordance with security requirements. Each employee shall wear the Government issued badge over the front of the outer clothing. When an employee leaves the Contractor's service, the employee's Passes and Badges shall be confiscated by the Contractor immediately and returned within 10 calendar days.
2.8.4	Access to Installation	All Contractor personnel shall obtain access to the installation through enrollment and registration into the Defense Biometric Identification System (DBIDS). The Contractor shall provide the KO with the name of their designated Service Contractor Administrator (SCA) for enrollment in DBIDS. Once enrolled, the Contractor must provide the DBIDS Registrar with an approved employee list and then direct their employees to register into DBIDS.
2.8.4.1	DBIDS Program	DBIDS is an enterprise identity management and perimeter installation access control solution in which Contractor personnel who enroll, and are approved, are subsequently granted access to the installation for a period up to three years, or the length of the contract, whichever is less, and are not required to obtain a new pass from the Base Pass and Identification Office for each visit. There are no fees associated with obtaining a DBIDS credential. The Government performs background screening and credentialing. Throughout the year, the Contractor employee must continue to meet background screening standards. Periodic background screenings are conducted to verify continued DBIDS participation and installation access privileges. DBIDS access privileges will be immediately suspended or revoked if at any time a Contractor employee becomes ineligible.
2.8.4.2	DBIDS Credentials	Contractor employees shall furnish a completed copy of the SECNAV 5512/1 form to obtain the required background check and visit the local Navy Installation Visitor Control Center to obtain a DBIDS credential once approved. The SECNAV 5512/1 form and additional information about DBIDS can be found at: https://www.cnmc.navy.mil/om/dbids.html. The Contractor may initiate the adjudication process when a background screen failure results in disqualification from participation in DBIDS and the Contractor employees do not agree with the reason for disqualification. The

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Spec Item	Title	Description
		Contractor may also apply for a waiver when a background screening failure results in disqualification from participation in DBIDS. The Commanding Officer will be the final waiver determination authority. The Contractor shall immediately collect employee DBIDS credentials and notify the KO in writing: (1) That an employee has departed the company without having properly returned or surrendered their DBIDS credentials. (2) That there is a reasonable basis to conclude that an employee, or former employee, might pose a risk, compromise, or threat to the safety or security of the installation or anyone therein.
2.8.5	Access to Buildings	The Contractor shall monitor and control access into restricted areas under their responsibility, allowing only those individuals who have been properly cleared into restricted areas or other controlled access areas. The Contractor shall comply with security requirements, plus those imposed by the installation Commander at all times. Personnel with access to restricted areas shall have the appropriate screening, and shall wear special badges authorizing access for those areas. Contractor personnel shall not enter restricted or controlled areas or installation facilities unless specifically authorized in performance of their duties. The Contractor shall secure all buildings and facilities entered during non-duty hours and will secure all building and facilities under the Contractor's cognizance at the end of each work day or shift period.
2.8.6	Access Arrangements	The Contractor shall make all arrangements through the appropriate office necessary to obtain access to buildings, facilities and other work areas, and when necessary, arrange for them to be opened and closed by the controlling authority. The Government may issue keys to the Contractor. The Contractor shall use due diligence and be responsible for compromised security systems to include replacement costs that result from its action or inaction.
2.8.6.1	Escort Arrangement for Secured Areas	The Contractor shall make arrangements for Government escort into secured areas requiring escort. The KO will provide information on applicable buildings, spaces and the appropriate point of contact. The Contractor may experience delays while waiting for escorts. The Government estimates the wait period can be up to 15 minutes. The Contractor shall notify the Government Performance Assessment Representative (PAR) and appropriate point of contract if an escort is not available after 15 minutes and access to accomplish the work is denied.

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Spec Item	Title	Description
		Unscheduled requirements, e.g., trouble calls, may require a longer wait for an escort.
2.8.7	Security Clearances	The Contractor shall obtain all required corporate and personnel Security Clearances, prior to commencement of work, at no additional cost to the Government. The Contractor shall ensure that a list of all personnel with Security Clearances is maintained current, including clearances that are pending.
2.8.8	Access to Controlled Unclassified Information	The Contractor personnel whose work involves access to controlled unclassified information shall undergo a Tier 3 Investigation to verify their trustworthiness. If the Contractor personnel currently have a favorably adjudicated Tier 3 Investigation the Contractor shall notify the Government Command Security Manager who will validate this in the Joint Personnel Adjudication System (JPAS). The Contractor shall request from the Government for access to the E-QIP Direct program for the Contractor employees to complete the SF-86 form on line for a Tier 3 Investigation. The Security Manager will determine suitability. Upon a favorable Tier 3 Investigation, the Contractor personnel shall submit the original signed release statements, and an OF-306 Declaration for Federal Employment to the Security Manager per Section F. Upon submission of the necessary documentation through E-QIP, the Contractor Employee shall provide digital fingerprints. The Contractor's Security POC shall notify the COR and the Security Manager when Contractor Employees have submitted their fingerprints. The request shall be renewed annually or for the duration of the contract if less than one year.
2.8.9	Access to Government Information Technology (IT), Operation Technology (OT), and Facility Related Control Systems (FRCS)	Personnel accessing Government IT and OT systems to include but not limited to Maximo, DMLSS, DDC, and SCADA are in positions considered Non-Critical Sensitive/IT-II and require a Tier 3 investigation to verify their trustworthiness. Prior to being granted access to Government IT, OT, and FRCS systems, personnel shall have a favorably adjudicated Tier 3 Investigation, obtain a CAC in accordance with security requirements, successfully complete required training, submit a Systems Authorization Access Request (SAAR) Form, and meet all eligibility requirements.

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		Personnel accessing Government IT, OT, and FRCS systems shall complete annual required training such as cyber assurance awareness, information security (INFOSEC) awareness, and operations security (OPSEC) awareness. The Contractor shall submit a list of personnel requiring access to Government IT, OT, and FRCS systems per Section F.
2.8.10	Access to Navy Marine Corps Intranet (NMCI)	The Contractor may be required to access Navy Marine Corps Intranet (NMCI). Prior to being granted access to NMCI, Contractor employees shall obtain a CAC in accordance with security requirements, successfully complete required training, submit a Systems Authorization Access Request (SAAR) Form, and meet all eligibility requirements.
2.8.11	Employee Status	The Contractor shall notify the KO of any changes to any employee's status to include, but not limited to, termination, convictions/arrests, adverse actions taken on the job for any reason or any other documented misbehavior that may affect, or have the potential to affect, security standing in terms of access to federal facilities or IT systems.
2.9	Contractor Safety Program	The Contractor shall develop and implement a Safety Program detailing how the Contractor plans, staffs, performs, and controls all safety practices while delivering best value services to the Government without any accidents or mishaps. The Contractor's safety program shall comply with all safety standards identified in the U.S. Army Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1, UFC 3-560-01 Operation and Maintenance Electrical Safety, and Public Law 91-596, Occupational Safety and Health Act. Any reference to "USACE" facilities, property, or equipment specified in EM 385-1-1 should be interpreted as Government facilities, property, and equipment.
2.9.1	Contractor Safety Requirements	Neither Contractor nor any subcontractor may enter into contract with any subcontractor that fails to meet the below requirements. The term subcontractor in this and the following paragraphs means any entity holding a contract with the Contractor or with a subcontractor at any tier.
2.9.1.1	Experience Modification Rate (EMR)	Subcontractors on this contract must have an effective EMR less than or equal to 1.10, as computed by the National Council on Compensation Insurance (NCCI) or if not available, as computed by the state agency's rating bureau in the state where the subcontractor is registered, when entering into a

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		subcontract agreement with the Prime Contractor or a subcontractor at any tier. The Prime Contractor may submit a written request for additional consideration to the Contracting Officer where the specified acceptable EMR range cannot be achieved. Relaxation of the EMR range will only be considered for approval on a case-by-case basis for special conditions and must not be anticipated as tacit approval. Contractor's Site Safety and Health Officer (SSHO) must collect and maintain the certified EMR ratings for all subcontractors on the project and make them available to the Government at the Government's request.
2.9.1.2	OSHA Days Away From Work, Restricted Duty, or Job Transfer (DART) Rate	Subcontractors on this contract must have a DART rate, calculated from the most recent, complete calendar year, less than or equal to 3.4 when entering into a subcontract agreement with the Prime Contractor or a subcontractor at any tier. The Prime Contractor may submit a written request for additional consideration to the Contracting Officer where the specified acceptable OSHA Dart rate range cannot be achieved for a particular subcontractor. Relaxation of the OSHA DART rate range will only be considered for approval on a case-by-case basis for special conditions and must not be anticipated as tacit approval. Contractor's Site Safety and Health Officer (SSHO) must collect and maintain self-certified OSHA DART rates for all subcontractors on the project and make them available to the Government at the Government's request.
2.9.2	Accident Prevention Plan (APP)	The Contractor shall develop and implement a site Accident Prevention Plan (APP). The APP shall be prepared by the Contractor's SSHO and shall be followed by all Contractor employees, subcontractors, and vendors at each service site. The APP shall follow the abbreviated format and include, as a minimum, elements addressed in paragraph 3.k. of Appendix A of EM 385-1-1. The Contractor shall submit an APP for acceptance per. The Contractor shall review, update, and submit revisions to the APP whenever a change in work conditions, hazards, or activities occur. Submittal of the APP shall include Activity Hazard Analyses (AHAs) and applicable compliance plans, programs, and procedures as specified below.

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		The Contractor shall not commence work until the APP has been accepted and no activity shall be started on site until the applicable AHAs and compliance plans have been accepted. Once accepted by the Contracting Officer, the APP and attachments will be enforced as part of the contract. Disregarding the provisions of this contract or the accepted APP will be cause for stopping of work, at the discretion of the Contracting Officer, until the matter has been rectified.
2.9.3	Activity Hazard Analysis (AHA)	The Contractor shall prepare Activity Hazard Analyses (AHAs) for all applicable common recurring work activities performed under this contract. AHAs for recurring work shall be submitted with the APP and shall be updated as work activities or conditions change and additional AHAs prepared as new work activities are required. AHAs for non-recurring and one-time (e.g., non-recurring work task orders) work occurrences shall be submitted at least two working days prior to start of work per Section F. Specifically: • For contract modifications to recurring work requirements where changes are germane to the original contract, the Contractor shall revise applicable AHAs within 15 calendar days after modification is signed. • For contracts with non-recurring work ELINs, the Contractor shall submit an AHA on non-recurring work task orders, with the associated proposal, whenever the service environment or required task is different from the recurring work priced services. • For contracts with non-recurring work task orders placed on the non-recurring work portion of contract outside of the pre-priced non-recurring ELINs scope, the Contractor shall submit a separate AHA for each task order with the associated proposal. The Contractor shall follow the Risk Management Process for the development of Activity Hazard Analysis (AHA) in accordance with paragraph 01.A.14 and Appendix A of EM 385-1-1. A formatted outline of an AHA is provided in Figure 1-2 of EM 385-1-1. During performance of services, the SSHO shall periodically review the AHA at each service site and for each sub-annex to assess the effectiveness of the

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		Contractor's overall APP. If changes to the AHAs are required, such changes shall be submitted to the KO for review and acceptance.
2.9.4	Safety and Occupational Health (SOH) Risks and Compliance Plans	Based on a risk assessment of recurring and non-recurring work requirements and on mandatory OSHA compliance programs, the Contractor shall develop, provide and implement all applicable compliance plans, as necessary for the situation or types of work to be performed under this contract. Compliance plans, programs, and procedures along with their respective references are detailed in Appendix A, paragraph 3.i of EM 385-1-1. These plans shall be submitted with the APP and shall be updated as situations change per section F. Additional compliance plans, programs, and procedures shall be developed as applicable when new types of work are required under this contract. Additional requirements for specific compliance plans are provided below.
2.9.4.1	Alcohol and Drug Abuse Prevention Plan	The Contractor shall develop an alcohol and drug abuse prevention plan to explain how it will satisfy the drug-free work force requirement as stated in DFARS Clause 252.223-7004 and include elements addressed in paragraph 01.C.02 of EM 385-1-1.
2.9.4.2	Chemical Hazard Communication Program	The Contractor shall develop a project-specific chemical hazard communication program to include elements addressed in paragraph 06.B.01 of EM 385-1-1 and applicable OSHA requirements in 29 Code of Federal Regulations (CFR) 1910.120 and 29 CFR 1926.59.
2.9.4.3	Confined Space Program	The Contractor shall develop an activity/site-specific confined space program to include elements addressed in paragraph 34.A of EM 385-1-1 and comply with relevant requirements in 29 CFR 1910, 29 CFR 1915, and 29 CFR 1926, OSHA Directive CPL 2.100 and any other Federal, state and local regulatory standards.
2.9.4.4	Critical Lift Plan	The Contractor shall develop a critical lift plan to explain how it will conduct lifts for any of the following conditions: 1) Lifts over 75 percent of the capacity of the crane or hoist (or lifts over 50 percent of the capacity of a barge mounted mobile crane's hoists) at any radius of lift; 2) Lifts involving more than one crane, hoist, or LHE 3) Lifts of personnel;

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		4) Lifts involving non-routine rigging or operation, sensitive equipment, or unusual safety risks 5) Lifts involving hazardous materials (e.g., explosives, highly volatile substances); 6) Lifts where the center of gravity could change; 7) Lifts without the use of outriggers using rubber tire load charts; 8) Lifts using more than one hoist on the same crane, hoist, or LHE; 9) Lifts involving Multiple Lift Rigging (MLR) Assemblies or other non-routine or technically difficult rigging arrangements; 10) Lifts involving submerged loads. Exception: lifts that were engineered to travel in guided slots throughout the lift and have fixed rigging and/or lifting beams, i.e., intake gates, tailgates/logs); 11) Lifts out of the operator's view. (Exception: if hand signals used by a signal person in view of the operator or radio communications are available and in use, load does not exceed two tons AND is determined a routine lift by the lift super.) The critical lift plan shall include elements addressed in paragraph 16.H of EM 385-1-1, paragraph 1.7.2 of NAVFAC P-307, and comply with requirements in ASME B30.22, ASME B30.3; ASME B30.5, and ASME B30.8. The Contractor shall complete and maintain a copy of the Crane Operating Checklist For Critical Lifts, provided within the Forms in J-0200000-05, for each lift.
2.9.4.5	Fall Prevention and Protection Plan	The Contractor shall develop a site specific fall prevention and protection plan to protect and prevent its service workers from falling from heights of 1.8m (6 feet) or more. This plan shall include elements addressed in paragraph 21.D of EM 385-1-1 and ANSI A10.32, ANSI Z359.1, and ANSI/ASSE A10.34. The fall prevention and protection plan shall include a Rescue and Evacuation Plan in accordance with EM 385-1-1, Section 21.N. A competent person for fall protection shall prepare and sign the plan.

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2.9.4.6	Pathogen Exposure	The Contractor shall comply with 29 CFR-1910.1030 at all times if personnel are performing work where they may be exposed to blood or other potentially infectious materials. The Contractor shall develop an Exposure Control Plan. This plan shall comply with 29 CFR-1910.1030, be reviewed annually to ensure compliance, and be accessible to employees. Employees required to access areas subject to higher exposure risk (such as hospitals, clinics, and laboratories) shall submit to all required testing and receive vaccinations as required by the installation.
2.9.4.7	Control of Hazardous Energy (lockout/tag out)	The Contractor shall establish a program and utilize procedures for affixing appropriate lockout devices or tag out devices to energy isolating devices, and to otherwise disable machines or equipment to prevent unexpected energization, start up or release of stored energy to ensure compliance with 29 CFR 1910.147. The Contract shall submit a report of their periodic inspection of the energy control procedure that ensures the procedures and the requirements of 29 CFR 1910.147 are being followed per Section F.
2.9.5	Crane Operations	All operations of Cranes, Multi-Purpose Machines and Material Handling Equipment shall comply with EM 385-1-1, NAVFAC P-307, 29 CFR Part 1910, and 29 CFR Part 1926. The Contractor shall comply with paragraph 1.7.2 of NAVFAC P-307 and notify the Contracting Officer at least 24 hours prior to bringing any crane (including delivery vehicles with crane boom attachments), multi-purpose machines, material handling equipment, or construction equipment that may be used in a crane-like application to lift suspended loads on board a Navy Installation. Written documentation of the last weight test of the crane and all related weight handling equipment (e.g. attachments, rigging gear, etc.) shall be maintained on site. A joint verification with the Government representative must be performed to ensure that a legible and indelible completed copy of Appendix P, Figure P-1 of NAVFAC P-307 is maintained on the crane, multi-purpose machine, and material handling equipment or construction equipment used in a crane-like application to lift suspended loads. The following certification and testing

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		documentation shall be on site prior to entry and use on any Navy Installation: 1) Crane, multi-purpose machine, material handling equipment or construction equipment used in a crane-like application to lift suspended load certification 2) Load testing 3) Yearly, monthly and daily inspection logs 4) Rope/sling certifications 5) Operator certifications/designations 6) Designation of person performing log inspections 7) Cranes that are permanently located on a Navy Installation shall have a quarterly joint verification.
2.9.5.1	Crane Inspections	The Contractor shall ensure all inspections are performed in accordance with EM 385-1-1, NAVFAC P-307, 29 CFR Part 1910, and 29 CFR Part 1926 (daily, monthly, quarterly, yearly), and retain the current documentation of inspections. Documents shall be kept on site. Daily pre-use inspections and testing shall be performed on all load hoisting and lowering mechanisms, boom hoisting and lowering mechanisms, swinging mechanisms, travel mechanisms (if to be used that day), and safety devices. Cranes that have to be re-rated shall be in accordance with SAE Recommended Practices, Crane Load Stability Test Code J765 and documentation maintained on site. The Contractor shall have an operational anti-two block device or a two-block damage prevention feature for all points of two blocking and a boom hoist disconnect, shutoff, or hydraulic relief to automatically stop the boom hoist when the boom reaches a predetermined high angle.
2.9.5.2	Rigging Gear	The Contractor shall ensure rigging gear and below the hook lifting devices and personnel comply with the following requirements: 1) Personnel performing rigging shall have an understanding of all signs, notices, and operating instructions, and be familiar with the applicable hand signals prescribed by the ASME B30 standard for the type of crane in use. 2) Personnel performing rigging shall be familiar with the rigging requirements in EM 385-1-1, NAVFAC P-307, 29 CFR Part 1910, and 29 CFR Part 1926.

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		3) The Contractor shall inspect rigging gear in accordance with EM 385-1-1, NAVFAC P-307, 29 CFR Part 1910, and 29 CFR Part 1926 and paragraph 1.7.2 of NAVFAC P-307. Certification records shall be made available for review upon request.
2.9.5.3	Crane Operators	Crane operators shall meet the personnel qualifications requirements in paragraph 16.B of EM 385-1-1 and paragraph 1.7.2 of NAVFAC P-307. For mobile cranes with Original Equipment Manufacturer (OEM) rated capacities of 2,000 pounds or greater, designate crane operators as qualified by a source that qualifies crane operators (i.e., union, a government agency, or an organization that tests and qualifies crane operators).
2.9.6	Accident and Damage Reporting	The Contractor shall notify the Contracting Officer as soon as practical, but no more than four hours after any accident meeting the definition of Recordable Injuries or Illnesses or High Visibility Accidents, property damage equal to or greater than \$2,000, or any Weight Handling Equipment (WHE) accident. Notification shall also be provided for any mishap occurring in any of the following high hazard areas: electrical (to include Arc Flash, electrical shock, etc.); uncontrolled release of hazardous energy (includes electrical and non-electrical); weight or load handling equipment (LHE) or rigging; fall-from-height (any level other than same surface); and underwater diving. These mishaps shall be investigated in depth to identify all causes and to recommend hazard control measures. Within notification include Contractor name; contract title; type of contract; name of activity, installation or location where accident occurred; date and time of accident; names of personnel injured; extent of property damage, if any; extent of injury, if known, and brief description of accident (to include type of equipment used, PPE used, etc.). Preserve the conditions and evidence on the accident site until the Government investigation team arrives on-site and Government investigation is conducted. The Contractor shall conduct an accident investigation for recordable injuries and illnesses, for accidents requiring Medical Treatment, property damage accidents resulting in at least \$20,000 in damages, and near misses as defined in EM 385-1-1, to establish the root cause(s) of the accident. The Contractor shall complete the applicable NAVFAC Contractor Incident Reporting System (CIRS), and electronically submit via the NAVFAC Enterprise Safety Applications Management System (ESAMS) per Section F. Required or special forms are provided within the Forms in J-0200000-05.

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		For any weight handling equipment accident (including rigging gear accidents) the Contractor shall conduct an accident investigation to establish the root cause(s) of the accident and comply with additional requirements and procedures for accidents in accordance with NAVFAC P-307, Section 12. The Contractor shall submit a WHE Accident Report (Crane and Rigging Gear) per Section F. No crane operations are allowed to proceed until cause is determined and corrective actions have been implemented to the satisfaction of the Contracting Officer. For a near miss, the Contractor shall complete the applicable documentation in NAVFAC Contractor Incident Reporting System (CIRS), and electronically submit via the NAVFAC Enterprise Safety Applications Management System (ESAMS) per Section F. For a near miss involving crane or rigging operations, the Contractor shall report verbally to the Contracting Officer as soon as management becomes aware but not later than 4 hours of such event and comply with additional requirements and procedures for near-misses in accordance with NAVFAC P-307, Section 12. A near miss occurs when an accident was avoided by mere chance or when intervention prevented an ongoing sequence of events that would have resulted in an accident (e.g. unplanned encroachment, improper crane set-up, improperly rigged load, etc.). The Contractor shall submit a Crane and Rigging Gear Near Miss Report per Section F.
2.9.6.1	Accident Reporting and Notification Criteria	The following criteria and definitions apply to the accident reporting requirements specified above: Recordable Injuries or Illnesses. Any work-related injury or illness that results in: 1) Death, regardless of the time between the injury and death, or the length of the illness; 2) Days away from work (any time lost after day of injury/illness onset); 3) Restricted work; 4) Transfer to another job; 5) Medical treatment beyond first aid; 6) Loss of consciousness; or 7) A significant injury or illness diagnosed by a physician or other licensed health care professional, even if it did not result in (1) through (6) above.

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		High Visibility Accident. Any mishap which may generate publicity or high visibility. Medical Treatment. Treatment administered by a physician or by registered professional personnel under the standing orders of a physician. Medical treatment does not include first aid treatment even through provided by a physician or registered personnel. WHE Accident. A WHE accident occurs when any one or more of the eight elements in the operating envelope fails to perform correctly during operation, including operation during maintenance or testing resulting in personnel injury or death; material or equipment damage; dropped load; derailment; two-blocking; overload; or collision, including unplanned contact between the load, crane, or other objects. A dropped load, derailment, two-blocking, overload and collision are considered accidents even though no material damage or injury occurs. A component failure (e.g., motor burnout, gear tooth failure, bearing failure) is not considered an accident solely due to material or equipment damage unless the component failure results in damage to other components (e.g., dropped boom, dropped load, roll over, etc.)
2.9.7	Fire Protection	The Contractor shall know where fire alarms are located and how to activate them. The Contractor shall handle and store all combustible supplies, materials, waste and trash in a manner that prevents fire or hazards to persons, facilities, and materials.
2.9.8	Monthly On-Site Labor Report	The Contractor shall submit a Monthly On-Site Labor Report per Section F following the format provided in J-0200000-05. This report is a compilation of employee-hours worked each month for all site workers, both prime and subcontractor. Monthly On-Site Labor Report shall be provided unprotected and capable of being sorted to the ELIN/Sub-ELIN level.
2.9.9	OSHA Citations and Violations	The Contractor shall correct violations and citations promptly and submit a copy of each OSHA citation and OSHA report with written OSHA Citations and Violations Corrective Action Report per Section F.

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2.9.10	Safety Inspections and Monitoring	The Contractor shall conduct inspections of its work areas, job sites, and work crews every day work is being performed to ensure that all Contractor operations are being conducted safely. These inspections shall ensure: The site is safe and free of job-site hazards • Proper PPE is being utilized and worn. • Safe work practices and processes are being followed. • Workers are familiar with the hazards covered in the respective AHA for that work activity. • All equipment and tools are in good condition and being used safely. The Government reserves the right to inspect and monitor Contractor operations for safety compliance. In general, the Government approach will be to conduct Performance Assessment on the quality and effectiveness of the Contractor's safety program. The Government reserves the right to stop any work activity when it deems danger is imminent. Contractor personnel shall work in a safe manner and comply with all applicable safety regulations. The Contractor shall be subject to safety inspections of its work sites by the Government. Contractor safety records shall be available to the KO upon request. Whenever the KO becomes aware of any safety noncompliance or any condition which poses a serious or imminent danger or hazard to the health or safety of the public or Government Personnel, the KO will notify the Contractor orally, with written confirmation, and request immediate corrective action. This notice, when delivered to the Contractor's representative or SSHO, shall be deemed sufficient notice of noncompliance and that corrective action is required. After receiving this notice, the Contractor shall immediately take corrective action. If the Contractor fails, delays, or refuses to promptly take corrective action, the KO may issue a stop work order for all or part of the services or work until satisfactory corrective action has been taken. Whenever such a stop work order has been issued, the Contractor shall waive all equitable adjustments to the contract related to the stop work ordered issued. The Contractor shall include this requirement in all of its subcontracts and vendor contracts in support of contract safety. The Contractor shall submit a copy of the Contractor Safety Inspection and Monitoring Report per Section F. The Contractor Safety Inspection and Monitoring Report shall include a narrative of significant events; a tabulated summary and results of the safety inspection and monitoring events

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		performed; inspection-driven corrective actions taken and the results attained; and management process adjustments during the previous month.
2.9.11	Safety Certification	The Contractor shall submit copies of all the required Federal, state, county, city and industry Safety Certifications for work performed under this contract per Section F. These certifications shall be kept up to date by the Contractor. The Contractor shall submit new versions of certifications as the old certifications expire. No work, that requires a certification, shall start without a valid and approved certification.
2.9.12	Safety Apparel on Jobsites	The Contractor personnel shall wear appropriate high-visibility safety apparel meeting ANSI/ISEA 107-2010 and DOT regulations for traffic control. Appropriate garment shall be based on the worker hazards and tasks, complexity of the work environment or background, and vehicular traffic and speed. As a minimum, the Contractor personnel shall wear ANSI/ISEA 107-2010 Class I compliant apparel.
2.9.13	Emergency Medical Treatment	Contractors will arrange for their own emergency medical treatment. The Government has no responsibility to provide emergency medical treatment.
2.9.14	Excavations	Soil classification must be performed by a competent person in accordance with 29 CFR 1926 and EM 385-1-1. The Contractor shall provide a third party, independent, private utility locating company to positively identify underground utilities in the work area in addition to any station locating service and coordinated with the station utility department. The Contractor shall physically verify underground utility locations, including utility depth, by hand digging using wood or fiberglass handled tools when any adjacent work is expected to come within 3 feet of the underground system. Utilities located within and under concrete slabs or pier structures, bridges, parking areas, and the like, are extremely difficult to identify. Whenever contract work involves chipping, saw cutting, or core drilling through concrete, bituminous asphalt or other impervious surfaces, the existing utility location shall be coordinated with station utility departments in addition to location and depth verification by a third party, independent, private locating company. The third party, independent, private locating company must locate utility depth by use of Ground Penetrating Radar (GPR), X-ray, bore scope,

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		or ultrasound prior to the start of work. Outages to isolate utility systems must be used in circumstances where utilities are unable to be positively identified. The use of historical drawings does not alleviate the Contractor from meeting this requirement.
2.10	Environmental Management and Sustainability	The Contractor shall perform work under this contract consistent with the Installation's Environmental Management System (EMS) goals and policy. Goals: • Reduce purchase and use of toxic and hazardous materials; • Expand purchase of green products and services; increase recycling; • Reduce energy and water use; • Increase use of alternative fuels and renewable energy; • Integrate green building concepts in major renovations and new construction; • Prevent pollution at the source; and • Continual improvement. Policy: • Protect public health and the environment by being an environmentally responsible member of the community; • Preserve our natural, historic and cultural resources; • Conserve natural resources by reducing what we discard, reusing items, and recycling materials, which includes purchasing products made from recycled materials; • Integrate sound environmental practices into all our operations and business decisions; Integrate environmental protection requirements and pollution prevention initiatives into the early planning, design and procurement of facilities, equipment and material, as well as the planning and implementation of military training activities; • Prevent or minimize pollution at its source as we seek out ways to eliminate or further minimize use of hazardous materials and generation of hazardous waste; • Maintain a sound partnership with regulatory agencies to sustain our compliance with existing and new environmental laws and regulations; • Enhance our program as we develop and implement an Environmental Management System; and • Adhere to this policy, remind one another to do so, and ensure that our entire community knows this is our policy by our actions as well as our words. The Contractor shall maintain monitoring and measurement information to address the EMS goals and policy and provide the EMS Goals and Policy

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		Measurement Information to the KO per Section F. In the event an EMS nonconformance or environmental noncompliance associated with the contracted services, tasks, or actions occurs, the Contractor shall take corrective actions, assume legal and financial liability for the noncompliance and take corrective action immediately to remedy the noncompliance. The Contractor shall ensure that its employees are aware of their roles and responsibilities under the EMS and how these EMS roles and responsibilities affect work performed under the contract.
2.10.1	Energy Management Program	The Contractor shall comply with the installation's energy management program. The Contractor PM, or designee, shall represent the Contractor's interest at all meetings of the activity's Energy Management Board. The Contractor shall attend periodic meetings with the Installation Energy Manager, where energy and water efficiency goals and project status will be discussed to ensure that any Contractor work complements and optimizes efficiency efforts.
2.10.1.1	Water Conservation Plan	The Contractor shall develop, submit and implement a Water Conservation Plan per Section F.
2.10.1.2	Energy Efficient Products	The Contractor shall use life-cycle cost analysis in making decisions about investments in products, services, construction and other projects to lower Federal Government's costs and reduce energy consumption. The Contractor shall elect lifecycle cost effective Energy Star and other energy-efficient products when acquiring energy-using products. For product groups where Energy Star labels are not yet available, select products that are in upper 25 percent of energy efficiency as designated by the Federal Energy Management Program. Use of high-energy consuming tools or equipment is subject to approval by the KO prior to use.
2.10.2	Environmental Protection	The Contractor shall comply with all applicable Federal, state, and local laws, regulations, and executive orders, and with base-wide instructions, standards, and permit requirements. All environmental protection matters shall be coordinated with the KO. Inspection of Contractor operated facilities may be conducted by the Installation Environmental Protection Coordinator or other authorized officials on a no-notice basis. The Contractor shall comply with the instructions of the cognizant Navy Medical Department with respect to avoidance of conditions which create a nuisance or which may be hazardous to the health of military or civilian personnel. The Contractor is responsible for ensuring that its employees receive applicable environmental and occupational health and safety training, and are kept up to date on all required regulatory and specific training for the type of work to be conducted onsite.

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		All on-site Contractor personnel, and their subcontractor personnel, performing tasks that have the potential to cause an impact to the environment shall be competent on the basis of appropriate education, training or experience. The Contractor shall develop, submit, and implement an Environmental Protection Plan per Section F.
2.10.2.1	Sampling, Testing and Laboratory Services	The Contractor shall develop a written training plan and documentation of training for all sampling, testing, and laboratory personnel to demonstrate technical proficiency. The Contractor shall develop a written sampling plan for each sampling event and submit per Section F. The sampling plan shall summarize what will be sampled, the sampling equipment expected to be used and the number and location of samples expected to obtain a representative sample. The Contractor shall re-sample, test and obtain laboratory analysis upon request and submit results per Section F, at no additional cost to the Government. Laboratory shall be certified by the District of Columbia, State of Maryland, and Commonwealth of Virginia for the specific analytical procedure in accordance with all Federal and State regulations.
2.10.2.2	ODS Requirements for Refrigerant Recycling	<u>Not Applicable</u>
2.10.2.3	Solid Waste Management and Recycling	The Contractor shall comply with the installation's Solid Waste Management Plan(s) and OPNAVINST 5090.1 series for Contractor generated waste. The Contractor shall submit Solid Waste Management Reports per Section F. The Solid Waste Management Reports Form is provided within the Forms in J-0200000-05. The Contractor shall recycle concrete, scrap metal, tires, wooden pallets, cardboard, asphalt, yard waste and submit annual Summary Solid Waste Management and Recycling report with recycling weight ticket receipts per Section F.
2.10.2.4	Non-Regulated Waste Disposal	The Contractor shall dispose all wastes in accordance with all applicable Federal, state, and local laws, regulations, and executive orders, and with base-wide instructions, standards, and permit requirements.

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		All non-regulated waste shall be disposed of in accordance with all applicable Federal, state, and local laws, regulations, and instructions Disposal of all non-regulated debris and rubbish resulting from the work under this contract shall comply with the federal regulations in 40 CFR Part 258 (Subtitle D of RCRA), or equivalent state regulations and be disposed of at appropriate off installation waste handling facilities.
2.10.2.5	Regulated Waste Disposal	The Contractor shall dispose of regulated waste in accordance with the Resource Conservation and Recovery Act and all other applicable Federal, state and local laws, regulations and instructions, such as: 40 CFR, OPNAVINST 5090.1, SOPA (ADMIN) MYPTINST 5090.1, etc. Variations in Rate: Disposal rates are subject to change. Changes in the disposal rates shall not be basis for adjustment to the contract price or a claim unless the deviation from the quoted price exceeds 15%. When the disposal rates vary by more than 15%, the contract price will be adjusted to reflect the amount the actual charge exceeds the rate quoted; however, the Government will only be liable for the amount of cost exceeding 15% of the rate quoted. For example, if a quoted rate increases by 16%, the Government will only be liable for 1% of the rate increase. Vice versa if the quoted rate decreases by 16%. The Contractor shall provide waste stream determinations, per 40 CFR and complete Waste Stream Determination forms for each of the Contractor's processes that generates regulated waste. Waste Stream Determination forms shall be submitted per Section F.
2.10.2.6	Universal Waste	The Contractor shall collect and manage all Universal Waste generated under the performance of this contract in accordance with the applicable Federal, state and local laws, regulations and instructions, such as: 40 CFR, the installation's 5090.1 instruction, etc.

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Spec Item	Title	Description
2.10.2.7	Spill Prevention, Containment, and Clean-up	The Contractor shall prevent, contain, clean up, and report all spills on Government property caused by the Contractor, in a manner that complies with applicable Federal, state, and local laws and regulations and with the Installation Hazardous Waste Management Plans; and Spill Prevention, Control, and Countermeasure Plans provided in J-0200000-08 at no additional cost to the Government. The Contractor shall notify the Regional Dispatch Center within 15 minutes of discovery of a spill per Section F. The Contractor shall notify the KO as soon as possible but not more than 24 hours after spill. Spill reports shall be submitted within 48 hours per Section F.
2.10.2.8	Hazardous Material Management	The Contractor shall support the Consolidated Hazardous Material Reutilization and Inventory Management Program (CHRIMP). The Contractor shall submit an Emergency Planning and Community Right to Know Act (EPCRA) Report and Contractor Hazardous Material Inventory Log per Section F following the format provided in J-0200000-09. The Contractor shall receive approval from the KO prior to bringing hazardous material on Government Property or prior to any other use in conjunction with this contract. For approval to use any hazardous material, allow a minimum of 10 working days for processing the request. The Contractor shall post Safety Data Sheets (SDS) at the worksite where the products are being used. Should the Government determine that a chemical the Contractor will use needs to be tracked, the Government may direct the Contractor to submit additional information in order to fulfill reporting requirements. The Contractor shall ensure that procedures are in place to deal with hazardous materials, pursuant to the FAR Clause 52.223-3, HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA.

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Spec Item	Title	Description
		Notwithstanding any other hazardous material used in this contract, radioactive materials or instruments capable of producing ionizing/non-ionizing radiation (with the exception of radioactive material and devices used in accordance with EM 385-1-1 such as nuclear density meters for compaction testing and laboratory equipment with radioactive sources) as well as materials which contain asbestos, mercury or polychlorinated biphenyls, di-isocyanates, lead-based paint are prohibited. The Contracting Officer, upon written request by the Contractor, may consider exceptions to the use of any of the above excluded materials. Low mercury lamps used within fluorescent lighting fixtures are allowed as an exception without further Contracting Officer approval. Notify the Radiation Safety Officer (RSO) prior to excepted items of radioactive material and devices being brought on base.
2.10.2.9	Protection of Endangered and Threatened Species (Flora and Fauna)	The Contractor shall not disturb endangered and threatened species and their habitat. The Contractor shall carefully protect in-place and report immediately to the KO endangered and threatened species discovered in the course of work. The Contractor shall stop work in the immediate area of the discovery until directed by the KO to resume work.
2.10.2.10	Noise Control	The Contractor shall comply with all applicable Federal, state and local laws, ordinances, and regulations relative to noise control.
2.10.2.11	Salvage	All material and equipment removed or disconnected that is sound and of value shall remain the property of the Government. The Contractor shall deliver this material and equipment at the Contractor's expense to areas determined site specific KO /COR.
2.10.2.12	Asbestos Containing Material (ACM)	Asbestos containing insulation, flooring, and other building materials may be encountered by the Contractor during the performance of work under this contract, and the Contractor shall remain alert to this possibility. If ACM is encountered or suspected in the performance of work, the Contractor shall avoid removing, sanding, abrading, or disturbing the material. The Contractor shall verbally notify the KO within one hour and submit a written ACM Notification within 24 hours per Section F.
2.10.2.13	Air Quality	The Contractor shall comply with CAA reporting requirements established by Federal, state and local laws, regulations and instructions. The Contractor shall track all Hazardous Air Pollutants (HAPs) used in contract maintenance and repair operations. The Contractor shall provide HAP data monthly, including Subcontractors, for application of coatings,

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Spec Item	Title	Description
		solvents (including stripping solvents), adhesives, and other volatile organic compounds and/or HAPs containing material to miscellaneous parts in booths, buildings, hangars, ships, and open air surface coating operations, per Section F. A sample HAP tracking form is provided within the Forms in J-0200000-05 The Contractor shall track Hazardous Air Pollutants on a monthly rolling average and submit semi-annual reports per Section F.
2.10.3	Sustainable Procurement and Practices	The Contractor shall develop, submit, and implement a Sustainable Procurement and Practices Plan per Section F. This plan shall identify how the Contractor will comply with all applicable Federal, state and local laws and regulation, including E.O. 13514, Installation Energy Management Program and Water Conservation Programs and energy reduction requirements. The plan shall specifically address the following components: • Recycled Contents Products • Energy/Water efficiency • Energy Efficient Tools and Equipment • Alternate Fuels and Alternate Fuel Vehicles • Bio based Products • Non-Ozone Depleting Products • Environmental Preferred Products and Services • Low/Non-Toxic and Hazardous Materials The Contractor shall submit an annual Sustainable Delivery of Services Report per Section F.
2.10.3.1	Environmentally Preferable Products	The Contractor shall procure and use products that are energy-efficient (Energy Star or Federal Energy Management Program (FEMP)-designated), water efficient, bio-based, environmentally preferable (<i>e.g.</i>, Electronic Product Environmental Assessment Tool (EPEAT)-registered), non-ozone depleting, contain recycled content, or are non-toxic or less toxic alternatives, where such products and services meet performance requirements.

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Spec Item	Title	Description
2.10.3.2	Use of Recovered Materials	The Government has an affirmative procurement program to promote the purchase of products containing recovered materials. The intent is to reduce the solid waste stream and conserve natural resources by establishing markets for recycled content products and encouraging manufacturers to produce quality products containing recovered materials. Participate in this program by using, for Environmental Protection Agency (EPA) designated items, recovered materials to the maximum extent practicable without jeopardizing the intended end use of the item. The percentage of recovered materials content levels for use in the performance of this contract will be, at a minimum, the amount recommended in the EPA Comprehensive Procurement Guideline (CPG) Product Index website (http://www.epa.gov/epawaste/conserve/tools/cpg/index.htm). Use of EPA designated products is not required for products that are either not available within a reasonable period of time, are not available at a reasonable price, are not available from a sufficient number of sources to maintain a satisfactory level of competition, or fail to meet performance standards based on technical verification. EPA designation of products is an on-going process. Listings of EPA designated products containing recovered materials are found in 40 CFR 247. Make recommendation and submit Recovered Material Certification, per Section F, when a product containing recovered materials is equal to or better than the original and could be used for this contract. All changes of products must be accepted by the KO prior to its use.
2.10.3.3	Use of Bio based Products	The Contractor shall make maximum use of bio based products in accordance with the FAR Clause 52.223-2 -- Affirmative Procurement of BIOBASED Products Under Service And Construction Contracts. Information about these products is available at http://www.usda.gov/biopreferred .
2.11	Disaster Preparedness	The Contractor shall comply with the installation's Contingency Instruction response plan. The Contractor shall support the installation contingency response plan as directed by the KO. The Contractor shall submit their Mission Essential Contractor Services Plan and a list of their Mission Critical/Mission Essential Personnel per Section F.
2.12	Technical Library	The Contractor shall work with existing technical library contents, including facility drawings, operation & maintenance manuals, warranties, Government publications, record drawings, Maps and other appropriate material, will be furnished by the Government at contract award.

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Spec Item	Title	Description
		The Contractor shall continually update library material to ensure all data is current, complete, accurate and suitable for intended use. The Contractor shall monitor the use of the libraries to ensure materials are returned and data integrity is not compromised. The Contractor shall maintain the libraries until completion or termination of the contract and make the libraries available for inspection by prospective offerors for successive contracts. The technical library contents are the property of the Government and shall be turned over to the KO upon completion or termination of the contract in hard copy and digital format. The Contractor shall submit the Technical Library Table of Contents and contents per Section F.
2.13	Warranty Management	Prior to performing repair work, the Contractor shall report to the KO any defect in workmanship, material, or parts, and any improper installation of equipment and components that are covered by a warranty. The Contractor is responsible for knowing which equipment and components are covered by the original warranty and the warranty duration. The KO will provide available warranty documents.
2.14	Recurring Work Procedures	
2.14.1	Recurring Work Preparation of Proposals	The Contractor shall price additions or deletions to the Recurring Work requirements using the unit prices bid by the Contractor for Non-Recurring Work Unit Priced Tasks (UPTs). If Non-Recurring Work does not include a corresponding UPT for a specific work requirement for addition or deletion to the Recurring Work requirements, the Contractor shall propose on that specific work requirement in accordance with the Non-recurring Work Preparation of Proposal requirements specified below. Additional markups shall not be included since the cost for these items were included in the unit prices bid by the Contractor for Non-Recurring Work. This may result in the Contractor's proposal consisting of UPT unit price(s), Unit Priced Labor (UPL) Hour(s), Material pricing, or a combination thereof. Recurring Work proposals, including detailed scopes of work and detailed estimates for modification to the Recurring Work requirements shall be submitted per Section F.
2.14.2	Notification to the Government for Work Above the Recurring Work Limitations	The Contractor is fully responsible for work up to the recurring work limits. Recurring work limits are specified in subsequent annexes or sub-annexes. When work is expected to exceed the recurring work limits, the Contractor shall notify the KO and provide a rough order of magnitude (ROM) estimate for the work exceeding the Contractors recurring work limits of liability within four hours of identification for further direction. The Government may issue a service order in accordance with the recurring work provisions of

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Spec Item	Title	Description
		this contract order work in accordance with the non-recurring work provisions of this contract detailed below or accomplish the work by means other than this contract. The Contractor shall provide a detailed scope of work and detailed estimate, per Section F, per the non-recurring work procedures in Spec Item 2.15 for any potential task orders resulting from work that exceeded a recurring work limit of liability in the contract. The estimate shall include the full scope of work and clearly show the deductions for the applicable recurring work limit of liability. The resultant proposed price shall be for the portion of the work exceeding the recurring work limit of liability. Further, the Contractor shall prepare and provide scopes of work and estimates in this manner to the KO when requesting a determination that a recurring work limit of liability has or will be exceeded.
2.14.3	Recurring Work Exhibit Line Item Numbers (ELINs)	Recurring work Exhibit Line Item Numbers (ELINs) are provided in J-0200000-10.
2.15	Non-recurring Work	Non-recurring work is identified in each applicable annex or sub-annex. Non-recurring work may consist of Unit Priced Task (UPT) Work (non-negotiated) and Unit Priced Labor (UPL) Work (negotiated). The Contractor shall perform all non-recurring task work as ordered by the KO per Section G and DoD FedMall requirements. Non-recurring work will consist of Unit Priced Tasks and Unit Priced Labor Work which may be ordered by the Government as separate items or in combinations of items from the Non-recurring Work Exhibit Line Items (ELINs) provided in Section J on an as needed basis.
2.15.1	Unit Priced Task (UPT) Work (Non-Negotiated)	A UPT is defined as a non-recurring work item that includes all direct and indirect costs plus profit associated with the particular unit of work. All materials and equipment (rented, leased or Contractor-owned) required for the accomplishment of a UPT shall be included within the respective exhibit line item prices. The fixed price for the task order is determined by multiplying the exhibit line item unit prices by the quantities ordered. The Contractor is not required to submit cost estimates for UPTs.
2.15.1.1	Acceptance and Performance	The Contractor shall offer indefinite quantity (IQ) pre-priced line item services to authorized Government personnel when they are ordering the work directly via the Government-wide Commercial Purchase Card (GCPC) program. When receiving GCPC orders against Section B, the Contractor shall provide the supplies and services at the offered price without additional markup or handling fee.

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Spec Item	Title	Description
		The Contractor shall accept and process electronically submitted GCPC orders for IQ services, including those orders issued through the FedMall. FedMall is a U.S. Government (USG) owned and operated web-based ordering system that enables any Department of Defense (DoD) or Federal activity to search for and order goods and services. Authorized GCPC users will receive approved accounts on FedMall to view and order IQ line items. The Contractor shall receive electronic IQ orders from FedMall using 128-bit encrypted email. The Contractor shall purchase, install, and utilize the most recent version of PGP Personal software, or a comparable solution, for the purpose of decrypting order notification emails from FedMall. In addition, the DoD has established the External Certification Authority (ECA) program to support the issuance of DoD-approved certificates to Contractors. The ECA program is designed to provide the mechanism for Contractors to securely communicate with the DoD and authenticate to DoD Information Systems. The Contractor shall purchase, install, maintain and use a DoD-approved ECA certificate. Information on obtaining an ECA certificate can be found at http://iase.disa.mil/pki/eca/Pages/certificate.aspx. The Contractor shall post updates on order delivery schedule and performance to the FedMall in a timely manner. The Contractor shall track quantities and report total ordered quantity in FedMall and approved DD 1155's by line item number each month and year-to-date. The report shall be due to the Contracting Officer by the fifth day of the following month, per Section F. The Contractor must track and report when total dollar value of all orders from both GCPC purchases and DD 1155s exceed 75% of the combined Section B Pre-Priced Line Item quantities.
2.15.1.2	Invoicing and Receiving Payment	Payment for completed FedMall orders will be made using the Government wide Commercial Purchase Card (GCPC). Reference "payment by third party" clause FAR 52.232-36. The Contractor shall possess the capability to invoice and receive payment for non-recurring work via an electronic medium with supported command representatives utilizing their GCPC. No partial or advance payments will be provided.

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Spec Item	Title	Description
2.15.2	Unit Priced Labor (UPL) Work (Negotiated)	The Contractor shall perform all UPL work in accordance with the scope and delivery schedule negotiated per each task order. UPL work is defined as non-recurring work that utilizes negotiated labor hours and materials to accomplish a task not required by the recurring work portion of the contract. UPL includes separately priced labor, material, and equipment exhibit line items. The Contractor shall prepare and furnish a detailed cost estimate identifying proposed labor, material, and equipment costs, which upon approval by the KO, becomes the fixed price for the task order. Common procedures are included below as examples.
2.15.2.1	Non-recurring Work Preparation of Proposals	The Contractor shall submit non-recurring work proposals to the KO, per Section F. Proposals shall include: 1) a complete list of all tasks necessary to perform the required scope of work, 2) the number of direct labor hours to perform each task and 3) the projected quantity and costs of materials and equipment to perform the required scope of work.
2.15.2.1.1	Labor Requirements	Accepted industry time standards published in R. S. Means Facility Maintenance and Repair Cost Data, industry organizations, and similar estimating sources shall be used for determining the number of direct labor hours required to complete the scope of work. If not provided in RS Means or a similar estimating source, labor hours may be based on quotes from at least three different commercial vendors. The total labor cost will be determined by totaling the number of direct labor hours and then multiplying by the UPL amount in the Non-Recurring Work Exhibit Line Items (ELINs) provided in Section J-0200000-10. The Government retains the right to obtain additional quotes. The lowest quoted labor hours shall be used.
2.15.2.1.2	Direct Material and Construction Equipment Requirements	Direct material and construction equipment costs published in R. S. Means Facility Maintenance and Repair Cost Data (Site Work and Landscape Costs), national material supplier catalogues, U.S. Army Corps of Engineers Construction Equipment Ownership and Operating Expense Schedule (EP 1110-1-8), equipment rental catalogues, and similar estimating sources shall be used for determining customary and reasonable costs for the direct material and construction equipment estimate. If not provided in RS Means or a similar estimating source, direct material prices may be based on national material supplier catalogue pricing or quotes from at least three different commercial vendors. Projected direct material requirements shall include a list of materials establishing the size, quality, number of units, and unit prices. Pre-expended bin supplies and materials shall not be included in the list of direct materials since the cost for these items are to be included in the labor hour unit price. Direct material prices shall be the lowest price available

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Spec Item	Title	Description
		considering the availability of materials and the time constraints of the job. The direct material price shall include all discounts and rebates for core value and salvage value that accrue to the Contractor and Contractor-furnished warehousing cost. Construction equipment costs shall include rental and lease costs, ownership costs where Contractor-owned, construction equipment mobilization, and tools, not priced under the recurring work portion of the contract. The direct material price will be multiplied by the Contractor's non-recurring work material fixed burden rate. The Government retains the right to obtain additional quotes in questionable situations. The lowest price shall be used.
2.15.2.2	Issuance of Final Task Order	The KO will order unit priced labor by issuing to the Contractor a copy of the approved scope of work and a task order for the work described, in accordance with Section G. Task order completion times will be specified on each task order.
2.15.3	Non-recurring work ELINS	Non-recurring Work Exhibit Line Item Numbers (ELINs) are provided in J-0200000-10.

1503050 – Grounds Maintenance and Landscaping	
Spec Item	Title
1	General Information
1.1	Concept of Operations
2	Management and Administration
2.1	Definitions and Acronyms
2.2	Personnel
2.2.1	Certification, Training, and Licensing
2.3	Special Requirements
2.3.1	Herbicide
2.3.1.1	Business Licensing
2.3.1.2	Vehicles
2.3.1.3	Equipment Restrictions
2.3.1.4	Herbicides
2.3.1.5	Pest Management Operations Reporting
2.3.1.6	Disposal
2.3.1.7	Spills
2.3.1.8	On-Site Mixing
2.3.1.9	Personal Protective Equipment (PPE)
2.3.2	Permits
2.3.3	Vehicles on Sidewalks or Lawns
2.3.4	Equipment
2.3.5	Safety
2.3.6	Work Identification
2.3.7	Working Adjacent to Parking Areas
2.3.8	Access Coordination
2.3.9	Water Management
2.3.9.1	Water Conservation Plan
2.4	References and Technical Documents
3	Recurring Work
3.1	Improved Grounds
3.1.1	Lawn and Field Maintenance
3.1.1.1	Mowing and Trimming
3.1.1.2	Edging
3.1.1.3	Lawn Services
3.1.1.4	Irrigation

3.1.1.5	Weed Control
3.1.2	Artificial Turf
3.1.3	Xeriscape Areas
3.1.4	Plant and Plant Bed Maintenance
3.1.5	Shrub and Hedge Maintenance
3.1.5.1	Shrub and Hedge Removal
3.1.6	Tree Maintenance
3.1.7	Vegetation Control
3.1.8	Tree Removal
3.2	Operational Areas
3.2.1	Ammunition Storage Areas
3.2.2	Anti-Terrorism Force Protection (ATFP)
3.2.3	Bird/Animal Aircraft Strike Hazard (BASH)
3.2.4	Fire Lanes and Breaks
3.2.5	Road and Right of Ways
3.2.6	Trail/Path Clearing
3.2.7	Meadow Maintenance - Dahlgren
3.2.8	Shoreline Maintenance - Dahlgren/Indian Head
3.2.9	Network Infrastructure Maintenance - Dahlgren
3.3	Storm Drainage Systems
3.3.1	Storm Water Outlets and Inlets- NSWC Carderock
3.3.2	Storm Water Outlets and Inlets- Bethesda
3.3.3	Low Impact Drains (LIDs)
3.3.4	Green Roofs
3.4	Grounds Maintenance Service Orders (Not Used)
3.5	Other Recurring Services
3.5.1	Bird Dropping Removal
3.5.2	Maintain Dump Tipple – NSWC Carderock
3.5.3	Clean Gutters and Roof Drains- NSWC Carderock
3.5.4	Exterior Waste Containers
3.5.5	Playground Maintenance
3.5.6	Ball Field Maintenance
3.5.7	CNO Barge Maintenance- WNY
3.5.8	Debris Removal – WNY, Carderock, NRL, ASC, USNO, MBW
3.6	Destructive Weather
3.6.1	Sand Bags- Bethesda
3.7	Interior Plant Maintenance

3.8	Green Waste Management
4	Non-Recurring Work

1503050 - Grounds Maintenance and Landscaping		
Spec Item	Title	Description
1	General Information	The Contractor shall provide all labor, management, supervision, tools, materials, and equipment necessary to provide grounds maintenance and landscaping services located at various locations within a 100 mile radius of the Washington Navy Yard, Washington, DC and outlying areas supported by this installation performance-based contract that is comprised of both Recurring Work and Non-Recurring Work Items. Locations to include but are not limited to: • Naval Support Activity Washington Navy Yard, Washington, DC • Naval Research Laboratory (NRL), Washington, DC • Marine Corps Barracks (MBW), 8th and I Streets, Washington, DC • Naval Support Facility Arlington Service Center (ASC), VA • United States Naval Observatory (USNO), Washington, DC • Vice President's Residence (Quarters A) • Naval Support Facility Carderock, Bethesda, MD • Naval Support Facility Dahlgren and Annexes, Dahlgren, VA • Naval Support Facility Indian Head and Annexes, Indian Head, MD • Naval Air Station Patuxent River and Annexes, Patuxent River, MD (Reserved) • Naval Support Facility Annapolis and Annexes, Annapolis, MD (Reserved) • Marine Corps Base Quantico (MCBQ), Quantico, VA • Naval Support Activity Bethesda, Bethesda, MD Locations marked (Reserved) have no requirements but may be modified after award for services to be performed.

1.1	Concept of Operations	The intent of 1503050 Grounds Maintenance and Landscaping is to specify the requirements related to prestige areas, lawns, fields, operational areas, and storm water system operation and maintenance, such as: mowing, trimming, edging, trash and debris removal, aeration, de-thatching, fertilization, irrigation systems operation and maintenance, tree maintenance, tree control, vegetation and weed control, other specified recurring services, destructive weather response, interior plant maintenance, and green waste management within the installation. The following services are not included in Annex 1503050, Grounds Maintenance and Landscaping unless specified: • Exterior trash cans and debris removal within 5 feet of designated buildings are excluded from this specification. This service is included in Annex 1503010, Custodial.
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1503050 - Grounds Maintenance and Landscaping		
Spec Item	Title	Description
2	Management and Administration	
2.1	Definitions and Acronyms	Definitions and Acronyms are listed in J-1503050-01.
2.2	Personnel	The Contractor shall provide personnel with the qualifications, technical knowledge, experience and skills required to efficiently provide grounds maintenance and landscaping services.
2.2.1	Certification, Training, and Licensing	Certified arborist shall be used for all tree pruning. All Contractor personnel who apply pesticides/herbicides shall be certified by the State of Maryland, Commonwealth of Virginia, and the District of Columbia in the categories required to perform the work specified in this contract. No uncertified personnel may work under the supervision of a certified person even where this is permitted practice in those States or host nations in which the DoD property is located. In accordance with DoDI 4150.07 Volume 2, DoD Pest Management Training and Certification Program, Contractors applying pesticides/herbicides are required to have completed an EPA-approved training program that includes written examinations in core and specific application categories. All work performed shall be in accordance with Federal, DoD, state, and local laws, and installation policies and regulations. Proof of certification shall be submitted per Section F.
2.3	Special Requirements	
2.3.1	Application of Herbicides	The Contractor shall comply with the requirements specified below for any work that involves the handling or application of herbicides.
2.3.1.1	Business Licensing	The Contractor shall possess a business license issued by the State of Maryland, Commonwealth of Virginia, and the District of Columbia to provide pest/vegetation control services. Proof of local/state licensing shall be submitted per Section F.
2.3.1.2	Vehicles	Vehicles used to transport pesticides/herbicides shall be equipped with a fire extinguisher, a spill containment kit capable of containing any potential pesticide/herbicide spill, an emergency eye wash station, at least two gallons of emergency wash water for personal decontamination, and a first aid kit. All pesticides/herbicides carried on vehicles shall be stored in a locked compartment separate from the cab of the vehicle. Vehicles shall not be left unattended at any time unless properly locked and secured. Pest/vegetation

1503050 - Grounds Maintenance and Landscaping		
Spec Item	Title	Description
		control vehicles shall be marked with the owner's or Contractor's name clearly identified as a pest control vehicle per state/local regulations. Each vehicle shall display applicable state or federal department of transportation or agency placard and other identification markings as required by Federal, state, or local regulations. All vehicles shall be maintained with a clean and orderly appearance, free from pesticide/herbicide residues or grime buildup. Vehicles shall not be cleaned, washed, or rinsed on Government property.
2.3.1.3	Equipment	The Contractor shall provide repair and maintenance, as necessary, to keep all equipment in good operating condition, and take appropriate action regarding the following: • All tanks, hoses, pumps, control valves, and gauges shall be free of visible deterioration, shall not leak, and shall operate at the manufacturer's recommended rates and pressures. Equipment that has failed shall be replaced or repaired by the Contractor prior to resuming operations. • Screens, strainers, and filters shall be used and maintained per the pump, sprayer, and nozzle manufacturer's instructions. • Spray nozzles shall deliver spray patterns as specified by the nozzle manufacturer. Nozzles that become clogged or eroded shall be repaired or replaced by the Contractor prior to resuming operations. • All pesticide/herbicide dispersal equipment, shall be clearly and plainly marked with "DANGER"... "PESTICIDES", or as required by applicable regulations. Specific equipment requirements relevant to individual requirements are further delineated in the Pest Group Sheets in J-1503050-10.
2.3.1.4	Herbicides	All pesticides/herbicides, must be used in accordance with Federal, DoD, State of Maryland, Commonwealth of Virginia, the District of Columbia, local, and installation policies and regulations, and any requirements identified in Section J attachments. All pesticides/herbicides shall be procured, processed, handled, and applied in strict accordance with the manufacturer's label. All pesticides/herbicides shall be registered with the EPA and the State of Maryland, Commonwealth of Virginia, the District of Columbia pesticide regulatory agency. The Contractor shall maintain a book of labels and Safety Data Sheets (SDSs) for pesticides and herbicides they use or intend to use, and have it readily available for the COR's inspection at all times.

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Spec Item	Title	Description
		All pesticides/herbicide used by the Contractor in the United States of America shall be registered with the EPA and applicable state lead agency for the use intended. Planned Pesticide Use Sheets, provided in J-1503050-10a, including labels and SDS for each pesticide/herbicide intended for use, shall be submitted per Section F with the Contractor's Work Plan. Approvals may be made for and limited to specific pests and sites. Any proposed changes in pesticide/herbicide usage shall be submitted per Section F for approval prior to use.
2.3.1.5	Pest Management Operations Reporting	The Contractor shall create and submit a completed electronic Pest Management Record for each pest management/vegetation control operation, both chemical and non-chemical, e.g., pesticide/herbicide application, pest/vegetation control service order, per Section F. Refer to the Pest Management Operations Report provided in J-1503050-05 for a sample of an online Pest Management Record. The Contractor shall submit the Pest Management Operations Report per Section F using the NAVFAC PMC approved online pest management reporting system. Contact the regional NAVFAC PMC to obtain an account and instructions on how to use the system.
2.3.1.6	Disposal	All pesticides/herbicide, rinse water, and containers shall be disposed of per pesticide/herbicide label directions. The Contractor shall dispose of any pesticides/herbicides, pesticide/herbicide containers, pesticide/herbicide residue, pesticide/herbicide rinse water, or any pesticide/herbicide contaminated articles at an authorized disposal area off-site from the installation.
2.3.1.7	Spills	Consult with installation environmental and fire department personnel to determine and insert installation requirements for Contractor spills of hazardous substances.
2.3.1.8	On-Site Mixing	The Contractor shall not mix pesticides/herbicides on Government property unless specifically authorized by the COR. If mixing is authorized, it shall be done at an approved Government furnished facility or over an approved containment device. All water sources shall be equipped with proper back-flow prevention devices. An air gap shall be maintained between the water source and the pesticide/herbicide tank.

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Spec Item	Title	Description
2.3.1.9	Personal Protective Equipment (PPE)	The Contractor shall provide PPE to each of their pest/vegetation control applicators. This equipment shall include, at a minimum, the PPE required by the pesticide label and SDS.
2.3.2	Permits	The Contractor shall obtain all necessary permits required to perform the work in this contract. A copy of any applicable permit shall be submitted per Section F.
2.3.3	Vehicles on Sidewalks or Lawns	Vehicles shall not be permitted on sidewalks or lawns without prior approval from the KO. The Contractor's request shall include the methods on how he intends to protect the lawns and sidewalks from damage. Replace or restore all lawns, plants, and property damaged by the Contractor to their original condition or better at no additional cost to the Government.
2.3.4	Equipment Restrictions	Use of powered equipment is prohibited in environmentally sensitive areas identified on the Site Maps provided in J-1503050-02. Use of grazing animals is subject to prior Government approval.
2.3.5	Safety	Grounds maintenance and landscaping equipment shall be approved for use around ammunition bunkers.
2.3.6	Work Identification	The Contractor shall identify and recommend non-recurring work as appropriate to the KO.
2.3.7	Working Adjacent to Parking Areas	Work shall be performed with care on grounds adjacent to parking areas so as to prevent damage to parked vehicles.
2.3.8	Access Coordination	The Contractor shall coordinate all access to performance areas such as airfields and firing ranges through the KO. If required, the Contractor shall be in radio contact with the controlling authority during work performance.
2.3.9	Water Management	The Contractor shall conform to waste and water management measures imposed on the Navy and the Navy-imposed water conservation requirements
2.3.9.1	Water Conservation Plan	The Contractor shall develop and submit a Water Conservation Plan per Section F. The plan shall be in effect year round with emphasis on the rainy season (e.g., October through April) and other times of the year during heavy rain. The plan shall be signed and dated by the Contractor's Project Manager and Quality Control Manager. At a minimum, the plan shall include the following: 1. Procedures for ensuring water sprinklers are shut off during heavy rains.

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Spec Item	Title	Description
		2. Procedures for obtaining current information on weather conditions. 3. Procedures for notifying the Government prior to shutting off and turning on water sprinklers. 4. Procedures for maintaining all existing rain control devices during the entire contract period. 5. Procedures for periodic activation of all irrigation systems to ensure proper working condition of heads and proper spray patterns and that no water sprays onto paved areas, roads, or buildings. 6. Identification of areas that may require watering more than three times per week, exceeding Board of Water Supply guidance, in order to maintain the health/appearance of the grounds. 7. Identification of lawn areas that may need dethatching/aeration to improve the health of the lawn and reduce future watering requirements. 8. Identification of areas currently requiring manual watered (no irrigation system is present or an in ground manual irrigation system is present with no irrigation controller). 9. Description of how all contract performance standards will be met while complying with the Water Conservation Plan. The Contractor may request changes by subsequent written addendum to the plan, which shall require the KO's approval.
2.4	References and Technical Documents	References and Technical Documents are listed in J-1503050-03.

1503050 – Grounds Maintenance and Landscaping				
Spec Item	Title	Performance Objective	Related Information	Performance Standard
3	Recurring Work	The Contractor shall maintain improved grounds, operational areas, and storm water drainage systems, and perform grounds maintenance service orders to ensure a sightly appearance in accordance with specified standards.	Improved grounds, operational areas, and storm water drainage systems to be maintained are provided in J-1503050-07 Site Maps. The Contractor shall recycle all organic debris including vegetation clippings, brush, tree limbs, hedge clippings, etc. Organic debris shall be delivered to an approved recycling facility. All weight tickets for recycled debris shall be submitted with the Contractor's invoice per Section F. Refer to the Recycling Reporting Form provided in J-1503050-05. The Contractor shall submit SDS sheets and catalog cut sheets or samples of all proposed fertilizers and mulch for approval prior to bringing them on-board the installation and prior to use per Section F. The Contractor shall develop and submit work schedules that details the date that each of the work requirements will be performed per Section F. Work includes routine, seasonal and cyclic services.	Improved grounds are maintained operational areas, and storm water drainage systems per the specified Service Level provided in J-1503050-04. Operational areas present a sightly appearance and do not interfere with operational requirements.
3.1	Improved Grounds	The Contractor shall maintain Improved Grounds to ensure a neat, sightly, and healthy appearance.	Service Level Standards for improved grounds maintenance and landscaping are specified for Prestige and Standard Service Levels in J-1503050-04.	Services are performed as specified by and consistent with the Service Level listed in J-1503050-04.
3.1.1	Lawn and Field Maintenance	The Contractor shall maintain	Improved grounds as shown in J-1503050-07 Site Maps are	Services are performed as

		improved grounds to ensure a neat, sightly, and healthy appearance.	designated as Prestige Areas, Lawns, or Fields. Lawns and Prestige Areas are designed to be maintained for appearance and lawn health in accordance with the specified Service Level. Fields receive mowing and trimming but no other lawn care services.	specified by and consistent with the Service Level listed in J-1503050-04.
3.1.1.1	Mowing and Trimming	The Contractor shall maintain vegetation to ensure a uniform height.	The minimum and maximum acceptable vegetation heights for prestige areas, lawns, and fields are identified within the Service Level Standards in J-1503050-04. The Contractor shall trim vegetation within and adjacent to objects located within the lawn or field area including, but not limited to fence lines, fence fabric, brick walls, signs, street lights, power poles, guy wires, etc. The Contractor shall remove and dispose of all clippings and trimmings, excluding grass clippings, in a timely manner to promote a neat and healthy appearance. Grass clippings not removed within areas identified as lawns and prestige areas shall be evenly distributed and promote a neat and healthy appearance.	Vegetation is uniform in appearance. Vegetation is not less than the minimum and at or below the maximum acceptable height specified. Trash and debris is removed and disposed of prior to mowing and trimming and presents an overall neat appearance. Vegetation within and adjacent to objects is trimmed to match the height and appearance of surrounding vegetation.
3.1.1.2	Edging	The Contractor shall maintain an edged cut to ensure a neat appearance.	Edging shall be performed where vegetation meets any concrete, asphalt, or aggregate surface, where vegetation abuts planter beds, or wherever needed to maintain vegetation delineation.	Edging is uniform in appearance and vegetation does not encroach on concrete or asphalt surfaces, plant beds, or other structures.
3.1.1.3	Lawn Services	The Contactor shall perform lawn services to ensure proper vegetation health	Lawn services include aeration, de-thatching, fertilization, and top dressing/over seeding. These services shall be performed at the frequency	Lawn services improve vegetation health and vegetation present a healthy appearance.

		and promote growth.	specified by the Service Level listed in J-1503050-04. The Contractor shall remove and dispose of all aeration cores and all de-thatching debris, in a timely manner to promote a neat appearance. Fertilizer type and application shall be determined by the soil analysis tests performed by the Contractor. The Contractor shall submit a copy of the soil analysis test results and the proposed type of fertilizer to be used for acceptance prior to applying fertilizer per Section F. The Contractor shall submit a copy of the proposed type of seed to be used for acceptance prior to over seeding per Section F. Marine Barracks Washington: <u>Over seeding:</u> The Contractor shall over seed the Annex at Marine Barracks Washington twice per year (Spring and Fall). <u>Vertiseeding:</u> The Contractor shall vertiseed the Parade Deck at Marine Barracks Washington twice per year (Spring and Fall). <u>Dethatching:</u> The Contractor shall dethatch the Annex at Marine Barracks Washington twice per year (Spring and Fall). <u>Aeration:</u> At Marine Barracks Washington the Post shall be aerated twice per year, and the	Fertilizer type and application performed as indicated by the soil analysis. Lawns are free of bare spots ruts, holes, or dead vegetation.
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			Parade Deck shall be aerated (rolling core aeration and deep tine) 9 times per year. <u>Turf Cover:</u> At Marine Barracks Washington a grow tarp is placed in the Winter on both the parade deck and all grassy areas in the family garden. Treat the grounds with a fungicide and slow release fertilizer prior to placing tarp. Historically grass is observed throughout the winter and requires one to two mows and if there is any chemical treatment needed it is addressed. The Contractor shall provide a Lawn Services schedule per Section F.	
3.1.1.4	Irrigation	The Contractor shall irrigate to provide the appropriate amount of water to vegetation.	Irrigation shall be performed in a manner that promotes the health and growth of all vegetation and minimizes water consumption regardless of irrigation system conditions (coverage or functionality). The Contractor shall be responsible for the proper application of water to performance areas. The Contractor shall notify the KO of any inoperable irrigation system components within 24 hours of discovery. The Contractor shall be fully responsible for repairs resulting from Contractor's negligence. Upon notification or discovery of leakage/blockage of the irrigation systems the Contractor shall notify the PAR and schedule repair. Repair periods lasting longer than 48 hours require KO approval.	Irrigation provided as necessary to maintain health and appearance of vegetation.

			Temporarily installed and portable irrigation systems shall be used only with KO approval until repairs are completed. All turf disturbances shall be repaired or replaced to reflect pre-existing conditions. Temporarily installed and portable irrigation systems shall be removed immediately following each use. Within 14 calendar days after contract start date, the Contractor and a Government Representative shall inspect the irrigation system to validate the operation and working condition of the systems. Any items or equipment that are missing or found in poor working condition shall be recorded and submitted to the KO along with a cost proposal for repairs or replacement of those items/ equipment. The cost to replace or repair items identified during the initial inspection shall be at the expense of the Government. Thereafter, the contractor shall provide, replace or repair all items or parts that are non-operational at no expense to the Government. The Contractor shall maintain the permanently installed irrigation systems starting at the first valve on the water service line from the main supply line. The Contractor shall perform irrigation systems maintenance to accomplish any work identified within the entire boundary of the installation.	
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			The contractor is responsible for individual parts up to \$500.00. When a single part exceeds \$500.00, the contractor shall be responsible only for the first \$500.00 and labor to install parts. All parts shall be U.L. approved/listed. Only new standard parts shall be used in repairs. The Contractor shall winterize or freeze-protect all irrigation systems for the fall and winter months. The contractor shall establish a winterization and de-winterization program with scheduled operating and shut off dates. These dates shall be scheduled and coordinated with the PAR/TPOC. Spring startup maintenance shall be performed to allow the systems to function per the manufacturer's specifications. All backflow prevention devices shall be inspected, tested, and certified by a certified tester and be performed by the Government. The current listing of irrigation systems and components, including locations, is shown in the Irrigation System Inventory provided in J-1503050-09. The Contractor shall provide the KO an irrigation system repair plan and monthly schedule for maintenance prior to the start of the contract, per Section F.	
3.1.1.5	Weed Control	The Contractor shall perform pre and post emergent weed control (herbicide) to ensure Improved	Pre-emergent vegetation control (herbicide) shall be accomplished at the beginning of growing season.	Weed growth is inhibited to improve vegetation health and vegetation present a healthy appearance.

		Grounds are free of undesired vegetation.	Post-emergent vegetation control (herbicide) shall be accomplished in the middle of the growing season. Remove weeds that are growing in or around a tree, bush, hedge or shrub.	Weed growth is controlled to levels and within times specified in the Pest Group Requirements in Section J.
3.1.2	Artificial Turf	The Contractor shall maintain outdoor artificial turf to ensure a sightly appearance.	The Contractor shall remove vegetation from and fluff artificial turf, clean liquid spills, remove bird droppings and any other debris.	Artificial turf is clean, free of vegetation, and presents a sightly appearance.
3.1.3	Xeriscape Areas	The Contractor shall maintain xeriscape areas to ensure a sightly appearance.	The Contractor shall remove undesired vegetation, replenish rocks as needed, evenly distribute and level rocks, and fertilize plants.	Xeriscape areas are clean, free of undesired vegetation, and present a sightly appearance.
3.1.4	Plant and Plant Bed Maintenance (inclusive of rock beds)	The Contractor shall maintain plants and plant beds to ensure a healthy appearance and to ensure there is no interference with pedestrians, vehicular traffic, and building encroachment.	The Contractor shall remove and properly dispose of dead, broken, damaged or diseased areas, and all other trimmings. The Contractor shall fertilize, edge, weed, and mulch plant beds (inclusive of rock beds), as appropriate. The Contractor is responsible for plant replacement up to \$50 per plant not to exceed 30 plants annually.	Plants and plant beds are healthy and present a neat appearance consistent with the specified Service Level. Plants do not encroach on structures, pedestrian traffic, or vehicular traffic.
3.1.5	Shrub and Hedge Maintenance	The Contractor shall maintain shrubs and hedges to ensure a healthy, uniform, and neat appearance and to ensure there is no interference with pedestrians, vehicular traffic, and building encroachment.	The Contractor shall remove and properly dispose of dead, broken, damaged or diseased areas, and all other trimmings. The Contractor is responsible for plant, shrub, and hedge replacement up to \$50 per plant not to exceed 30 plants annually. Shrubs and other plants shall be maintained according to the American Society of Landscape Architect's standards. They shall be pruned as required to maintain	Shrubs and hedges are healthy and present a neat and uniform appearance consistent with the specified Service Level. Shrubs and hedges do not encroach on structures, pedestrian traffic, or vehicular traffic.

			their natural growth characteristics. A minimum safety clearance of 14 feet over streets, 12 feet over driveways, 8 feet over walk areas, and 4 feet from buildings shall be maintained at all times. Maintain in accordance with the facility's Appearance Plan, Integrated Natural Resources Plan (INRMP), and Urban Forest Management Plan. Trim and/or cut down any plants around "Life Safety" equipment (i.e. street/building fire hydrants, fire escapes, and fire exits. Notify the PAR/TPOC one week prior to trimming or pruning around utility poles and power lines. The Contractor shall provide the KO an shrub and hedge schedule for maintenance prior to the start of the contract, per Section F.	
3.1.5.1	Shrub and Hedge Removal	Contractor shall perform shrub and hedge removal and planting services in accordance with industry standards.	Small Shrub and Stump Removal - Remove shrubs up to 5-gallon and/or up to 18 inches high. Remove stumps to 6 inches below ground level and remove all exposed roots. Treat to prevent regrowth. Backfill all excavated holes and replant with the same type of vegetation as surrounding area. Shrubs are sized based on the standard growing plant container capacity and plant height above ground level. Contractor shall remove small shrubs as annotated in inventory. Medium Shrub and Stump Removal - Remove shrubs	Shrubs and hedges are healthy and present a neat and uniform appearance consistent with the specified Service Level. Shrubs and hedges do not encroach on structures, pedestrian traffic, or vehicular traffic.

			between 5 and 15-gallon and/or between 18 and 48 inches high. Remove stumps to 6 inches below ground level and remove all exposed roots. Treat to prevent regrowth. Backfill all excavated holes and replant with the same type of vegetation as surrounding area. Shrubs are sized based on the standard growing plant container capacity and plant height above ground level. Contractor shall remove medium shrubs as annotated in inventory. Large Shrub and Stump Removal – Remove shrubs above 15-gallon and/or above 48 inches high. Remove stumps to 6 inches below ground level and remove all exposed roots. Treat to prevent regrowth. Backfill all excavated holes and replant with the same type of vegetation as surrounding area. Contractor shall remove large shrubs as annotated in inventory.	
3.1.6	Tree Maintenance	The Contractor shall provide tree maintenance to ensure tree health and to prevent interference with pedestrian and vehicular traffic, and structure encroachment.	Tree maintenance includes staking, adjustment of ties and supports, removal of stakes; maintaining watering berms for existing plantings; fertilization; pruning for health and safety, vegetation clearance, seasonal cleanup; removing dead, damaged or diseased wood, or structurally weak limbs and branches; removing or pruning branches to clear roofs, adjacent structures, low hanging limbs and fronds which encroach onto walks, roadways and parking lots.	Trees are healthy consistent with the specified Service Level. Trees do not encroach on structures, pedestrian traffic, or vehicular traffic. All debris is removed and disposed of properly and within the specified time.

			Pruning shall be accomplished by or under guidance of a certified arborist. Climbing devices that may cause damage to trees shall not be used. The Contractor shall remove and properly dispose of dead, damaged or diseased limbs and branches, and all other cuttings within two working days following operations.	
3.1.7	Vegetation Control	The Contractor shall perform vegetation control to ensure areas are free of undesired vegetation.	The Contractor shall remove unwanted vegetation from fence lines, fence fabric, brick walls, sidewalks, curbs, gutters, paths, trails, aggregate areas, enclosures (to include but not limited to trash, generators, power vaults, ac units), and paved surfaces including parking lots. Areas adjacent to perimeter fences are those areas that have been cleared up to 20 feet from either side of the fence. Vegetation shall not exceed one foot in height. The Contractor shall remove and appropriately dispose of natural and man-made debris within the perimeter fence clearances. The Contractor shall develop and submit a schedule for the control of undesired vegetation per Section F.	Objects such as: fence lines, fence fabric, brick, walls, curbs, gutters, aggregate areas, and paved surfaces including parking lots are free of all vegetation consistent with the specified Service Level. Vegetation growth is controlled to levels and within times specified in the Pest Group Requirements in Section J-1503050-10.
3.1.8	Tree Removal - Bethesda	Contractor shall perform tree removal and planting services in accordance with industry standards.	Small Tree and Stump Removal - Remove trees 2 to 6 inches in diameter measured at 4.5 feet above ground level. Remove stumps to 12 inches below ground level and remove roots to 4 inches below level ground extending to six feet from tree. Treat to prevent regrowth. Backfill all excavated holes and replant	Trees are healthy consistent with the specified Service Level. Trees do not encroach on structures, pedestrian traffic, or vehicular traffic.

			with the same type of vegetation as surrounding area. Contractor shall remove small trees/shrubs as annotated in inventory. Medium Tree and Stump Removal - Remove trees 6 to 18 inches in diameter measured at 4.5 feet above ground level. Remove stumps to 12 inches below ground level and remove roots to 4 inches below level ground extending to six feet from tree. Treat to prevent regrowth. Backfill all excavated holes and replant with the same type of vegetation as surrounding area. Contractor shall remove small trees/shrubs as annotated in inventory. Large Tree and Stump Removal - Remove trees above 18 inches in diameter measured at 4.5 feet above ground level. Remove stumps to 12 inches below ground level and remove roots to 4 inches below level ground extending to six feet from tree. Treat to prevent regrowth. Backfill all excavated holes and replant with the same type of vegetation as surrounding area. Contractor shall remove small trees/shrubs as annotated in inventory.	All debris is removed and disposed of properly and within the specified time.
3.2	Operational Areas	The Contractor shall maintain operational areas to ensure grounds present a sightly appearance and do not interfere with operational requirements.	Prior to mowing or trimming, the Contractor shall remove and appropriately dispose of all debris that interferes with the mowing or trimming operation. Operational areas are provided in J-1503050-07 Site Maps.	Operational areas present a sightly appearance and do not interfere with operational requirements. Vegetation within and adjacent to

				objects such as: fence lines, fence fabric, and brick walls is trimmed to match the height and appearance of surrounding vegetation.
3.2.1	Ammunition Storage Areas	The Contractor shall maintain ammunition storage areas to ensure no interference with operational requirements.	Vegetation height and trees in and around ammunition storage areas shall be maintained per NAVSEA OP-5 requirements. The Contractor shall maintain ammunition storage areas free of all debris, trees, and vegetation height shall not to exceed 18 inches in accordance with NAVSEA OP-5 requirements. Due to weight restrictions or erosion prevention requirements on mounds and magazines these areas shall be cut with string trimmers or approved push type mowers. In areas with mixed species, the accepted grass height shall be based on the dominant species shown in J-1503050-04. All grass clippings shall be removed from platforms and paved areas. Only walk-behind mowers and trimmers shall be used on magazines, bunkers and berms. Gasoline-powered grass cutters may be used on top of earth-covered magazines but must be kept at least 5 feet from ventilators and head walls. Hand-powered equipment shall be used within 5 feet of ventilators and head walls. Fueling of gasoline-powered cutters, mowers, and trimmers	Ammunition storage areas are maintained clear of all debris and trees. Vegetation at or below specified height. Trees do not encroach on roads, buildings, ammunition storage areas, and structures.

			shall be accomplished at least 100 feet from explosives areas and at least 20 feet from warehouses and other inert storage buildings. Smoking and matches, cigarette lighters, or other similar flame- or spark-producing devices are prohibited in magazine areas. Radios, cell phones and other electronic devices are not allowed within the magazine areas without KO approval.	
3.2.2	Anti-Terrorism Force Protection (ATFP)	The Contractor shall maintain perimeter fence to ensure no interference with operational requirements.	Vegetation height and trees in and around ATFP areas shall be maintained per NTTP 3-07.2.3 requirements. The Contractor shall maintain a 30 feet clear zone on the inside of the fencing and a 20 feet clear zone on the outside of the fencing. The Contractor shall maintain perimeter fence line (including security camera line of sight) free of all debris, trees, and vegetation height shall not to exceed eight inches in accordance with NTTP 3-07.23. Note: A 20' clear zone may not be accomplished in certain areas where the Government does not own the land such as park service land or other such entities located less than 20 feet from fence line. For example, the park lands adjacent to both USNO and Carderock.	ATFP areas are maintained clear of all debris, trees, and vegetation is at or below the specified height. Trees do not encroach on fence line and structures.
3.2.3	Bird/Animal Aircraft Strike Hazard (BASH)	The Contractor shall maintain areas within BASH mitigation	Vegetation height around airfields shall comply with Bird/Animal Aircraft Strike Hazard (BASH) requirements	Services are performed as specified by and consistent with

		zones to ensure no interference with operational requirements.	and Installation Wildlife Hazard Mitigation Plan (WHMP). The Contractor shall maintain BASH areas per the BASH Mitigation Zones (BMZ) requirements. BASH Mitigation Zone (BMZ) Maps provided as J-1503050-07.	BASH requirements listed in J-1503050-18. Objects such as: curbs, gutters, aggregate areas, and paved surfaces including parking aprons are free of vegetation.
3.2.4	Fire Lanes and Breaks	The Contractor shall maintain fire lanes and breaks to ensure no interference with operational requirements.	The Contractor shall maintain fire lanes and breaks to the dimensions defined in the Fire Protection Handbook. The Contractor shall maintain fire lanes and breaks free of all debris, trees, and vegetation height shall not to exceed one foot.	Fire lanes and breaks are maintained clear of all debris and trees. Vegetation at or below specified height. Fire lanes and breaks are clear of obstructions that interfere with vehicular passage.
3.2.5	Road and Right of Ways	The Contractor shall maintain road and right of ways to ensure no interference with operational requirements.	The Contractor shall maintain road and right of way clearances up to 30 feet of either side of the road and right of way and maintain road and right of ways free of all debris and trees, and vegetation.	Roadway clear of all debris, trees, and vegetation as specified. Objects such as: curbs, gutters, aggregate areas, and paved surfaces including parking lots are free of vegetation. Roadways clear of obstructions that interfere with vehicular passage.
3.2.6	Trail/Path Clearing - Bethesda	The Contractor shall maintain trails to ensure not interference with passage.	The Contractor shall perform underbrushing services along both sides of all wooded walking trails 12 inches in from the trail. All brush, weeds, and small trees (3 inches and below in diameter at ground	Trails clear of obstructions that interfere with passage.

			level) shall be cut back to within 1 inch of ground level.	
3.2.7	Meadow Maintenance - Dahlgren	The Contractor shall maintain meadow areas once annually, between March 15 and April 15 to minimize impacts to wildlife.	Prior to mowing or trimming, the Contractor shall remove and appropriately dispose of all debris that interferes with the mowing or trimming operation. Meadow areas shall have a finished appearance of 8 to 10 inches upon completion of service.	Vegetation within and adjacent to objects such as: Fence lines, fence fabric, and brick walls are trimmed to match the height and appearance of surrounding vegetation.
3.2.8	Shoreline Maintenance - Dahlgren	The Contractor shall maintain shoreline areas twice annually as follows: 1 st cutting between March 15 and April 15, and 2 nd cutting in the month of October to minimize impacts to wildlife.	Prior to mowing or trimming, the Contractor shall remove and appropriately dispose of all debris that interferes with the mowing or trimming operation. Shoreline areas shall have a finished appearance of 6 to 8 inches upon completion of service. Bank vegetation shall be maintained to not impede range operations line of sight.	Shoreline areas present a slightly appearance and do not interfere with operational requirements. Vegetation within and adjacent to objects such as: fence lines, fence fabric, and brick walls are trimmed to match the height and appearance of surrounding vegetation.
3.2.9	Network Infrastructure Maintenance - Dahlgren	The Contractor shall maintain network infrastructure areas semi-annually,	Prior to mowing or trimming, the Contractor shall remove and appropriately dispose of all debris that interferes with the mowing or trimming operation. Network infrastructure areas shall be maintained as follows: Clear and remove all vegetation, to include trees less than 2 inches in diameter, mow grass in a 20-foot radius around network	Network infrastructure areas present a slightly appearance and do not interfere with operational requirements. Vegetation within and adjacent to objects such as: fence lines, fence fabric, and brick walls are trimmed to match the height and appearance of

			junction boxes, remove tree limbs within 20 feet of the junction boxes and remove all vegetation in a 20 foot-wide path through wooded areas with a grass height to exceed 6 inches.	surrounding vegetation.
3.3	Storm Drainage Systems	The Contractor shall remove obstructions and control trees and vegetation in storm drainage systems to ensure unrestricted flow of storm water runoff.	Drainage systems include curb gutters, curb inlets, brow ditches, drainage channels, swales, catch basins, yard drains, and other devices used to direct the flow of runoff. The Contractor shall clean and remove debris from drainage systems that would inhibit drainage. Aboveground storm drainage systems shall be maintained clear of obstructions, debris, vegetation, and anything else which may restrict runoff flow. Vegetation height shall not to exceed eight inches. Drain covers and grates of underground systems shall be maintained clear of obstructions, however, covers and grates shall not be removed for cleaning drainage systems. The KO shall be notified within 24 hours, in writing, of obstructions in subsurface drain lines beyond Contractor responsibility. Missing or damaged yard drain covers and grates shall be reported immediately to the KO. Emergency response shall be provided 24 hours a day, every day. Upon notification of blockage of the surface drainage systems, the Contractor shall respond within four hours after such	No evidence of obstructions in the visible area of the drainage systems.

			notification. The Contractor is responsible for up to 16 labor hours and \$500 in materials per incident.	
3.3.1	Clean Perimeter Storm Water Outlets & Inlets - NSWC Carderock	The Contractor shall clean perimeter storm water outlets & inlets.	Services shall be performed at NSWC Carderock Division. The Contractor shall provide protection for existing finishes, set sediment control at perimeter inlet and outlet grills noted in inventory; muck out and clean out grills, and dispose of debris. Check outfall for debris and clogging, annually. Remove sediment, leaves debris and vegetation from pipe ends and spillways (concrete and stone). Avoid excavation of stream and ditch bottoms. All debris must be disposed of offsite. Report excessive clogging to GOV POC.	No evidence of obstructions in the visible area of the perimeter storm water outlets & inlets
3.3.2	Clean Perimeter Storm Water Outlets & Inlets – Bethesda	The Contractor shall clean perimeter storm water outlets & inlets	Services shall be performed at NSA Bethesda. The Contractor shall inspect and maintain perimeter inlet and outlet grills free of debris at locations specified in J-1503050-07. Contractor shall muck out and clean out grills after weather events to prevent buildup and damage to grills. Contractor shall be responsible for grill repair or replacement due to maintenance negligence.	No evidence of obstructions in the visible area of the perimeter storm water outlets & inlets. Deficiencies with detailed resolutions to be identified and reported.
3.3.3	Maintenance of Low Impact Development Features (LID)	The Contractor shall take a proactive, responsible role in the management of LID features	The following types of LID features will be serviced: • Bio retention cells / rain gardens • Permeable Pavement (Pavers/Concrete/Asphalt) • Tree filters • Rain Barrels • Sand Filters • Green Roofs • Ponds/Wetlands • Swales	Services are performed at locations in J-1503050-11 as specified in J-1503050-13

3.3.4	Maintenance of Green Roofs – WRNMMC & Carderock	The Contractor shall maintain green roofs to ensure a sightly appearance.	The Contractor shall perform maintenance for the roof plants, roof beds and green roofs. Ensure roof drains are functioning properly and report any unsecured roof flashing and any waterproofing issues. Replant any viable plants, including Sedum Carpet and Sedum Tile as well as Gard Mat that have been uprooted from wind, erosion or animals. (Refer also to 3.1.1.4 Irrigation, 3.1.4 Plant Maintenance and Spec Item 3.1.7 Vegetation Control.)	Green roof areas present a sightly appearance per the Contractor's schedule. Services are performed as specified in J-1503050-13(fl)
3.4	Grounds Maintenance Service Orders (Not Used)			
3.5	Other Recurring Services	The Contractor shall perform other recurring grounds maintenance services	The Contractor shall perform other recurring grounds maintenance services at the following locations: • Washington Navy Yard • Naval Research Laboratory • Walter Reed National Military Medical Center • NSF Carderock • Dahlgren • Indian Head • United States Naval Observatory • Arlington Service Center • Marine Corps Barracks Washington	Recurring services are completed in a timely manner and each is completed in accordance with its unique performance standard.
3.5.1	Remove Bird Droppings	The Contractor shall remove bird droppings from sidewalks, steps, and handicapped ramps	Services shall be performed at Walter Reed National Naval Medical Center and NSWC Carderock. WRNMMC - The Contractor shall remove bird droppings from sidewalks, steps, and handicapped ramps on an as needed basis. Carderock – The Contractor shall remove goose droppings from all prestige areas	Designed areas are maintained free from bird droppings and have a neat and healthy appearance.

			sidewalks and parade field east to west sidewalk. See attachment J-1503050-08	
3.5.2	Maintain Dump Tipple – NSW Carderock	The Contractor shall remove trash and debris at the dump tipple area	Services shall be performed at NSW Carderock Division. The Contractor shall maintain the dump tipple throughout the year to keep it clear of debris and trash on the ground and in the surrounding area. Trash and debris not in excess of 100 lbs. shall be placed in the dumpster at the tipple site. Heavier trash shall be reported to the COR/PAR. Any hazardous materials found at the site should be reported to the KO/COR. Contractor shall submit a schedule to the KO to satisfy this effort per Section F.	Maintain the tipple area free of debris and trash in a neat and orderly appearance.
3.5.3	Clean Gutters and/or roof drains - NSW Carderock	The Contractor shall clean out drains and gutters	Services shall be performed at NSW Carderock Division. Contractor shall submit a schedule to the KO to satisfy this effort per Section F. Contractor shall reschedule as needed to meet the requirement submitting each new schedule to the KO.	No evidence of obstructions in the visible area of the roof drains and gutters.
3.5.4	Exterior Waste Containers	The Contractor shall empty exterior waste containers and ensure they are clean	The contractor shall empty waste containers, excluding dumpsters, located outside the 5 foot perimeter area (further than 5 feet from designated buildings). The Contractor shall pick up all waste around the containers. The Contractor shall collect and dispose of items placed adjacent to waste containers. All waste that is dropped during the waste removal process shall be picked up and properly disposed.	Waste containers are empty and clean. Waterproof liners are provided and replaced when soiled or unserviceable. Services are performed at the specified frequencies.

			Provide waterproof liners and replace when needed. Reference J-1503050-08 for inventories/frequencies and J-1503050-07 for associated maps.	
3.5.5	Playground Maintenance	The Contractor shall maintain playground areas to ensure grounds are well maintained	The Contractor shall maintain and replenish white sand raked and leveled 12 inches on each playground identified in J-1503050-08. Playgrounds shall be free of grass, weeds, leaves, stones, rocks, trash and debris. Rake and level sand and repair lawn around playground areas. Weeds shall not be removed chemically. Contractor shall submit a schedule to the KO to satisfy this effort per Section F.	Playgrounds are maintained as required and are free of grass, weeds, leaves, stones, rocks, trash, and debris.
3.5.6	Ball Field Maintenance	The Contractor shall maintain grass, infields, warning tracks, and chalk lines on ball fields	The Contractor shall maintain one (1) ball field at NSWCCD providing the following maintenance: roto-till infield and foul lines if necessary, to remove weeds; rake and level all playing areas; add brick dust to warning tracks, foul lines and add specified ball field mix on infields; roll the entire area; aerate, fertilize, over seed, top dress and repair playing turf bi-annually or as required. Fields shall be maintained at grass heights no higher than two-and-a-half (2.5) inches during the playing season, but shall never be lower than 1.4 inches. Contractor shall submit a schedule to the KO to satisfy this effort per Section F.	Ball fields are maintained in an attractive manner. Grass heights do not exceed 2.5 inches during the playing season. Chalk lines are maintained according to standard baseball rules.
3.5.7	CNO Barge Maintenance	The Contractor shall maintain inlet area to ensure a slightly appearance.	The Contractor shall remove and dispose floating and washed up debris that may collect in the inlet area. The inlet area is defined as the area of the fence along the river walk inwards towards the	Barge inlet area is maintained in an attractive manner.

			coffee shop (not to include the dock or outside the river walk fence). The Contractor shall maintain adjacent concrete surfaces area to remove and inhibit the unwanted growth of weeds and vegetation. Once per month. Contractor shall submit a schedule to the KO to satisfy this effort per Section F. <i>Historical Note: Average of one (1) pick-up truck load of debris per month.</i>	
3.5.8	Debris Removal	The Contractor shall remove seasonal debris to ensure a clean and neat appearance, and safe for pedestrian traffic.	The Contractor shall remove and appropriately dispose of all seasonal debris, e.g., fruit, seedpods, fallen leaves and dry brush, tree twigs throughout designated areas annually between the months of October-December . The Contractor shall develop and submit a schedule for debris removal per Section F. Locations for debris removal are identified in J-1503050-08.	Debris is removed as necessary to present an overall neat appearance. Areas are maintained clear of debris per the Contractor's schedule.
3.6	Destructive Weather	The Contractor shall support grounds protection operations in the event of anticipated weather events.	The Contractor shall furnish all tools, and equipment to respond to pending threat of destructive weather, and restoration efforts after a destructive weather event. Efforts shall include placing prefilled sand bags; filling replacement sand bags; transporting sand bags as needed to limit water intrusion; removing damaged trees, remove smaller tree branches, limbs and twigs; and collection and disposal of debris. Expect 9 hours per two-person crew per year per site (except for Bethesda, Ref. 3.6.1). Per occurrence of events.	Protective measures are installed prior to an anticipated event and removed after weather event has passed. Maintain safe and accessible access to facilities.
3.6.1	Sand Bags – Bethesda	The Contractor shall support grounds	The Contractor shall furnish all tools, and equipment to respond to pending threat of	Sandbags are placed prior to weather event and removed

		protection operations in the event of anticipated weather events-Bethesda.	destructive weather, and restoration efforts after a destructive weather event. Efforts shall include placing 200 prefilled sand bags; filling replacement sand bags; transporting sand bags as needed to limit water intrusion; removing damaged trees and limbs; and collection and disposal of debris. Expect 18 hours per two-person crew.	once weather threat has ended.
3.7	Interior Plant Maintenance	The Contractor shall maintain interior plants to provide a neat appearance and promote plant health.	Plant containers shall be weed free, litter free, loose and non-compacted and have a neat well-manicured appearance. Dead, broken, damaged or diseased areas shall be removed and properly disposed. Plants and beds shall be fertilized, watered and pruned. Area around interior plants should be free of plant parts/debris. Inventory of plants to be maintained is identified in J-1503050-08. The Contractor shall develop and submit a schedule for interior plant maintenance per Section F.	Plants and plant containers are maintained as required, present a neat appearance, and contain healthy plants with no weeds or debris. The Contractor's interior plant maintenance schedule is approved by the KO and adhered to.
3.8	Green Waste	The Contractor shall take a proactive, responsible role in the management of green waste.	Green waste includes products of trimmings, pruning, grasses and/or plants, and the removal of dead or living trees. All green waste or yard waste tonnages generated by the Contractor shall be reported to the KO on a monthly basis per Section F. The tonnage must be categorized according to amounts composted, recycled and landfilled per installation. The Contractor shall be responsible for any special programs related to the recycling or composting of green waste. Revenues or	Green wastes are removed as they are generated and reported accordingly. Green waste report submitted on time.

			other savings obtained from the recycling shall accrue to the Contractor.	
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1503050 - Grounds Maintenance and Landscaping				
Spec Item	Title	Performance Objective	Related Information	Performance Standard
4	Non-Recurring Work	Non-Recurring work may be ordered utilizing DoD FEDMALL in accordance with Section H or on a task order in accordance with the PROCEDURES FOR ISSUING ORDERS clause in Section G. The order will specify the exact locations and types of work to be accomplished. The period of performance will be specified in each order.	Refer to Non-Recurring Work ELINs for task listings, descriptions, and related requirements. All periods of performance are measured from issue date of order to acceptance of the work. Performance standards for non-recurring work will be the same as those in Spec Item 3 where applicable.	

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Spec Item	Title	Description
1	General Information	The Contractor shall provide all labor, management, supervision, tools, material, and equipment required to provide pavement clearance services at various locations within a 100 mile radius of the Washington Navy Yard, Washington, DC and outlying areas supported by this installation performance-based contract that is comprised of both Recurring Work and Non-Recurring Work Items. Locations to include but are not limited to: • Naval Support Activity Washington Navy Yard, Washington, DC • Naval Research Laboratory (NRL), Washington, DC (Reserved) • Marine Corps Barracks (MBW), 8th and I Streets, Washington, DC • Naval Support Facility Arlington Service Center (ASC), VA • United States Naval Observatory (USNO), Washington, DC • Vice President's Residence (Quarters A) • Naval Support Facility Carderock, Bethesda, MD • Naval Support Facility Dahlgren and Annexes, Dahlgren, VA (Reserved) • Naval Support Facility Indian Head and Annexes, Indian Head, MD (Reserved) • Naval Air Station Patuxent River and Annexes, Patuxent River, MD (Reserved) • Naval Support Facility Annapolis and Annexes, Annapolis, MD (Reserved) • Marine Corps Base Quantico (MCBQ), Quantico, VA (Reserved) • Naval Support Activity Bethesda, Bethesda, MD Locations marked (Reserved) have no requirements but may be modified after award for services to be performed.
1.1	Concept of Operations	The intent of 1503060 Pavement Clearance is to specify the requirements related to pavement sweeping and snow removal operations. The following services are not included in this Template:

		• Pavement sweeping of airfields does not include rubber removal from runways. This is included in 1502000, Facilities Investment. • Foreign Object Debris (FOD) Program for airfield surfaces is included in 1501050 Airfield Operations.
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Spec Item	Title	Description
2	Management And Administration	
2.1	Definitions and Acronyms	Definitions and Acronyms are listed in J-1503060-01.
2.2	Personnel	The Contractor shall provide personnel with the qualifications, technical knowledge, experience and skills required to efficiently provide pavement sweeping and snow removal services.
2.2.1	Certification, Training, and Licensing	Contractor is required to provide and maintain all necessary training, certifications, and current licenses (including applicable employee operator licenses) to perform pavement clearing operations under this contract and comply with all the applicable Federal, state and local laws and regulations. The Contractor shall submit copies of Permits and Licenses per Section F. An airfield driver's license is required prior to driving in aircraft operating areas. Contractor personnel will be required to take and pass airfield driving test as per NAVAIR 00-80T-114, NAVINST 3710.8, NAVINST 8020.7. Site KO or designated representative shall provide Airfield Management point of contact information to contractor.
2.3	Special Requirements	
2.3.1	Safety	The Contractor shall comply with safety requirements for pavement clearance operations on airfields as specified in Advisory Circular (AC) No. 150/5210-23, Ground Vehicle Operations on Airports and Advisory Circular (AC) No., 150/5200-30C Airport Winter Safety and Operations.
2.3.2	Equipment Restrictions	Equipment used shall have rubber type tires, tracks are not acceptable.
2.3.3	Airfield Equipment Restrictions	All equipment used to clear debris or snow on the airfield must comply with and FAA requirements. Equipment specifically designed for airfield and runway clearing shall be used to clear areas on airfield, around radar, airfield taxiway, runway sidelights and over runway center lights.
2.3.4	Work Identification	The Contractor shall identify and recommend IDIQ work as appropriate to the KO.

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2. 3.5	Communication	The Contractor shall coordinate all access to performance areas such as airfields with appropriate Government authority, and maintain radio contact with the controlling authority during work performance.
2.3.5.1	Airfield Communications	All airfield communications shall be coordinated through the site KO or designated representative. The site KO or designated representative will coordinate with site Air Operations (Air Ops) to obtain permission for the Contractor to communicate directly with Air Ops.
2.4	References and Technical Documents	References and Technical Documents are listed in J-1503060-02.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
3	FFP Work	Contractor shall provide pavement clearance to achieve a cleared appearance and safe use of paved surfaces.	Service Level Standards are defined by Commander, Navy Installations Command (CNIC) for Navy Shore Commands. Service Level Standards for pavement clearance are specified as shown in J-1503050-03. The Contractor shall provide services at the frequencies specified based on the awarded CLINs (for the selected Service Level Standards) listed in Section B. ELINS in J-0200000-10 include pre-priced Line Items associated with the Optional CLINs which can be added or deleted to increase or decrease the level of performance. The Contractor shall provide snow removal services at PWD Washington and Bethesda as identified in J-1503060-05. Pavement clearance site maps are included in J-1503060-06. Contractor shall provide a toilet facility for employees as per Section 2.E of EM 385-1-1, Sanitation. <i>Historical Note: Site specific sanitation for snow removal.</i>	Paved surfaces are clear, safe, and passable in accordance with the specified Service Level Standards.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			<u>CARDEROCK</u> - Contractor will need to provide temporary bathroom facilities. <u>USNO</u> – Rest rooms are available for the Contractors to use both Summer and Winter seasons, in Bldg. #75 USNO Shop Bldg. <u>NSF Arlington</u> –Rest rooms are available for the Contractors to use both Summer and Winter seasons in Bldg. #17, the NAVFAC Office. <u>Bethesda</u> – Rest rooms in designated buildings (to be provided prior to snow season) will be available. <u>WNY</u> - Public restrooms are available on the base and within the PWD office.	
3.1	Pavement Sweeping Services	The Contractor shall sweep paved surfaces to ensure paved surfaces are clear.	The Contractor shall provide pavement sweeping to remove winter abrasives and other debris, improve the appearance of paved areas, improve the safety of paved areas, reduce maintenance costs by keeping the drainage systems clean and, reduce pollutants entering the storm drain system.	Paved surfaces are swept per the schedule and in accordance with specified Service Level Standards.
3.1.1	Roads and Other Paved Surfaces	The Contractor shall sweep roads and other paved surfaces	Roads and other paved surfaces include roads, parking areas, and open storage areas identified on	Roads and other paved surfaces are clear in accordance with

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
		to ensure they are clear.	Site Maps provided in J-1503060-06. The Contractor shall develop a schedule for pavement sweeping services consistent with the specified Service Level Standards in J-1503060-03 and submit per Section F. Contractor shall identify specific times of performance for each road and other paved surface. If severe weather makes it impracticable to sweep during the scheduled times, the Contractor shall coordinate with the site KO to reschedule services. <i>Historical Information Note: Historically the frequency and schedule for sweeping of roads and paved surfaces at NSA Bethesda as shown in the Non Airfield Pavement Sweeping Schedule provided in J-1503060-07 has maintained services at an acceptable level.</i>	specified Service Level Standards.
3.1.2	Airfield Pavement Surfaces	The Contractor shall sweep airfield pavement to ensure surfaces are clear.	Airfield pavement surfaces include runways, taxiways, and parking aprons, including tie-down points and depressions As shown on Site Maps provided in J-1503060-06	Airfield pavement surfaces are swept in accordance with specified operational requirements.

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			Airfield pavement surfaces include the helicopter pads at WRNMMC and USNO. The Contractor shall receive clearance from the airfield operations center prior to commencing sweeping operations. The Contractor shall sweep airfield pavement surfaces per the schedule and frequency specified in the Airfield Pavement Sweeping Schedule provided in J-1503060-09. The Contractor shall comply with all FAA and DoD requirements to sweep around all aircraft parked on ramp areas. Sweep as scheduled except during periods in which the severity of weather, as deemed by Air Ops and directed by KO, makes it impracticable to sweep. The Contractor shall coordinate with the KO to reschedule services.	Airfield is free of Foreign Object Debris (FOD).
3.2	Snow and Ice Removal Services	The Contractor shall provide snow and ice removal services to ensure paved surfaces are safe and passable.	The Contractor is responsible for damage to Government property caused by snow and ice removal operations or equipment used in connection herewith including but not limited to: curbs, parking stops, islands, light poles, signs,	Paved surfaces are safe and passable.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			sign posts, parking stops, pavers, guardrails, etc. Damage repairs to be complete no later than 30 April following each snow season.	
3.2.1	Snow and Ice Removal	The Contractor shall remove snow and ice to ensure designated paved surfaces are safe and passable.	The Contractor shall provide snow and ice removal services for the roads, parking areas, sidewalks, and building entrances shown on the Site Maps provided in J-1503060-06. Areas identified in this attachment are listed in descending order of importance. Building entrances include walkways, steps, exterior stairways, and porches. The Contractor shall initiate work when there is an imminent threat of snow or ice accumulation on surfaces (streets, roads, and parking lots). Contractor shall continue operations during the entire period of precipitation. Note: The rate of snow removal depends on the type of snow (wet or powdery), pavement temperature, ambient air temperature and wind conditions. The Contractor should expect to encounter parked cars, vehicles parked illegally or stuck in snow banks. The Contractor shall clear	Designated paved surfaces are safe and accessible to operations, fire protection, and vehicular and pedestrian traffic. Snow removal equipment operators have proper qualifications and licensing. Designated paved surfaces are safe for passage. The maximum depth of snow does not exceed 2 inches during the entire period of precipitation. Removal shall be completed within 24 hours after precipitation has ended for accumulation <10"

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			snow in a manner that does not windrow the vehicles in. Snow shall be cleared to within three feet of each vehicle. Snow shall not be placed against vehicles. The Contractor shall be responsible for notifying the Snow King of the locations of these vehicles to ascertain removal. It will be the Government's responsibility to contact owners or have vehicles towed as required enabling snow removal operations. In areas not accessible due to equipment or barriers the Contractor shall remove snow to within three feet of the equipment or barriers. The Contractor shall not place snow against any obstacle. The Contractor shall clear snow to within a maximum of six inches away from dumpsters in areas within the scope of this contract for access by the solid waste Contractor. Snow piles and windrows shall not be pushed up against or in front of, structures, facilities, equipment, or placed so as to block or hinder Government access to buildings or utilities. Snow shall not be piled any closer than 30 feet from any perimeter fence line. Snow shall not be pushed onto a perimeter fence line. A clear line of sight must be maintained.	and 48 hours for accumulation >10" but less than 15".

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			The Contractor shall ensure storm drains are kept clear of snow and ice and flow freely. The Contractor shall not pile snow on storm drains, and shall not store snow in such a manner as to block the natural flow into the storm drain. This includes periods of melting snow/ice between storms. The Government will provide a site plan of storm drain locations to the Contractor if requested by the Contractor after contract award. Conditions on station may differ from the surrounding area; an Authorized Government Representative may contact the Contractor's Project Manager to communicate the local conditions on station. Likewise the Contractor may contact the Authorized Government Representative for this information. Lack of communication between the Government and the Contractor during or prior to a weather event shall not relieve the Contractor of the performance standard. <i>Refer to J-1503050-05(f) for requirements specific to NSA Bethesda.</i>	

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
3.2.1.1	Snow Management	The Contractor shall manage snow piles and windrows to ensure streets, roads and parking lots can be cleared to their full width and maintain safe visibility for motorist.	The Contractor shall manage piles and windrows of snow throughout the term of the contract such that the streets, roads and parking areas can be cleared to their full width after each storm. Snow pile management associated with large snowfalls may require the Contractor to remove snow piles at no additional expense to the Government when the existing piles/banks cannot be pushed back or piled higher to meet visibility, safety or access requirements. The Contractor is responsible for visibility safety, and access requirements regardless of the quality of snow pile management from the previous storm. Safe visibility criteria shall be based on the normal view obtainable from small compact automobiles, and local laws and regulations. The Contractor shall develop and submit a Snow Removal Plan per Section F indicating when snow will be removed from the installation. It is to the Contractor's benefit to create and maintain adequate snow storage space as soon as practical, or to haul snow away leaving room for future storms. The Government has designated areas for storage/piling of snow and	Snow piles and windrows managed in a manner that allows for future storms and snow melting. No snow pile creates a safety hazard. All intersections and parking lot exits have safe visibility to motorists. No snow pile shall obstruct the view of incoming or outgoing traffic. No snow pile at a roadway intersection or parking lot entrance/exit shall exceed waist height (3 feet). Snow is not piled or pushed back such that it may damage structures or limit access. Snow fence and snow stakes are in place and properly performing their intended function.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			equipment to aid in snow management in as shown on the Site Maps provided in J-503060-06. The Contractor shall provide snow fencing and snow stakes in the areas identified on the Site Maps provided in J-1503060-06. Provide to the KO the OEM specifications for the proposed snow fence and snow stakes.	
3.2.1.2	Deicing Operations	The Contractor shall be responsible for providing, storing, and spreading deicing materials.	The Contractor shall provide sand, salt, or other Environmental approved deicing material for streets, roads, and parking lots identified on the Site Maps provided in J-1503060-06. Areas identified in this attachment are listed in descending order of importance. Building entrances include walkways, steps, exterior stairways, and porches. Deicing material (i.e. Calcium Chloride, Magnesium Chloride) will be utilized in place of salt/sand mixture for all concrete surfaces. Salt/sand mixture and application shall be of proportions recommended by the D.C. Department of Transportation. Sand shall be mixed with sodium chloride in the ratio of 40 – 200 pounds of salt per cubic yard of sand, in accordance with D.C. Department of Transportation specifications. The sand shall be	Deicing is performed as required to maintain all areas identified on the Site Maps provided in J-1503060-06 safe and passable. The deicing material is the correct type, size, mix ratio and is spread uniformly at the specified rate over the entire width of the streets, roads and parking lots. No deicing material is distributed in the area of the intrusion barrier.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			composed entirely of sharp, angular particles and shall pass a one-quarter inch size screen. Deicing shall be performed concurrently with the removal of snow. Deicing shall also be performed as required during weather conditions that cause ice or frozen precipitation to form or buildup and create unsafe driving conditions. The deicing material spreading shall be regulated in such a manner that an even coverage is obtained over the entire width of streets, roads, and parking lots. The deicing material shall be spread uniformly over the entire width of streets, roads, and parking lots at a rate specified by the manufacturer. Intrusion Barriers: The Contractor shall pay particular attention when removing snow and sanding over the intrusion barrier located at the security entrance gate, and ensure no deicing material is distributed on this area. The Contractor shall either mark or be familiar with the location of the barrier. No bulk storage of deicing material will be allowed on the installation	

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			without prior Government approval.	
3.2.1.3	Deicing Material Container (Building Occupant Use)	The Contractor shall provide, maintain, place and replenish deicing material along with government approved contractor supplied containers, support racks and scoops at designated locations. to ensure sufficient deicing materials are available to building occupants	The Contractor will be permitted to store deicing material for building occupant use at the Locations of Deicing Material provided in J-1503060-05a. All deicing material shall be stored in government approved containers specifically designed for this purpose and comply with all OSHA, Federal and state requirements. The Contractor shall place/refill as needed/secure containers at the beginning, during, and the end of each snow season.	Deicing material containers are placed in designated locations, and in a normal working condition. Deicing material is continuously available during the snow season. Deicing material containers are secured at the end of the snow season.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
3.2.2	Airfield Snow and Ice Removal	The Contractor shall remove snow and ice to ensure designated paved surfaces are safe and passable.	The Contractor shall provide snow and ice removal services for the runways, taxiways, ramps and, roads identified on the Site Maps provided in J-1503060-06. Areas of importance may vary depending on direction of storm or current Air or Flight Ops. Areas of importance will be designated by Air Ops for each storm. A map will be set up in zones or areas that may require changes for each storm. Airfield pavement surfaces include the helicopter pads at WRNMMC and USNO. The Contractor shall initiate work upon an initial accumulation of snow or ice accumulation on airfields. Contractor shall continue	Designated paved surfaces are safe and accessible for air operations, fire protection and vehicular traffic. Snow removal equipment operators have proper qualifications and licensing. The maximum depth of snow for radar, taxiway, runway sidelights and runway center lights does not exceed one inch maximum depth during

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			operations during the entire period of precipitation. The Contractor should expect to encounter ground operations vehicles parked or stuck in snow banks. The Contractor shall clear snow in a manner that does not create windrows around vehicles. Snow shall be cleared to within three feet of each vehicle. Snow shall not be placed against vehicles. The Contractor shall be responsible for notifying the Snow King on the locations of these vehicles to ascertain removal. It will be the Government's responsibility to have vehicles moved as required enabling snow removal operations. Contractor shall coordinate with Air Ops for the requirements since parked aircraft have specific distances the contractor should clean around. The type of clearing equipment may be specific due to height, width and length of aircraft, space between craft or type and quantity of precipitation. Except as noted below, in areas not accessible due to equipment or barriers the Contractor shall remove snow to within three feet of the equipment or barriers. The Contractor shall not place snow against any obstacle. The airfield has gates that are not normally	the entire period of precipitation.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			open but will require contractor to clear snow and ice for weapons movement or other specialty vehicles. The KO will coordinate with security to open gates as needed to remove snow from specified gates. Snow piles and windrows shall not be pushed up against or in front of structures, facilities, equipment, or placed so as to block or hinder Government access to buildings or utilities. Snow shall not be piled any closer than 30 feet from any perimeter fence line. A clear line of sight must be maintained. The Contractor shall ensure storm drains are kept clear of snow and ice and flow freely. The Contractor shall not pile snow on storm drains, and shall not store snow in such a manner as to block the natural flow into the storm drain. This includes periods of melting snow/ice between storms. The Government will provide a site plan of storm drain locations to the Contractor if requested by the Contractor after contract award. Conditions on station may differ from the surrounding area; an Authorized Government Representative may contact the Contractor's Project Manager to communicate the local conditions	

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			on station. Likewise the Contractor may contact the Authorized Government Representative for this information. Lack of communication between the Government and the Contractor during or prior to a weather event shall not relieve the Contractor of the performance standard. The Contractor shall receive clearance from the airfield operations center prior to commencing snow and ice removal operations. The Contractor shall provide radios/walkie talkies for airfield communications and coordinated operational frequencies with Air Ops no later than 14 days before the snow season for use on the airfield prior to commencing snow and ice removal operations. Contractor shall clear snow on airfield to comply with FAA and DoD requirements. The brand and location of the equipment will depend on what distances of clearance are required. Radar area will be cleared down to a predetermined depth by each site Air Ops as each site Radar operational clearance distances vary. Radar locations are identified	

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			on the Site Maps provided in J-1503060-06. Taxiway lights runway side lights will be cleared per each site airfield specification. Contractor will coordinate operational clearances with Air Ops. Taxiway light locations are identified on the Site Maps provided in J-1503060-06. Runway center lights will be cleared with care for center lighting that are; above pavement, flush with pavement or recessed lighting depending on runway setup. Runway center light locations are identified on the Site Maps provided in J-1503060-06. Special care will be taken at Deicing station. Contractor will coordinate with KO to clean deicing area as not to interfere with Air Ops. Deicing stations are identified on the Site Maps provided in J-1503060-06.	
3.2.2.1	Airfield Snow Management	The Contractor shall manage snow piles and windrows to ensure runways, taxiways, aprons and ramps can be cleared to their full width and	The Contractor shall manage piles and windrows of snow throughout the term of the contract such that the runways, taxiways, aprons and ramps, can be cleared to their full width after each storm. Snow pile management associated with large snowfalls may require the Contractor to remove snow piles at	Snow piles and windrows managed in a manner that allows for future storms and snow melting.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
		maintain safe visibility for all traffic	no additional expense to the Government when the existing piles/banks cannot be pushed back or piled higher to meet visibility, safety or access requirements. The Contractor is responsible for visibility safety, and access requirements regardless of the quality of snow pile management from the previous storm. Safe visibility criteria shall be based on the normal view obtainable from aircraft and ground vehicles required on the airfield such as, small compact automobiles. Safe visibility criteria shall be in accordance with all FAA, DoD, local laws and regulations. The Contractor shall develop and submit a Snow Removal Plan per Section F indicating when snow will be removed from the installation. It is to the Contractor's benefit to create and maintain adequate snow storage space as soon as practical, or to haul snow away leaving room for future storms. The Government has designated areas for storage/piling of snow and equipment to aid in snow management in as shown on the Site Maps provided in J-1503060-06.	No Snow pile creates a safety hazard. Snow is not piled or pushed back such that it may damage structures or limit access. No snow pile shall obstruct the view of incoming or outgoing traffic. No snow pile at a roadway intersection or parking lot entrance/exit shall exceed waist height (3 feet). Snow fence and snow stakes are in place and properly performing their intended function.

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Spec Item	Title	Performance Objective	Related Information	Performance Standard
			Snow Fencing may not be permitted in all areas as plane or jet exhaust may either destroy or create a FOD issue. Snow fencing will need to be a set distance from operational areas. Other means may be required to ensure snow does not drift back into air operations areas. The Contractor shall provide snow fencing and snow stakes in the areas identified on the Site Maps provided in J-1503060-06. Provide, to the KO, the OEM specifications for the proposed snow fence and snow stakes.	
3.2.2.2	Airfield Deicing Operations	The Contractor shall provide deicing services to ensure minimal ice accumulation.	The Contractor shall provide approved deicing liquids for runways/taxiways and aprons. Acceptable deicing fluid for runways, taxiways and aprons are potassium acetate, sodium acetate, sodium formate, potassium formate, or calcium magnesium acetate (CMA). Areas of importance may vary depending on direction of storm or current Air or Flight Ops. Areas of importance will be designed by Air Ops for each storm. A map will be set up in zones or areas that may require changes for each storm. Deicing shall be performed in accordance with FAA AC No 150/5220-32C Airport Winter	Deicing is performed as required to maintain all areas identified on the Site Maps provided in J-1503060-06 safe and passable. Airfield deicing liquid is available and ready for use once requested by Air Snow King. The deicing material is the correct type, size, mix ratio and is spread uniformly at the specified rate over the entire width of the

1503060 - Pavement Clearance				
Spec Item	Title	Performance Objective	Related Information	Performance Standard
			Safety and Operations and installation requirements.	runways, taxiways, aprons, and ramps. Deicing is performed in accordance with FAA AC No 150/5220-32C and installation requirements.

1503060 – Pavement Clearance				
Spec Item	Title	Performance Objective	Related Information	Performance Standard
4	Non-Recurring Work	Non-Recurring work may be ordered utilizing DoD EMALL in accordance with Section H or on a task order in accordance with the PROCEDURES FOR ISSUING ORDERS clause in Section G. The order will specify the exact locations and types of work to be accomplished. The number of Contractor working days will be specified in each ELIN.	Refer to Non-Recurring ELINs for task listings, descriptions, and related requirements. All periods of performance are measured from issue date of order to acceptance of the work. Performance standards for Non-Recurring work will be the same as those in Spec Item 3 where applicable.	

Section E

1. ACCEPTANCE

The performance and quality of work delivered by the contractor, including services rendered and any compiled documentation or written material shall be subject to inspection, review, and acceptance by the Government.

2. CONTRACTOR QUALITY MANAGEMENT SYSTEM (QMS)

The Contractor shall establish and maintain a Quality Management System Program, and submit a Quality Management (QM) plan, in accordance with the PWS. Each phase of services rendered under this contract is subject to government inspection during the Contractor's operations and after completion of tasks. The Government's Quality Assurance Surveillance Program is not a substitute for quality management by the Contractor. All findings of unsatisfactory or non-performed work will be administered in accordance with FAR 52.246-4 INSPECTION OF SERVICES - FIXED PRICE, Section E, using the applicable ELIN in the ELIN schedule as the basis for any deductions. All costs associated with rework are the responsibility of the Contractor. The Government reserves the right to choose the inspection methods to be used in implementing its Quality Assurance Surveillance Program and to vary the inspection methods utilized during contract performance without notice to the Contractor.

3. PERFORMANCE EVALAUTION MEETINGS

The Contractor shall meet with the Government's representative weekly during the first six (6) months of the contract. Thereafter, meetings will be as often as necessary at the discretion of the Contracting Officer, but not less than monthly. A mutual effort will be made to resolve all problems identified. The written minutes of these meetings, prepared by the Government, shall be signed by the Contractor's representative and the Government's representative. Should the Contractor not concur with the minutes, the Contractor shall state, in writing, to the Contracting Officer any areas of disagreement within ten (10) calendar days.

The Government will periodically assess the Contractor's overall performance in the Contractor Performance Assessment System (CPARS) allowing for correction and documentation of substandard performance. The Contractor will be afforded an opportunity to comment on each evaluation performed. The Contractor has 30 calendar days to submit written comments on unsatisfactory ratings.

Section F

Contained in this Section:

F-0200000 – Management and Administration

F-1503050 – Maintenance and Landscaping

F-1503060 – Pavement and Snow Clearing

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.2.1.2	N/A	Request to Work Outside Government's Regular Working Hours	At least seven calendar days prior to requested day.	KO and COR	1	As required
2.3.1	N/A	Sign-in Sheets and Minutes for Review and Comments	Within two working days	KO, COR and all attendees	1	As Required
2.3.1	N/A	Sign-in Sheets and Minutes Final Revision	Within two working days	KO, COR and all attendees	1	As Required
2.3.4	N/A	Permits and Licenses	Before work commences, after renewal and as requested by the KO.	KO and COR	1	As specified

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.3.5	N/A	Certificate of Insurance	Within 15 calendar days prior to contract start.	KO and COR	1	As specified
2.3.5	N/A	Written Notice of cancellation or material change in policy coverage	At least 30 calendar days prior to cancellation or material change in policy coverage	KO and COR	1	As required
2.6.1	N/A	Plans of Action and Milestones (POA&Ms)	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO, COR, and Command Security Manager	1	As required
2.6.1	N/A	Cybersecurity Incident	Immediately upon discovery during regular working hours and by 0800 the following work day for discoveries after regular working hours	KO, COR, and Command Security Manager	1	As required

Section F 0200000

Deliveries or Performance

DELIVERABLES

Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.6.4	N/A	Scheduling and Work Status Updates	Weekly, within 30 minutes of the inquiry during regular working hours, and by 08:00 the following work day for inquiries after regular working hours	KO and COR	1	As Specified
2.6.4	N/A	Work Schedules	Within 15 calendar days prior to contract start, 10 days prior to the beginning of the month in which services are scheduled to be performance, and within two calendar days of changes.	COR	1	Monthly
2.6.5	N/A	Notification of any Difficulty in Scheduling Work	By the end of each workday	KO and COR	1	As required

Section F 0200000

Deliveries or Performance

DELIVERABLES

Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.6.6	N/A	Status of Deliverables	Within 30 minutes of the inquiry during regular working hours, and by 0800 the following work day for inquiries after regular working hours	KO and COR	1	As required
2.6.7	N/A	Service Interruptions	At least five working days in advance	KO and COR	1	As required
2.6.9.1	N/A	Quality Management Plan	Within 15 calendar days prior to contract start.	KO and COR	1	As specified
2.6.9.1	N/A	Revised Quality Management Plan	Within seven calendar days of changes.	KO and COR	1	As specified
2.6.9.2	N/A	QC Inspection File	Within five calendar days of completion/ termination of the contract.	KO and COR	1	As specified
2.6.9.3	N/A	Contractor Quality Inspection and Surveillance Report	First work day of each month.	KO and COR	1	Monthly

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.7.1	N/A	List of Key Personnel and Qualifications	Within 15 calendar days prior to contract start	KO and COR	1	As specified
2.7.1	N/A	Organizational Chart	Within 15 calendar days prior to contract start	KO and COR	1	As specified
2.7.2.6	N/A	Proof of Legal Residency	Prior to be admitted to site of work.	KO and COR	1	As specified
2.7.2.6	N/A	Proof of United States of America Citizenship	Prior to be admitted to site of work.	KO and COR	1	As specified
2.7.3	N/A	Service Contract Reporting (SCR)	No later than 31 October	KO and COR	1	Annually for labor executed during the period of performance during each Government fiscal year (FY)
2.8.1	N/A	Employee List	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO and COR	1	As required

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.8.8	N/A	OF-306 Declaration for Federal Employment and Digital Fingerprints	Prior to commencement of work	KO, COR, and Security Manager	1	As required
2.8.9	N/A	List of personnel requiring access to and the justification for their access to Government IT, OT, and FRCS	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO, COR, and Security Manager	1	As required
2.9.2	N/A	Accident Prevention Plan	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO and COR	1	As specified
2.9.3	N/A	Activity Hazard Analysis	Together with the Accident Prevention Plan and within seven calendar days of and changes.	KO and COR	1	As specified
2.9.4	N/A	Compliance Plans, Programs, and Procedures	Together with the Accident Prevention Plan and within seven calendar days of and changes.	KO and COR	1	As specified

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.9.4.7	N/A	Control of Hazardous Energy (lockout/tagout)	Within 30 calendar days after annual inspection.	KO and COR	1	Annually
2.9.6	J-0200000-05	NAVFAC Contractor Incident Reporting System (CIRS)	Within five calendar days of accident.	KO and COR	1	As required
2.9.8	N/A	Monthly On-Site Labor Report	First work day of each month.	KO and COR	1	Monthly
2.9.9	N/A	OSHA Citations and Violations Corrective Action Report	Within 48 hours after receiving a citation.	KO and COR	1	As required
2.9.10	N/A	Safety Inspection and Monitoring Report	Upon request.	KO and COR	1	As required
2.9.11	N/A	Safety Certifications	Within 15 calendar days prior to contract start and as old certifications, expire.	KO and COR	1	As specified
2.10	N/A	EMS Goals and Policy Measurement Information	Upon request.	KO and COR	1	As required

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.10.1.1	N/A	Water Conservation Plan	Within 15 calendar days after award and for changes.	KO and COR	1	As specified
2.10.2	N/A	Environmental Protection Plan	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO and COR	1	As specified
2.10.2.1	N/A	Sampling Plan	Prior to Sampling	KO and COR	1	As required
2.10.2.1	N/A	Laboratory Analysis	Upon Request	KO and COR	1	As specified
2.10.2.2	N/A	Class I and II ODS Report- <u>Not Applicable</u>	Within 24 hours following delivery of refrigerant to DLA	KO and COR	1	As required
2.10.2.3	J-0200000-05	Solid Waste Management and Recycling Reports	First work day of each month.	KO and COR	1	Monthly
2.10.2.3	J-0200000-05	Summary Solid Waste Management and Recycling Report	By October 10th	KO and COR	1	Annually

Section F 0200000						
Deliveries or Performance						
DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.10.2.5	N/A	Waste Stream Determination	Within 30 calendar days prior to start of contract performance and within 14 days of identification of any new waste stream.	KO and COR	1	As required
2.10.2.7	N/A	Fuel and hazardous substance spill notification	Within 15 minutes of discovery	Regional Dispatch Center	1	As required
2.10.2.7	N/A	Fuel and hazardous substance spill notification	As soon as possible but not more 24 hours of discovery	KO and COR	1	As required
2.10.2.7	N/A	Fuel and hazardous substance spill report	Within 48 hours of discovery	KO and COR	1	As required
2.10.2.8	N/A	Emergency Planning and Community Right-To-Know Act (EPCRA) Report	Within 15 calendar days prior to contract start and not less than 10 working days prior to planned use of hazardous material.	KO and COR	1	As specified

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Deliveries or Performance

DELIVERABLES

Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.10.2.8	J-0200000-05	Contractor Hazardous Material Inventory Log	Within 15 calendar days after the end of each calendar year and at termination of the contract.	KO and COR	1	Annually
2.10.3	N/A	Sustainable Procurement and Practices Plan	Within 15 calendar days prior to contract start and within 15 calendar days after exercised option periods.	KO and COR	1	Annually
2.10.3	N/A	Sustainable Delivery of Services Report	Within five calendar days after each contract period.	KO and COR	1	Annually
2.10.3.2	N/A	Recovered Material Certification	As specified	KO and COR	1	When a product containing recovered materials is equal to or better than the original and could be used.

Section F 0200000

Deliveries or Performance

DELIVERABLES

Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.11	N/A	Mission Essential Contractor Services Plan	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO and COR	1	As Required
2.11	N/A	Mission Critical/Mission Essential Personnel	Within 15 calendar days prior to contract start and within seven calendar days of changes.	KO and COR	1	As specified
2.14.1		Recurring Work Proposals	Within five calendar days following receipt of request	KO and COR	1	As required
2.14.2	N/A	Notification to the Government for Work Above the Recurring Work Limitations and Rough Order of Magnitude	Within two hours of identification	KO and COR	1	As required
2.15.1.1	N/A	Non-Recurring Work Quantities Ordered via FedMall	By the fifth day of the following month	KO and COR	1	Monthly
2.15.2.1	N/A	Non-Recurring Work Proposals	Within two working days following receipt of request	KO	1	As required

Section F – 1503050
Grounds Maintenance and Landscaping

DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
2.2.1	N/A	Certification, Training, and Licensing	Within 15 calendar days prior to start of work. Copies of renewed certifications shall also be submitted.	KO/COR	2	Annually and as required by Section H – Special Contract Requirements, FAC 5252.237-9301 Substitutions of Key Personnel (JUN 1994)
2.3.1.1	N/A	Business Licensing	Within 15 calendar days prior to contract start. Copies of renewed licenses shall also be submitted.	KO/COR	2	As required
2.3.1.4	N/A	Planned Pesticide/ Herbicide Use Sheets including Pesticide/ Herbicide Labels and Safety Data Sheets (SDS)	Within 15 calendar days prior to contract start and at least 10 business days for any proposed changes.	KO, COR, PPMC	3	Annually for each pesticide/herbicide, as required.
2.3.1.5	N/A	Pest Management Operations Report	Electronically by the 15th of the following month (Example: July data must be submitted by August 15) on the format approved by PMC.	KO, COR, PPMC	2	Monthly
2.3.2	N/A	Permits	Within 15	KO/COR	2	As required

Section F – 1503050
Grounds Maintenance and Landscaping

DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
			calendar days prior to start of work.			
2.3.9.1	N/A	Water Conservation Plan	Within 15 calendar days prior to contract start	KO/COR	2	Annually and five calendar days prior to implementing changes to the schedule
3	N/A	Weight Tickets	With Invoice	KO/COR	2	As Specified
3	N/A	SDS sheets, catalog cut sheets, samples of all proposed fertilizers, and mulch	Prior to bringing on-board installation and prior to use	KO/COR	2	As Required
3	N/A	Contractor Work Schedules	Within 15 calendar days prior to contract start	KO/COR	2	Annually and five calendar days prior to implementing any changes to the schedule
3.1.1.3	N/A	Soil Analysis	Within 15 days after receipt of the test results by the Contractor	KO/COR	2	As Required
3.1.1.3	N/A	Top Dressing and Over Seeding Seed Type	Within 15 calendar days prior to contract start	KO/COR	2	Annually and five calendar days prior to implementing changes to the schedule
3.1.4	N/A	Irrigation System Repair Plan and Monthly Maintenance Schedule	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.1.5	N/A	Shrub and Hedge	Within 15 calendar days	KO/COR	2	Initially before contract start and five calendar days

Section F – 1503050
Grounds Maintenance and Landscaping

DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
		Maintenance Schedule	prior to contract start			prior to implementing changes to the plan/schedule
3.1.7	N/A	Schedule for Control of Undesirable Vegetation	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.5.2	N/A	Schedule to Maintain Dump Tipple-Carderock	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.5.3	N/A	Schedule to Clean Gutters and/or Roof Drains-NSWC Caderock	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.5.5	N/A	Schedule for Playground Maintenance	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.5.6	N/A	Schedule for Ball Field Maintenance	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.5.7	N/A	Schedule for CNO Barge Maintenance	Within 15 calendar days	KO/COR	2	Initially before contract start and five calendar days

Section F – 1503050
Grounds Maintenance and Landscaping

DELIVERABLES						
Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original	Copies (including original)	
			prior to contract start			prior to implementing changes to the plan/schedule
3.5.8	N/A	Schedule for Debris Removal- WNY, Carderock, NRL, ASC, USNO, and MBW	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.7	N/A	Schedule for Interior Plant Maintenance	Within 15 calendar days prior to contract start	KO/COR	2	Initially before contract start and five calendar days prior to implementing changes to the plan/schedule
3.8	N/A	Green Waste/Yard Waste Tonnage Report	10 th Calendar Day of each month waste is generated	KO/COR	2	Monthly during waste generation

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Annex/ Spec Item	Form Attachment Number	Deliverable Title	Date (s) of Submission	Distribution		Frequency
				Original/ Copies	Number of Copies (including original)	
2.2.1	N/A	Permits and Licenses	Prior to start of annual operations or renewal of permit/license	KO/COR	2	As Required
3.1.1	N/A	Schedule for Pavement Sweeping Services	15 working days after award and 15 working days after the start of each option year	KO/COR	2	Annually
3.2.1.1, 3.2.2.1	N/A	Snow Removal Plan	15 working days after award and 15 working days after the start of each option year	KO/COR	4	Annually

Section G

CONTRACT ADMINISTRATION DATA

1. IDENTIFICATION OF PROCURING/ADMINISTRATIVE CONTRACTING OFFICER/ORDERING OFFICER

NAVFAC Washington
FSC CON20
1314 Harwood St. SE, Building 212,
Washington Navy Yard, Washington, D.C. 20374

2. ADMINISTRATIVE CONTRACTING OFFICERS

The Administrative Contracting Office is responsible for the contract in its entirety and possesses complete authority to modify the terms of the basic contract. NAVFAC Washington Contracting Officers and authorized ordering officers will be responsible for ordering and administration of the individual Task Orders. The terms "Contracting Officer" and "Ordering Officer" may be used interchangeably when referring to individual Task Orders. All post-award and administrative correspondence, i.e., insurance, Preliminary Notices, etc., shall be addressed to the ACO and shall include the Contract number and Task Order number as applicable.

3. CONTRACTING OFFICER'S REPRESENTATIVE (COR)

The COR for the basic contract and all task orders will be designated in writing by the Contracting Officer. The COR functions as the technical representative of the Contracting Officer in the administration of the basic contract, providing technical direction and discussion as necessary, with respect to the specifications or statement of work, and monitoring the performance of work under the contract. CORs are not authorized to take any action, either directly or indirectly, that could result in a change in the pricing, quantity, quality, place of performance, delivery schedule, or other terms and conditions of the basic contract or Task Orders, or to direct the accomplishment of efforts which would exceed the scope of the basic contract or Task Orders. If the contractor believes that a COR's interpretation of specifications is erroneous, the contractor shall notify the responsible Contracting Officer in writing of this position.

It is important to note that only the Contracting Officer has the authority to modify the terms of the contract, and in no event will any understanding or agreement that deviates from the terms of the basic contract between the Contractor and any other person be effective or binding on the Government.

4. OMBUDSMAN

The agency's designated Task Order Ombudsman is the NAVFAC Washington Commanding Officer (CO). The CO is located at 1314 Harwood St. SE, Building 212, Washington Navy Yard, DC 20374-5018, and is responsible for ensuring that all contractors are afforded a fair opportunity to be considered for award of Task Orders, in accordance with the requirements of the contract.

5. ORDER ISSUANCE PROCEDURES

A task order for recurring services will be issued using DD Form 1155 "Order for Supplies and Services" at the time of award and at the time each option period is exercised.

An order for non-recurring services will be ordered on an as-needed basis in one of the following ways:

The ACO may issue a task order using DD Form 1155.

An order may be placed through FedMall by an authorized Government Commercial Purchase Card (GCPC) user.

The Contractor is required to obtain FedMall access and ensure ELIN schedules are updated to support orders within any performance period. When receiving an order through FedMall, the Contractor shall provide the services at the applicable ELIN price without additional markup or handling fee. The FedMall Supplier Portal, <https://www.suppliers.fedmall.mil>, provides registration information and access to Web-Based Training.

6. FEDMALL BLANKET TASK ORDERS (BTOs)

The Government reserves the right to issue BTOs with bulk funding for non-recurring work; however, performance of work shall not commence until written authorization is received from the Contracting Officer. Each issued BTO and subsequent work authorization will include a firm fixed- price not-to-exceed amount which can only be altered via BTO modification.

The Contractor is required to support monthly reconciliation of Blanket Task Orders to verify work completed, assurance of work completed within the limits of available funds, and remaining capacity.

7. CAPACITY REPORTING REQUIREMENTS

The contractor shall track all orders (whether issued via Task Order or through FedMall) and provide a monthly report to the ACO and COR by the fifth day of the following month. The contractor must inform the ACO when total dollar value of all orders for non-recurring services reaches 75% of the total NTE value.

Awardee shall not accept task orders that exceed the estimated maximum contract value and/or the performance period. Awardee shall submit a report on the fifth day of each month immediately after award of the basic contract identifying total orders received/awarded.

A monthly capacity report shall be submitted to the COR, ACO, and the Capacity Report Point(s) of Contact (POC) at each of the PWDs serviced in the contract. Capacity Report POC and format/excel monthly sheet will be provided to the awardee upon award. Negative responses are also required each month.

Capacity Notification shall be submitted to the COR, ACO, and the Capacity Report Point(s) of Contact (POC) at each of the PWDs serviced in the contract. The Contractor shall provide a capacity notification when the remaining contract capacity reaches 30%, 20%, and 10%. Notification shall be made within one (1) business day of receiving any order which results in a requirement to provide capacity notification.

A capacity report shall be provided separately to the ordering officer for each task order. The capacity report must be sent beginning on the fifth of the month following task order award through the fifth of the month following task order completion.

Failure to submit this report on time each month will result in a lower rating on the monthly Performance Assessment Summary Evaluation Form.

8. SERVICE CONTRACT REPORTING REQUIREMENTS

Service Contract Reporting (SCR) requirements apply to this contract. The contractor shall report required SCR data fields using the SCR section of the System for Award Management (SAM) at following web address: <https://sam.gov/content/home>. Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year.

9. POST -AWARD LIMITATION ON SUBCONTRACTING CERTIFICATION

FAR 52.219-14 Limitations on Subcontracting requirements apply to this contract. The contractor shall submit Individual Subcontracting Reported (ISRs) semi-annually via the government's electronic Subcontracting Reporting System (eSRS) at <https://www.esrs.gov>. ISRs are due within 30 days of the close of each reporting period. Reporting aligns with the Government's fiscal year; the first reporting period runs October 1 through March 31, and the second reporting period runs October 1 through September 30. Also, upon request by the Government, the Contractor agrees to provide payroll data, subcontractor/vendor paid invoices, and other financial records in order to substantiate contractor-submitted information contained in its ISRs.

10. PAYMENT INSTRUCTIONS

Payments shall be made in accordance with the WAWF Clause of the respective Task Order. The standard payment instructions identified in the link below are also applicable to this Contract/Task Order:

https://www.acq.osd.mil/dpap/dars/pgi/pgi_html/current/PGI204_71.htm#payment_instructions

Reference DFARS 252.232-7006, Wide Area Workflow Payment Instructions

Section H

1. FEDMALL and Government-wide commercial purchase card orders

FedMall is a U.S. Government owned and operated web-based ordering system that enables any Department of Defense (DoD) or Federal activity to search for and order goods and services. The Contractor is required to obtain FedMall access and ensure ELIN schedules are updated to support orders for non-recurring services that may be placed by an authorized Government Commercial Purchase Card (GCPC) user. The FedMall Supplier Portal provides registration information and access to Web Based Training at <https://www.suppliers.fedmall.mil>.

The contractor is required to receive and accept electronically submitted orders issued through FedMall using 128-bit encrypted email. The contractor agrees to purchase, install, and utilize the most recent version of PGP Personal software, or a comparable solution, for the purpose of decrypting order notification emails from FedMall. In addition, the DoD has established the External Certification Authority (ECA) program to support the issuance of DoD-approved certificates to contractors. The ECA program is designed to provide the mechanism for contractors to securely communicate with the DoD and authenticate to DoD Information Systems. The contractor agrees to purchase, install, maintain and use a DoD-approved ECA certificate. Information on obtaining an ECA certificate can be found at <https://public.cyber.mil/eca/obtain-an-eca-certificate>.

The Contractor is required to ensure ELIN schedules are uploaded and updated with expedience to support orders within any performance period. Contractors shall do so, as follows:

- a) Contractors with previous FedMall access shall have ELINs loaded within one (1) month of contract award.
- b) Contractors without previous FedMall access shall have ELINs loaded within two (2) months of contract award. Additional time has been allotted herein to permit the Contractor to gain access to FedMall; based on the rigorous process, the Contractor is encouraged to initiate access upon award in order to meet this deadline.
- c) Upon the Government's notification to the Contractor of its intent to award a subsequent option period, the Contractor shall remove the current pricing the last day of the performance period and initiate upload of the ELIN schedule for the respective option period to ensure its availability no later than the first day of performance.
- d) The contractor shall post updates on order delivery schedule and performance to the FedMall within three (3) business days.

The contractor is required to offer IQ pre-priced line- item services to authorized Government personnel when they are ordering the work directly via the Government Wide Commercial Purchase Card (GCPC) program. When receiving GCPC orders against Section B, the contractor shall provide the supplies and services at the offered price without additional markup or handling fee.

The contractor agrees to self-register, upload catalog, accept and process electronically submitted GCPC orders for IQ services, including those orders issued through the Fed-Mall. The Fed-Mall is a U.S. Government (USG) owned and operated web-based ordering system that enables any Department of Defense (DOD) or Federal activity to search for and order goods and services. Authorized GCPC users will receive approved accounts on Fed-Mall to view and order IQ line items. The Contractor will be required to support Fed-Mall orders in accordance with Contractor Support of Electronic Contracting.

The contractor is required to receive electronic IQ orders from FEDMALL using 128-bit encrypted email. The contractor agrees to purchase, install, and utilize the most recent version of PGP Personal software, or a comparable solution, for the purpose of decrypting order notification emails from FEDMALL. In addition, the DoD has established the External Certification Authority (ECA) program to support the issuance of DoD-approved certificates to contractors. The ECA program is designed to provide the mechanism for contractors to securely communicate with the DoD and authenticate to DoD Information Systems. The contractor agrees to purchase,

install, maintain and use a DoD-approved ECA certificate. Information on obtaining an ECA certificate can be found at the following sites:

<https://public.cyber.mil/eca/obtain-an-eca-certificate>
Supplier Portal (fedmall.mil)
<https://suppliers.fedmall.mil>
<https://piee.eb.mil/xhtml/unauth/help/helpvendors.xhtml>

The Contractor is required to ensure ELIN schedules are uploaded and updated with expedience to support orders within any performance period. Contractors shall do so, as follows:

Contractors with previous FedMall access shall have ELINs loaded within one (1) month of contract award.

Contractors without previous FedMall access shall have ELINs loaded within two (2) months of contract award.

Additional time has been allotted herein to permit the Contractor to gain access to FedMall; based on the rigorous process, the Contractor is encouraged to initiate access upon award in order to meet this deadline.

Upon the Government's notification to the Contractor of its intent to award a subsequent option period, the Contractor shall remove the current pricing the last day of the performance period and initiate upload of the ELIN schedule for the respective option period to ensure its availability no later than the first day of performance.

The contractor shall post updates on order delivery schedule and performance to the FedMall within three (3) business days.

REGISTRATION & DOWNLOAD FROM FEDMALL:

Contractor shall obtain the latest version of the FED Mall Quick Start Supplier Registration. Follow the procedures in the guide to prepare FEDMALL catalog as prescribed in the DLA Fed-Mall Quick Start Guide Supplier Catalog Template from DLA using pricing information from Section J of the contract. (Note: FEDMALL can accept no more than 4 decimal places on unit prices.) ELINS that require negotiations such as "Labor and Materials" shall be issued via Task Orders only through the Contracts Office. Do not include tasks classified as construction in the FEDMALL catalog. Contractor shall verify accuracy of information and catalog format. Contractor is required to complete the Supplier Information Sheet obtained in step 1. Review to ensure accuracy. The government POC for the form are as follows:

Name: James Waite, Contracting Officer

Email: james.h.waite.civ@us.navy.mil

Phone: (202) 802-4902

Contract Specialist:

Name: Julian Cuadros

Email: julian.r.cuadros.civ@us.navy.mil

Phone: (202) 802-6602

Technical POC:

Name: John Bean

Email: john.f.bean10.civ@us.navy.mil

Phone: (301) 904-1043

Contractor to upload provide their Pretty Good Privacy (PGP) key in Note Pad and final catalog on the FEDMALL website. Defense Logistics Agency will generate a test order on FEDMALL. When process test is complete.

Contractor shall notify COR/KO that the catalog is available on FEDMALL. The COR shall notify the PWDs that contract is ready for ordering. The contractor shall post updates on order delivery schedule and performance to the Fed-Mall in a timely manner. The contractor shall track quantities and report total ordered quantity in Fed-Mall and approved DD 1155's by line-item number each month and year-to-date. The report shall be due to the Contracting Officer by the fifth day of the following month. The contractor must track and report when total dollar value of all

orders from both GCPC purchases and DD 1155s exceed 75% of the combined Section B Pre-Priced Line-Item quantities.

2. PGP SOFTWARE

Questions regarding acceptable PGP Software required for DoD FEDMALL can be directed to the DoD FEDMALL helpdesk at: Email:dlacontactcenter@dla.mil.

For Navigation, Ordering Assistance or Procedural issues please contact the Customer Interaction Center at: Toll Free: 1-877-352-2255DSN CONUS/OCONUS: 877-352-2255

For more information, see attachment H1 Fed-Mall Quick Start Guide Supplier Registration.

3. HISTORICAL AND ARCHAEOLOGICAL RESOURCES

Carefully protect in-place and report immediately to the Contracting Officer historical and archaeological items or human skeletal remains discovered in the course of work. Stop work in the immediate area of the discovery until directed by the Contracting Officer to resume work. The Government retains ownership and control over historical and archaeological resources.

4. SUBCONTRACTING

After award and the start of performance, the contractor shall provide a biannual report to the Contracting Officer and Contracting Officer Representative (COR) listing the percentages and value of subcontracted work accomplished. If necessary, additional information may be requested by the Contracting Officer so that the Government may monitor the requirement for this service contract under FAR clause 52.219-14 Limitations on Subcontracting.

5. SECURITY REQUIREMENTS

Reference 0200000 C Management and Administration, Spec. Item 2.8.

6. SECURITY CLASSIFICATION

J Attachment 4.0, Secnav5512, located in Section J provides the base access information required for performance of the work described in this solicitation. Department of Defense Contract Security classification (DD254) will be issued at time of award.

7. LABOR RELATIONS

The Contracting Officer will not participate in labor relations matters between the Contractor and any of its employee unions.

8. ENGLISH SPEAKING REPRESENTATIVE

At all times when any performance of the work at the site is being conducted by any employee of the Contractor or his subcontractors, the Contractor shall have a representative present on the site that is capable of explaining the work operations and receiving instruction in the English language. The Contracting Officer shall have the right to determine, without appeal of such decision, whether the proposed representative has sufficient technical and lingual capabilities, and the Contractor shall immediately replace any individual not acceptable to the Contracting Officer.

9. CODE COMPLIANCE

The installation and facilities and all other locations and facilities covered under this contract are subject to compliance with all applicable U.S. Code.

10. WAGE DETERMINATION

The Service Contract Act (SCA) Wage Determinations (WD) listed below are hereby incorporated into this solicitation and the resulting award for all requirements. The full WD for each will be provided as attachments to this solicitation. See Section J for the complete list of attachments.

** J Attachment 5.0: SCA WD 2015-4269 rev. 31, dated 12/5/2025

** J Attachment 5.1: SCA WD 2015-4281 rev. 35, dated 12/5/2025

** J Attachment 5.2: SCA WD 2015-4329 rev. 32, dated 12/5/2025

** J Attachment 5.3: DSA CBA 2023

11. BLANKET TASK ORDER PROCEDURES

To adequately support mission requirements, the Government reserves the right to issue Blanket Task Orders (BTOs) with bulk funding for non-recurring work based on anticipated needs for a specified period. Performance of work shall not commence until authorization via a Notice to Proceed (NTP) is received from the Contracting Officer. The NTP will be given by the Contracting Officer for each negotiated work authorization and will include a firm fixed-price not-to-exceed amount which can only be altered via BTO modification.

Section I

THE FOLLOWING FAR CLAUSES ARE APPLICABLE TO THIS PROCUREMENT AND ARE INCORPORATED BY REFERENCE:

52.203-3 Gratuities. Apr 1984
52.203-5 Covenant Against Contingent Fees. May 2014
52.203-7 Anti-Kickback Procedures. Jun 2020
52.203-8 Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity. May 2014
52.203-10 Price or Fee Adjustment for Illegal or Improper Activity. May 2014
52.203-12 Limitation on Payments to Influence Certain Federal Transactions. Jun 2020
52.203-17 Contractor Employee Whistleblower Rights. Nov 2023
52.204-9 Personal Identity Verification of Contractor Personnel. Jan 2011
52.204-13 System for Award Management Maintenance. Oct 2018
52.204-18 Commercial and Government Entity Code Maintenance. Aug 2020
52.204-23 Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities. Dec 2023
52.204-25 Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. Nov 2021
52.207-3 Right of First Refusal of Employment. May 2006
52.209-10 Prohibition on Contracting with Inverted Domestic Corporations. Nov 2015
52.210-1 Market Research. Nov 2021
52.212-4 Contract Terms and Conditions-Commercial Products and Commercial Services. Nov 2023
52.215-2 Audit and Records-Negotiation. Jun 2020
52.215-8 Order of Precedence-Uniform Contract Format. Oct 1997
52.215-14 Integrity of Unit Prices. Nov 2021
52.222-1 Notice to the Government of Labor Disputes. Feb 1997
52.222-4 Contract Work Hours and Safety Standards -Overtime Compensation. May 2018
52.222-37 Employment Reports on Veterans. Jun 2020
52.222-50 Combating Trafficking in Persons. Nov 2021
52.223-2 Reporting of Biobased Products Under Service and Construction Contracts. May 2024
52.223-5 Pollution Prevention and Right-to-Know Information. May 2024
52.223-10 Waste Reduction Program. May 2024
52.225-13 Restrictions on Certain Foreign Purchases. Feb 2021
52.227-1 Authorization and Consent. Jun 2020
52.228-5 Insurance-Work on a Government Installation. Jan 1997
52.229-3 Federal, State, and Local Taxes. Feb 2013
52.232-1 Payments. Apr 1984
52.232-8 Discounts for Prompt Payment. Feb 2002
52.232-9 Limitation on Withholding of Payments. Apr 1984
52.232-11 Extras. Apr 1984
52.232-17 Interest. May 2014
52.232-18 Availability of Funds. Apr 1984
52.232-23 Assignment of Claims. May 2014
52.232-25 Prompt Payment. Jan 2017
52.232-39 Unenforceability of Unauthorized Obligations. Jun 2013
52.232-40 Providing Accelerated Payments to Small Business Subcontractors. Mar 2023
52.233-1 Disputes. May 2014
52.233-1 Disputes. (Alternate I) May 2014 Alternate I Dec 1991

52.233-3 Protest after Award. Aug 1996
52.233-4 Applicable Law for Breach of Contract Claim. Oct 2004
52.236-17 Layout of Work. Apr 1984
52.237-2 Protection of Government Buildings, Equipment, and Vegetation. Apr 1984
52.237-3 Continuity of Services. Jan 1991
52.242-13 Bankruptcy. Jul 1995
52.242-14 Suspension of Work. Apr 1984
52.243-1 Changes-Fixed-Price. (Alternate II) Aug 1987 Alternate II Apr 1984
52.244-5 Competition in Subcontracting. Aug 2024
52.244-6 Subcontracts for Commercial Products and Commercial Services. Jan 2025
52.245-1 Government Property. Sep 2021
52.245-9 Use and Charges. Apr 2012
52.246-25 Limitation of Liability-Services. Feb 1997
52.249-2 Termination for Convenience of the Government (Fixed-Price). Apr 2012
52.249-8 Default (Fixed-Price Supply and Service). Apr 1984
52.253-1 Computer Generated Forms. Jan 1991

THE FOLLOWING DFARS CLAUSES ARE APPLICABLE TO THIS PROCUREMENT AND ARE INCORPORATED BY REFERENCE:

252.203-7000 Requirements Relating to Compensation of Former DoD Officials. Sep 2011
252.203-7001 Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies. Jan 2023
252.203-7002 Requirement to Inform Employees of Whistleblower Rights. Dec 2022
252.204-7000 Disclosure of Information. Oct 2016
252.204-7003 Control of Government Personnel Work Product. Apr 1992
252.204-7004 Antiterrorism Awareness Training for Contractors. Jan 2023
252.204-7012 Safeguarding Covered Defense Information and Cyber Incident Reporting. May 2024
252.204-7015 Notice of Authorized Disclosure of Information for Litigation Support. Jan 2023
252.204-7018 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services. Jan 2023
252.204-7020 NIST SP 800-171 DoD Assessment Requirements. Nov 2023
252.205-7000 Provision of Information to Cooperative Agreement Holders. Oct 2024
252.209-7004 Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism. May 2019
252.217-7012 Liability and Insurance. Aug 2003
252.219-7011 Notification to Delay Performance. Jun 1998
252.225-7012 Preference for Certain Domestic Commodities. Apr 2022
252.225-7013 Duty-Free Entry. Nov 2023
252.225-7015 Restriction on Acquisition of Hand or Measuring Tools. Jun 2005
252.225-7016 Restriction on Acquisition of Ball and Roller Bearings. Jan 2023
252.225-7036 Buy American-Free Trade Agreements--Balance of Payments Program. Feb 2024
252.225-7056 Prohibition Regarding Business Operations with the Maduro Regime. Jan 2023
252.225-7060 Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region. Jun 2023
252.226-7001 Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns. Jan 2023
252.232-7004 DoD Progress Payment Rates. Oct 2014
252.232-7010 Levies on Contract Payments. Dec 2006
252.237-7010 Prohibition on Interrogation of Detainees by Contractor Personnel. Jan 2023

252.243-7001 Pricing of Contract Modifications. Dec 1991
252.243-7002 Requests for Equitable Adjustment. Dec 2022
252.244-7000 Subcontracts for Commercial Products or Commercial Services. Nov 2023
252.245-7003 Contractor Property Management System Administration Jan 2025
252.247-7023 Transportation of Supplies by Sea. Oct 2024

THE FOLLOWING FAR CLAUSES ARE APPLICABLE TO THIS PROCUREMENT AND ARE INCORPORATED BY FULL TEXT:

52.216-23 EXECUTION AND COMMENCEMENT OF WORK (APR 1984)

The Contractor shall indicate acceptance of this letter contract by signing three copies of the contract and returning them to the Contracting Officer not later than N/A. Upon acceptance by both parties, the Contractor shall proceed with performance of the work, including purchase of necessary materials.

*** SEE INDIVIDUAL TASK ORDER FOR SPECIFIC INFORMATION**

(End of clause)

52.216-24 LIMITATION OF GOVERNMENT LIABILITY (APR 1984)

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding N/A dollars.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is N/A dollars.

SEE INDIVIDUAL TASK ORDER FOR SPECIFIC INFORMATION

(End of clause)

52.203-14 Display of Hotline Poster(s). (Nov 2021)

DISPLAY OF HOTLINE POSTER(S) (NOV 2021)

(a) *Definition.*

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) *Display of fraud hotline poster(s).* Except as provided in paragraph (c)-

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites-

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

Poster(s) Obtain from

NFWASH, (202)-685-1732, DSN: 325

Email: NAVFACWASHIG@us.navy.mil

(Contracting Officer shall insert-

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract-

(1) Is for the acquisition of a commercial product or commercial service; or

(2) Is performed entirely outside the United States.

(End of clause)

52.204-30 Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-PROHIBITION (DEC 2023)

(a) *Definitions.* As used in this clause-

Covered article, as defined in 41 U.S.C. 4713(k), means-

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following-

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency-

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) Prohibition.

- (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:
 - (i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.
 - (ii) For all other solicitations and contracts DHS FASCSA orders apply.
- (2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).
- (3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.
- (4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)

(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied

or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.*

(1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to

check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)

(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

- (ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:
- (A) Any further available information about mitigation actions undertaken or recommended.
- (B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.
- (d) *Removal.* For Federal Supply Schedules, Government-wide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.
- (e) *Subcontracts.*
- (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.
- (2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

**52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders-
Commercial Products and Commercial Services.
(Jan 2025)**

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE
ORDERS-COMMERCIAL
PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☒ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☐ (26)

- (i) 52.219-28, Post award Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).
- ☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).
- ☒ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).
- ☒ (34)
- (i) 52.222-26, Equal Opportunity (SEP 2016) (E.O.11246).
- ☐ (ii) Alternate I (FEB 1999) of 52.222-26.
- ☒ (35)
- (i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☒ (36)
- (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- (ii) Alternate I (JUL 2014) of 52.222-36.
- ☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- ☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☒ (39)
- (i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

- ☐ (41)
(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A) (ii). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☒ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☒ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☐ (47)
(i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
(i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

☐ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☒ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- ☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
- ☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- ☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- ☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 Ordering. (Aug 2020)

ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 01 April 2026 through 31 March 2031[insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,500.00[insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$19,471,591.99 [insert dollar figure or quantity];

(2) Any order for a combination of items in excess of \$19,471,591.99 [insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within two days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within two days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Oct 1995)

INDEFINITE QUANTITY (OCT 1995)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."
- (c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after 30 September 2031[insert date].

(End of clause)

52.217-8 Option to Extend Services. (Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **60** days prior to the end of the contract.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor within 60 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **60** days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months (months) (years).

(End of clause)

52.219-14 Limitations on Subcontracting. (Oct 2022)

LIMITATIONS ON SUBCONTRACTING (OCT 2022)

- (a) This clause does not apply to the unrestricted portion of a partial set-aside.
- (b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-
- (1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and
 - (2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.
- (c) *Applicability*. This clause applies only to-
- (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
 - (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;
 - (4) Orders expected to exceed the simplified acquisition threshold and that are-
 - (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);
 - (5) Orders, regardless of dollar value, that are-
 - (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and
 - (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) *Independent contractors*. An independent contractor shall be considered a subcontractor.
- (e) *Limitations on subcontracting*. By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-
- (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;
 - (2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
 - (3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
 - (4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.
- (f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

☒ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-17 Section 8(a) Award. (Oct 2019)

SECTION8(A) AWARD (OCT 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section8(a) of the Small Business Act, as amended (15 U.S.C. 637(a)).

(2) Except for novation agreements, delegates to **NAVFAC Washington** the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify NAVFAC Washington Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the "Disputes" clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

52.219-28 Post award Small Business Program Rerepresentation. (Jan 2025)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

- (e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-
- (1) Was set aside for small business and has a value above the simplified acquisition threshold;
 - (2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or
 - (3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.
- (g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.
- (h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:
- (1) The Contractor represents that it is ☐, is not ☐ a small business concern under ____ NAICS Code assigned to ____ contract number.
 - (2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is ☐, is not ☐, a small disadvantaged business concern as defined in 13 CFR 124.1001.
 - (3) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is ☐, is not ☐ a women-owned small business concern.
 - (4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it is ☐, is not ☐ a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]
 - (5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it is ☐, is not ☐ a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]
 - (6) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that it is ☐, is not ☐ a veteran-owned small business concern.
 - (7) *[Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.]* The Contractor represents that it is ☐, is not ☐ a service-disabled veteran-owned small business concern.
 - (8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it is ☐, is not ☐ an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]
 - (9) *[Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.]* The Contractor represents that-
 - (i) It is ☐, is not ☐ a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It is ☐, is not ☐ a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [____ The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.223-3 Hazardous Material Identification and Material Safety Data. (Feb 2021)

HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021)

- (a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313(including revisions adopted during the term of the contract).
- (b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (if none, insert None)	Identification No.
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- (c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.
- (d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.
- (e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.
- (f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.
- (g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.
- (h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:
- (1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

- (i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;
 - (ii) Obtain medical treatment for those affected by the material; and
 - (iii) Have others use, duplicate, and disclose the data for the Government for these purposes.
- (2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.
- (3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.232-19 Availability of Funds for the Next Fiscal Year. (Apr 1984)

AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond _____. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond _____, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

52.246-20 Warranty of Services. (May 2001)

WARRANTY OF SERVICES (MAY 2001)

(a) *Definition.* "Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor within 30 days from the date of acceptance by the Government. This notice shall state either-

- (1) That the Contractor shall correct or reperform any defective or nonconforming services; or
- (2) That the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperformed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

- (a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.
- (b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR 201) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Section J

SECTION J TECHNICAL ANNEXES AND ATTACHMENTS WILL BE PROVIDED AS A SEPARATE ATTACHMENT TO THIS SOLICITATION.

EXHIBITS AND ATTACHMENTS

The following Exhibits/Attachments are hereby incorporated by reference:

SECTION C – PERFORMANCE WORK STATEMENT

0100000 C General Info
0200000 C Mngmt & Admin
1503050 C Grounds Maint & Landscape
1503060 C Pvmt Clear

SECTION F – DELIVERIES OR PERFORMANCE

0200000 F Mngmt & Admin
1503050 F Grounds Main & Landscape
1503060 F Pvmt Clear

SECTION H – SPECIAL CONTRACT REQUIREMENTS

** J Attachment 5.0: SCA WD 2015-4269 rev. 31, dated 12/03/2025
** J Attachment 5.1: SCA WD 2015-4281 rev. 35, dated 12/03/2025
** J Attachment 5.2: SCA WD 2015-4329 rev. 32, dated 12/03/2025
** J Attachment 5.3: DSA CBA 2023
J Attach 4.0 secnav5512

SECTION J – LIST OF ATTACHMENTS

0200000 J Mngmt & Admin
1503050 J Grounds Maint & Landscape
1503060 J Pvmt Clear

OTHER SECTION J ATTACHMENTS

PDF Files:

J Attach 6.0 Perform Assess Plan
J-0200000-05(i) Contractor Incident Report System (CIRS)
J-0200000-08(e) MBQ Spill Emergency Notification and Response Procedures
J-0200000-08(f) Bethesda (NSAB)- Spill Contingency Plan
J-1503050 13(a1,a4,a10,f1,f2) & excel sheets list
Section J 1503060-10 Maps & Excel Sheet List

Maps:

Section J 1503050-14 Maps Attachment List
Section J 1503050-15 Maps Consolidated
Section J 1503060 All Maps

EXCEL Documents:

J-1503050-08 Bethesda
J-1503050-08 Quantico
J-1503050-08 Washington
J-1503050-09(a) Irrigation System Inventory
J-1503050-11(a) Washington SWD Systems Inventory
J-1503050-11(f) Bethesda SWD Systems Inventory
J-1503060-05 Bethesda
J-1503060-05 Washington

SOLICITATION SUBMITTAL DOCUMENTS AND OTHER ATTACHMENTS

Attachment J-2000000-10 ELIN N40080-24-R-4580 Revised 20240814 0854 KDC
Exhibit A – Financial Questionnaire
Exhibit B – Factor 1, Corporate Experience
Exhibit C – Past Performance Questionnaire
Exhibit D – Key Personnel
Exhibit E – Safety Data and Narrative

Section K

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;

- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]* The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(5) *Small disadvantaged business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246- (1) Previous contracts and compliance. The offeror represents that-

(i) It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It ☐ has, ☐ has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that-

(i) It ☐ has developed and has on file, ☐ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It ☐ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g) (1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
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_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. ____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III*. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free

Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines

that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.* (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) *The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.*

☐ (ii) *The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.*

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) *Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1).* The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) *Certain services as described in FAR 22.1003-4(d)(1).* The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN).*

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other _____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations. (1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran. (1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u) (1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation*. Section 889(a)(1)(A) and section 889(a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

Section L

PROPOSAL REQUIREMENTS

ADDENDA TO 52.212-1

The Contractor shall comply with the following FAR provisions:

ADDENDUM TO 52.212-1 INSTRUCTIONS TO OFFERORS--COMMERCIAL ITEMS (SEP 2023) (tailored pursuant to FAR 12.302(d))

SUBJECT: REQUEST FOR PROPOSAL (RFP) - REGIONAL GROUNDS MAINTENANCE

NAICS: 561730

NOTE 1: FUNDING IS SUBJECT TO AVAILABILITY OF FUNDS (SEE FAR 52.232-18, INCLUDED HEREIN).

This RFP is in support of the Naval Facilities Engineering Command (NAVFAC), Washington.

1. SPECIFIC REQUIREMENTS:

This requirement will be a Firm-Fixed-Priced (FFP) type contract and an Indefinite Delivery-Indefinite Quantity (IDIQ) vehicle. Performance requirements for this FFP IDIQ are provided in the attached Performance Work Statement (PWS) of this RFP.

NOTICE TO OFFERORS:

a. Your acquisition points of contact for this contract are Contract Specialist Julian Cuadros at julian.r.cuadros.civ@us.navy.mil and Contracting Officer James Waite at james.h.waite.civ@us.navy.mil.

b. **Proposal shall be submitted no later than 2:00 pm (EDT) on 11 April 2026.** <https://piee.eb.mil/>. Proposals submitted by mail or hand-carried will not be evaluated. Proposals sent through proprietary or third party File Transfer Protocol (FTP) sites or DoD SAFE will not be retrieved. It is the responsibility of the Offeror to confirm receipt of proposals. All proposals received after the exact time specified for receipt shall be treated as late submissions and will not be considered except under facts and circumstances allowed by the Federal Acquisition Regulation (FAR).

For instructions on how to post an offer, please refer to the Posting Offer demo: https://pieetraining.eb.mil/wbt/sol/Posting_Offer.pdf. It is the Offeror's responsibility to obtain written confirmation of receipt of all electronic files of the full proposal by the Contracting office.

Offerors are responsible for ensuring electronic copies are virus-free and shall run an anti-virus scan before submission. Electronic copies of each volume shall be compatible with the following software products: Adobe Acrobat Reader 11 and Microsoft Office Suite 2016. Narrative portions of the proposal shall be in Adobe Acrobat portable document file (pdf) searchable text format. The Offeror shall not embed sound or video (e.g., MPEG) files into the proposal files. Electronic files shall be clearly identified for each volume, section, and item. Please refer to <https://piee.eb.mil/> website for further guidance. Please allow SUFFICIENT TIME for your proposal to be received prior to the proposed closing time.

Price and Non-Price proposals shall be submitted via PIEE and labeled "Proposal - Regional Grounds Maintenance N40080-24-R-4580", as a subject line. **All proposals must be received by the due date and time. Any proposals submitted after the time set for receipt will be documented with the date and hour of receipt and labeled as "late submission" and will be held unopened until after award.

REQUEST FOR PROPOSALS (RFP) INFORMATION/CLARIFICATION QUESTIONS:

All questions from offerors concerning any aspect of this request for proposal (RFP) must be submitted in writing via email. Prospective offerors are requested to submit written questions specifying the section paragraph of the specification for which clarification is desired. All inquiries will be answered in writing. Telephone questions will not be entertained. Offerors are specifically cautioned that verbal discussions and replies to questions shall not have the effect of changing the provisions of the written RFP.

Prospective offerors are required to review the entire solicitation package before submitting questions. Requests for Information (RFI's) during the proposal preparation period shall be submitted by email to julian.r.cuadros.civ@us.navy.mil and james.h.waite.civ@us.navy.mil. RFI's must be submitted in a WORD document and submitted by the Prime Contractor only. Subcontractors with questions must submit them through the Prime Contractor. Please do not send RFIs in an email only, but in a Word document.

The RFI cutoff date is no later than 4:00 pm (EDT) on 6 March 2026.

SITE VISIT -

0800 on Tuesday 24 Feb, 2026 at the Washington Navy Yard in Building 212 Conference Room 316. After the pre-proposal conference, departure for NSAW. All other site visits will begin at 0700 at Building 212 and leave by 0715.

Scheduled Site Visit Dates: **(Only Two People per Contractor)**

Tuesday, Feb 24, 2026 - NSAW, USNO, VPR, NSWC, after the pre-proposal conference.
Wednesday, Feb 25, 2026 - NRL, MBW, NSAB and WRNMMC
Thursday, Feb 26, 2026 - Dahlgren, and Quantico
Friday, Feb 27, 2026 - If needed.

Offerors must submit the following information for each visitor, **NO LATER THAN COB 17 Feb 2026** to John Bean at john.f.bean10.civ@us.navy.mil, Shamina Edwards at shamina.l.edwards.civ@us.navy.mil and Julian Cuadros at julian.r.cuadros.civ@us.navy.mil.

Information Needed to Gain Access to Site Visit Locations:
Full Name - First/Middle/Last
Date of Birth
Citizenship - Yes or No - If no please provide place of birth
Driver's License or State Issued ID - State Issued and Expiration Date
Company Name

Note: The attached form (5512/1) located in Section J, J Attachment 4.0, must be filled out completely in order to gain access to NSWC Dahlgren and Indian Head. If this form is not filled out correctly and received by 17FEB26 you will not be allowed to participate in the site visit scheduled for 24FEB26.

TECHNICAL QUOTE SUBMISSION REQUIREMENTS:
The technical quote submission, consists of four (4) separate elements, as follows:
(1). Corporate Experience;
(2). Technical and Management Approach;
(3). Safety and;
(4) Past Performance

Proposal Instructions:

VOLUME I - PRICE PROPOSAL PRICE:

- (i) Solicitation Submittal Requirements:

PRICE PROPOSAL PACKAGE:

(i) Solicitation Submittal Requirements:

Price shall be submitted on the Price Proposal Form included in the solicitation. The Offeror shall submit one electronic copy per the instructions provided in the solicitation submittal requirements identified in the SF1449 Instructions to Offerors, Section 5. The Price and Non-cost/price Factors shall be submitted in separate files and submitted in Portable Document Format (PDF). Price information included in the non-price/technical proposal will not be considered. Likewise, non- price/technical information included in the price proposal will not be considered.

The Offeror is required to submit a complete Price Proposal Form that includes completion of all contract line items numbers (CLINs) for the seed project as described. Pricing information is not required to be completed under Section 00 10 00 – Solicitation Contract Form in the SF1449. All required proposal documents shall be submitted in accordance with FAR 15.208.

(i) Executed SF1449

Offeror shall insert its company name and address in Block #14, telephone number in Block #15, acknowledge all amendments in Block #19 (if applicable), name and title of person authorized to sign in Block #20A, signature in Block #20B, and offer date in Block #20C of the SF1449. In addition, Offeror shall provide a cover page with solicitation number, solicitation title, Offeror name, address, phone number, fax number, United Entity Identifier (UEI), CAGE code, Employer Identification Number (EIN), and Federal Tax ID number, Point of Contract (POC), POC phone number, and email address, with its proposal. If a JV, this information should be provided for each member

(ii) SAM Registration

Offeror shall ensure current registration on the SAM Website, www.sam.gov, including Annual Representations and Certifications are complete and updated for this procurement. If a Representation or Certification required by Section 00600 of the RFP is not provided in SAM, include the representation or certification in your price proposal. **Proposals submitted by Offerors who do not have an active SAM registration at the time of proposal receipt shall not be considered.**

(iii) Sam Contractor Responsibility

Offeror shall ensure System for Award Management (SAM) Contractor's Responsibility Certification as required by FAR 52.209-7, Information Regarding Responsibility Matters.

(iv) VETS-4212 Registration

Confirmation of filing of Veterans' Employment and Training (VETS-4212) for the 2023/2024 filing cycle. Offeror shall ensure a current VETS-4212 report has been submitted to the Department of Labor (DOL) website, <http://www.dol.gov/vets/vets4212.htm>, if the Offeror is required to submit. An email confirmation of submission can be requested and received by the Offeror from the DOL website and submitted in the price proposal. If the Offeror is not required to submit a report to VETS-4212, include a brief statement and justification explaining why the Offeror is not required to submit a report. Visit the VETS-4212 website for details concerning if your company is required to submit a VETS-4212 report and to request an email confirmation of submission.

(v) Joint Venture (JV) Agreement (if applicable)

If the Offeror is a JV, clearly submit the name of each entity that comprises the JV (Offeror). For each entity, provide the complete name of the firm, address of the entity, Unique Entity Identifier (UEI), CAGE code, Point of Contact (POC), POC phone number, and POC email address. Provide a copy of the signed JV agreement.

NOTE: A small business joint venture Offeror must submit, with its offer, the representation required in paragraph (c) of FAR solicitation provision 52.212-3, Offeror Representations and Certifications Commercial Products and Commercial Services, and paragraph (c) of FAR solicitation provision 52.219-1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

- (A) Small business;
- (B) Service-disabled veteran-owned small business;
- (C) Women-owned small business (WOSB) under the WOSB Program;
- (D) Economically disadvantaged women-owned small business under the WOSB Program; or
- (E) Historically underutilized business zone small business.

SMALL BUSINESS SUBCONTRACTING PLAN INFORMATION – reference FAR 52.219-9 Alt II and DFARS 252.219-7003).

In accordance with FAR 19.7, all other than small businesses shall submit a Small Business Subcontracting Plan (SBSP) based on the proposed MACC NTE Value utilizing the template provided as Attachment E within their price

proposal. Acceptability of the SBSP will be considered a responsibility matter. The SBSP will not be evaluated or rated by the SSEB, but reviewed by a Small Business Professional/Authorized Representative and the Contracting Officer for acceptability. The SBSP shall be negotiated and/or accepted within the time specified by the Contracting Officer. Failure to negotiate an acceptable subcontracting plan within the time limit prescribed by the Contracting Officer will render the Offeror ineligible for award of the contract. The SBSP will be incorporated into the resulting contract.

NAVFAC's command-wide small business subcontracting targets are shown below. These may be higher or lower than percentages that would represent realistic, challenging, small business subcontracting goals for this acquisition consistent with efficient and effective performance of the contract. These targets are based on a percentage of total planned subcontract dollars. The SBSP shall be consistent with the commitments offered in the Small Business Utilization and Participation Factor (Attachment G). In accordance with DFARS 215.304(c)(i), when an evaluation assesses the extent that small businesses are specifically identified in proposals, those small businesses considered in the evaluation shall be listed in the SBSP.

PROGRAM	PRIME	SUBCONTRACTING
Small Business (SB)	59.30%	40%
Historically Underutilized Business Zone Small Business (HUB Zone)	6.85%	3%
Service-Disabled Veteran Owned (SDVOSB)	4.90%	5%
Small-Disadvantaged Business (SDB)	44.50%	5%
Woman-Owned (WOSB)	4.60%	9%

Please note that SBSP goals and the participation requirements provided in the Small Business Participation Commitment Document (SBPCD) WILL NOT be the same. The participation requirements within the SBPCD are provided as percentages of the total contract value; subcontract plan goals are provided as a percentage of planned subcontracting dollars. While the percentages will differ, the types of products/services identified in the SBSP, should be the same as those products/services identified in the SBPCD. Likewise, the planned small business subcontract dollars in the SBSP will be equal to (or in some cases greater than) the extent of small business participation identified in the SBPCD.

ADDITIONAL INFORMATION TO BE SUBMITTED WITH PRICE PROPOSAL PACKAGE:

RESPONSIBILITY DETERMINATION INFORMATION - In order to be eligible for award, the Offeror must be determined responsible in accordance with FAR Part 9, specifically 9.104-1, General Standards. In a separate Tab, the offeror shall provide the following information in the price proposal package:

1. One (1) signed bank reference demonstrating adequate financial resources. If Offeror's firm has a line of credit – provide information on how many figures Offeror can borrow against the line of credit (i.e. medium 6 figures – exact line of credit is not required).
2. The latest **three** complete fiscal year financial statements for the prime contractor, certified by an independent accounting firm, if practicable, or signed by an authorized officer of the organization. Submit evidence of availability of working/operating capital, which will be used for the performance of the resultant contract. For Joint Venture arrangements, submit the latest three complete fiscal year financial statements for each company in the Joint Venture and discuss the financial responsibilities among the companies. The Government may also utilize Dun & Bradstreet reports to evaluate the financial capacity of the Offeror. Offerors may provide proprietary financial statements only via email to Julian.r.cuadros.civ@us.navy.mil and

james.h.waite.civ@us.navy.mil in lieu of submitting within the system. Additional information included with financial statements will not be considered.

3. Description of Offeror's facilities and equipment.

4. Other offeror's work presently under contract.

Although required to be submitted with offeror's price proposal, this information's not evaluated as part of the price proposal. This information forms the basis of your firm's responsibility determination should your firm be considered for award.

Submit one (1) price proposal clearly marked as Volume I - Price Proposal. The evaluated price shall be the sum of the Recurring Work and Non-Recurring Work CLINS for a 12-month Base period and four (4) 12-month Option Periods with a six (6) month option to extend services. Provide the total price for performance of work required by the solicitation for all contract line items, including options as presented in Section B. The Offeror shall also submit Unique Entity ID, Cage Code, Point of Contact, phone number, and email address.

Text pages 8 1/2 x 11 format, minimum 10-point font, Times New Roman.

Completed SF 1449 signed with all amendments acknowledged.

Price Schedule (include MS Excel version and PDF)

Copy of Online Representation and Certifications and proof of registration in System for Award Management (SAM)

VOLUME II - TECHNICAL PROPOSAL

(i) Solicitation Submittal Requirements:

Submit one (1) technical proposal clearly marked as the Volume II - Technical Proposal. Technical proposals shall be submitted in 8-1/2 x 11 page format; no smaller than 12 font Times New Roman, limited to 50 pages, inclusive of all charts, licenses/certifications, forms and other documentation responsive to the solicitation requirements. This does not include the three (3) Past Performance Questionnaires/CPARs evaluations. Pages that exceed the maximum 50-page limit for Volume II, Technical Proposals **shall not** be considered during evaluation of the proposal. Further, no pricing shall be included in the technical proposal. The technical proposal cover page shall be in an 8 1/2 x 11 format submitted in no smaller than 10-point font and Times New Roman font style. The cover page shall provide:

Solicitation Number, Solicitation Title, Prime Contractor Name/JV, Address, Phone Number,

Unique Entity ID, Cage Code, Point of Contact, phone number, and email address

Completed SF 1449 signed with all amendments acknowledged.

Name, title, email, phone and fax number of authorized representative

CLAUSES INCORPORATED BY REFERENCE

52.204-7 System for Award Management NOV 2024

52.204-16 Commercial and Government Entity Code Reporting AUG 2020

52.204-22 Alternative Line-Item Proposal JAN 2017

52.215-1 Instructions to Offerors--Competitive Acquisition NOV 2021

52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 JAN 2022

52.232-13 Notice of Progress Payments APR 1984

Section M

BASIS FOR AWARD

ADDENDUM 52.212-2 EVALUATION--COMMERCIAL ITEMS

52.212-2 Evaluation-Commercial Items (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following technical factors shall be used to evaluate offers:

- Factor 1 - Corporate Experience
- Factor 2 - Technical and Management Approach
- Factor 3 - Safety
- Factor 4 - Past Performance

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

A. BASIS FOR AWARD

1. The Government reserves the right to eliminate from consideration for award any or all offers at any time prior to award of the contract to negotiate with offerors in the competitive range; and to award the contract to the offeror submitting the lowest priced, technically acceptable offer.

2. As stated in the solicitation, the Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. In addition, if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

3. The LPTA process is selected as appropriate for this acquisition because the best value is expected to result from selection of the technically acceptable proposal with the lowest evaluated price.

4. An overall non-price factors rating must be at least "ACCEPTABLE" in order to be eligible for award. An "UNACCEPTABLE" rating in any factor results in the overall non-price factors proposal being rated "UNACCEPTABLE" unless corrected through discussions. An overall non-price factors rating of "UNACCEPTABLE" makes a proposal ineligible for award.

B. EVALUATION FACTORS FOR AWARD

1. The solicitation requires the evaluation of price and the following non-price factors:

- Factor 1 - Corporate Experience
- Factor 2 - Technical and Management Approach
- Factor 3 - Safety

Factor 4 - Past Performance

The distinction between corporate experience and past performance is corporate experience pertains to the types of work and volume of work completed by a contractor that are comparable to the types of work covered by this requirement, in terms of size, scope, and complexity. Past performance pertains to both the relevance of recent efforts and how well a contractor has performed on the contracts.

2. Basis of Evaluation and Submittal Requirements for Each Factor.

(a) Price:

(1) Solicitation Submittal Requirements: The evaluated price shall be the sum Non-recurring Work CLINs for the base period and seven (7) Option Periods. Total potential contract duration is 102 months. Provide the total price for performance of work required by the solicitation for all contract line items, including options, as presented in Section B including filling out and submitting unit prices and amounts for the contract line items, sub-line items, and Exhibit Line Item Numbers (ELINs).xls.

(2) Basis of Evaluation: The Government will evaluate price based on the total price. Total price consists of the basic requirements and all option items (see Section B of the solicitation). The Government intends to evaluate all options and has included the provision FAR 52.217-5, Evaluation of Options (JUL 1990) in Section M of the solicitation. In accordance with FAR 52.217-5, Evaluation of Options will not obligate the Government to exercise the option(s). Analysis will be performed by one or more of the following techniques to ensure a fair and reasonable price:

- (i) Comparison of proposed prices received in response to the RFP.
 - (ii) Comparison of proposed prices with the IGCE.
 - (iii) Comparison of proposed prices with available historical information.
- (b) Technical Factors:

FACTOR 1 - CORPORATE EXPERIENCE:

(i) Solicitation Submittal Requirements: The attached Project Data Sheet (Attachment C) is MANDATORY and used to submit project information. Except as specifically requested, the Government will not consider information submitted in addition to this form. Individual blocks on this form may be expanded; however, the total length for each project data sheet shall not exceed two (2) pages. In the event the Project Data Sheet exceeds two (2) pages, offerors will receive and evaluation of the two (2) pages and the remainder will not be evaluated.

(i) Basis of Evaluation: The offeror must submit three (3) Grounds Maintenance services projects that best demonstrate relevant experience that are similar in size, scope and complexity to the solicited projects as defined below. For the purpose of this evaluation, submitted projects must have been completed within five (5) years preceding the release of the solicitation (if the contract is ongoing, at least twelve months performance must be completed at the time of release of the solicitation). All projects submitted must be recent and relevant projects similar in size, scope and complexity to the solicited project. Any projects submitted in excess of the three (3) projects will not be considered.

- **Size:** Contract includes base plus option year(s) valued at \$9.5M or greater per year

- **Scope:** Providing Grounds Maintenance Services listed in Annex 15 of the PWS. Offeror's experience shall show the following tasks or similar:
 - (S) Spec Items and all sub-spec items in Annex 15 of the PWS.
 - (S) Providing services for contract with estimated yearly value of \$24M.
- **Complexity:** Please demonstrate each of the following:
 1. Project must involve management and operations of grounds maintenance services that included the management of staff of a minimum of eighty (80) personnel who provided security operations.
 2. Project must involve management, grounds maintenance operation services on a recurring and non-recurring basis at multiple location in multiple jurisdictions.
 3. Project must involve grounds maintenance services that included the management of a staff personnel; certifications and training; usage of herbicides, vehicles, and equipment; pest management; handling of disposal and spills; on-site safety; water management; lawn and field maintenance; mowing, trimming, edging and lawn services; working with storm drainage; disposal and maintenance; and pavement/snow clearing.

FACTOR 2 - TECHNICAL and MANAGEMENT APPROACH

a) Solicitation Submittal Requirements:

(iii) Solicitation Submittal Requirements: The offeror must submit under this factor all the requested submittal requirements for each item below. Page limits per item will be adhered to and any pages in excess of the page limits per item will not be considered as part of the evaluation of the item. The offeror shall submit the following:

The offeror shall submit a narrative response that clearly demonstrates its understanding of and approach to accomplishing the complexity and magnitude of service requirements set forth in the performance objectives and standards of the Performance Work Statement. Each of the components below must be tabbed in the technical proposal and discussed separately.

A. Phase-In/Phase-Out Transition Plan. Describe what you will do to "startup" and demobilize for the performance of this contract. The Phase-In transition period is 30 days and the Phase-Out transition period is 30 days as per Section B of the solicitation of the RFP. Include a schedule of key events; personnel actions and responsibilities regarding employees at all levels.

B. Workforce Management. Provide an explanation of how the offeror will organize staff and specify how the offeror plan to retain qualified workers at management and operational levels under the contract. Provide detailed Staffing Chart depicting levels of authority and chain of command to the lowest level, including subcontractors. Provide an organizational chart identifying management, key positions and elements of the offeror's organization under this contract. Discuss how the offeror will accomplish unscheduled non-recurring requirements and not adversely impact the schedule of recurring effort. Discuss and provide details on how the offeror plan to fulfill recurring contract requirements, specifically backfilling contract personnel when personnel are on planned or unplanned leave.

C. Organization Chart. Offerors must submit an organizational chart that depicts and describes the requirements in Item (B) Workforce Management of this solicitation. If the subcontractors are used identify their percentage of involvement as they relate to the specific sections of the Performance Work Statement (PWS).

(iv) Basis of Evaluation: Acceptability will be based on the quality of the Offerors Technical and Management Approach. To receive a rating of "Acceptable" for this factor, the narrative must provide an explanation of how the offeror will meet the requirements and the Offeror must provide the submittals that are required within this factor. The Government will evaluate the feasibility of the offeror's technical/management approach to provide the full range of support services described in the PWS. Simple statements that the offeror will fulfill the requirements without a detailed description of how an offeror will accomplish the work maybe insufficient to demonstrate that the offeror can perform the contract requirements, which may result in a technical rating of Unacceptable. Do not assume that the evaluator(s) is/are familiar with the technical approach of your company based on other contracts with this or another agency.

FACTOR 3 - SAFETY:

(i) Solicitation Submittal Requirements: The Offeror shall submit the following information: (For a partnership or joint venture, the following submittal requirements are required for each contractor who is part of the partnership or joint venture; however, only one safety narrative is required. **TCR and DART Rates shall not be submitted for subcontractors.**)

(1) Total Case Rate (TCR):

For the five previous complete calendar years 2021, 2022, 2023, 2024, and 2025 submit your TCR (which compares your company's annual losses in insurance claims against its policy premiums over a three-year period). If you have no TCR, affirmatively state so, and explain why. Any extenuating circumstances that affected the TCR and upward or downward trends should be addressed as part of this element. Higher TCRs may result in an Unacceptable rating.

(2) OSHA Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate:

For the five previous complete calendar years 2021, 2022, 2023, 2024 and 2025 submit your OSHA Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate, as defined by the U.S. Department of Labor, Occupational Safety and Health Administration. If you cannot submit an OSHA DART Rate, affirmatively state so, and explain why. Any extenuating circumstances that affected the OSHA DART Rate data and upward or downward trends should be addressed as part of this element. Higher OSHA DART Rates may result in an Unacceptable rating.

(3) Technical Approach for Safety:

Describe the Offeror's technical approach to safety as well as a plan that the Offeror will implement to evaluate safety performance of potential subcontractors, as a part of the selection process for all levels of subcontractors. Also, describe any innovative methods that the Offeror will employ to ensure and monitor safe work practices at all levels

including subcontractor compliance. The Safety Narrative shall be limited to two pages (single-sided) or 1 sheet of paper (double-sided).

(ii) Basis of Evaluation: The Government is seeking to determine that the Offeror has consistently demonstrated a commitment to safety and that the Offeror plans to properly manage and implement safety procedures for itself and its subcontractors. The Government will evaluate the Offeror's overall safety record, the Offeror's plan to select and monitor subcontractors, any and innovative safety methods that the Offeror plans to implement for this procurement. The Government's sources of information for evaluating safety may include, but are not limited to, OSHA, NAVFAC's Facility Accident and Incident Reporting (FAIR) database, and other related databases. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete safety information regarding these submittal requirements rests with the Offeror. The evaluation will collectively consider the following:

- Total Case Rate (TCR)
- OSHA Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate
- Offeror Technical Approach to Safety
- Other sources of information available to the Government

(1) Total Case Rate (TCR):

The Government will evaluate the TCR to determine if the Offeror has demonstrated a history of safe work practices taking into account any upward or downward trends and extenuating circumstances that impact the rating. Higher TCRs may result in an Unacceptable rating.

(2) OSHA Days Away from Work, Restricted Duty, or Job Transfer (DART) Rate:

The Government will evaluate the OSHA DART Rate to determine if the Offeror has demonstrated a history of safe work practices taking into account any upward or downward trends and extenuating circumstances that impact the rates. Higher OSHA DART Rates may result in an Unacceptable rating.

(3) Technical Approach to Safety:

The Government will evaluate the narrative to determine the contractor's technical approach to safety and the degree to which subcontractor safety performance will be considered in the selection of all levels of subcontractors on the upcoming project. The Government will also evaluate the narrative to determine the degree to which innovations are being proposed that may enhance safety on this procurement.

FACTOR 4 - PAST PERFORMANCE:

Solicitation Submittal Requirements: Offerors shall provide CPARS for each project submitted for Factor 2, Corporate Experience. IF THERE IS NOT A COMPLETED CPARS EVALUATION, a completed Past Performance Questionnaire (PPQ) form must be submitted for each project the offeror includes in its proposal for this Factor 2.

(i) IF A CPARS EVALUATION IS NOT AVAILABLE and if the offeror is unable to obtain a completed PPQ from a client for a project(s) before proposal closing date, the offeror should complete and submit with the proposal the first page of the PPQ (Attachment C), which will provide contract and client information for the respective project(s). Offerors should follow-up with clients/references to ensure timely submittal of questionnaires. If the client requests, questionnaires submitted directly to the Government's point of contact, John Bean, Contracting Officer's Representative, john.f.bean10.civ@us.navy.mil and Julian Cuadros, Contract Specialist, julian.r.cuadros.civ@us.navy.mil prior to proposal closing date.

(ii) Offerors shall not incorporate by reference into their proposal PPQs or CPARS previously submitted for other RFPs. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation. In addition to the above, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to, past performance information retrieved through the Past Performance Information Retrieval System (PPIRS) using all CAGE/Unique Entity ID numbers of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the offeror's proposal, inquiries of owner representative(s), and any other known sources not provided by the offeror. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror.

(iii) For the purpose of the past performance evaluation, a relevant project is defined as any grounds maintenance services contract performed within the last five (5) years.

CLAUSES INCORPORATED BY REFERENCE

52.217-5 Evaluation of Options JUL 1990

CLAUSES INCORPORATED BY FULL TEXT

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a firm fixed price performance based indefinite quantity contract resulting from this solicitation.

(End of provision)

52.233-2 SERVICE OF PROTEST (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from

James Waite

Contracting Officer CON20

NAVFAC SYSCOM Washington

1314 Harwood Street, SE Bldg. 212 4th FL

Washington, DC 20374

Email: james.h.waite.civ@us.navy.mil

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

